



EUROPEAN COMMISSION

***CASE DMA.100193 - Alphabet - Online
Search Engine - Google Search - Art.
6(5)***

(Only the English text is authentic)

**Digital Markets Act
Regulation (EU) 2022/1925 of the European Parliament
and of the Council**

Articles 29(1), point (a), 30(1), point (a), and 31(1), point (h)
Regulation (EU) 2022/1925

Date: 23/07/2026

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EUROPEAN
COMMISSION

Brussels, 23.7.2026
C(2026) 5358 final

COMMISSION IMPLEMENTING DECISION

of 23.7.2026

pursuant to Articles 29(1), point (a), 30(1), point (a), and 31(1), point (h), of Regulation (EU) 2022/1925 of the European Parliament and of the Council on contestable and fair markets in the digital sector

Case DMA.100193 - Alphabet - Online Search Engine - Google Search - Article 6(5)

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Case DMA.100193 - Alphabet - Online Search Engine - Google Search - Article 6(5)

(Only the English text is authentic)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act), in particular Article 29(1), point (a), and Article 30(1), point (a), and Article 31(1), point (h), thereof,¹

After consulting the Digital Markets Advisory Committee,²

Whereas:

1. INTRODUCTION

- (1) This Decision, adopted pursuant to Article 29(1), point (a), Article 30(1), point (a), and Article 31(1), point (h), of Regulation (EU) 2022/1925, is addressed to Alphabet Inc., together with all the legal entities directly or indirectly controlled by Alphabet Inc. (hereinafter collectively referred to as “Alphabet”). Alphabet Inc. is a publicly traded company founded in 2015 through a restructuring of Google Inc. It is headquartered in Mountain View, California, United States of America. Alphabet is a global technology company, specialised in internet-related services and products that include online advertising technologies, search, cloud computing, software and hardware. The company operates various services in the Union, including the services listed in the following recital. The legal entity providing these services in the Union is Google Ireland Ltd, an Alphabet subsidiary established in Ireland.
- (2) This Decision finds that Alphabet does not comply with Article 6(5) of Regulation (EU) 2022/1925 with regard to Alphabet’s online search engine (“OSE”) core

¹ Regulation (EU) 2022/1925 of the European Parliament and of the Council of 14 September 2022 on contestable and fair markets in the digital sector and amending Directives (EU) 2019/1937 and (EU) 2020/1828 (Digital Markets Act), OJ L 265, 12.10.2022, p. 1-66.

² The opinion of the Digital Markets Advisory Committee can be found on the Commission’s Comitology Register under meeting code CMTD(2026)1229: <https://ec.europa.eu/transparency/comitology-register/screen/committees/C114400/consult?lang=en>.

platform service (“CPS”) Google Search as it treats more favourably in ranking Alphabet’s other CPSs and distinct services including Alphabet’s comparison-shopping services, Alphabet’s flights intermediation service,³ Alphabet’s trains intermediation service, Alphabet’s lodging intermediation service, Alphabet’s intermediation service for local places Google Maps, Alphabet’s translation services, Alphabet’s sports results information services and Alphabet’s gaming services than similar services of third parties.

(3) This Decision is structured as follows:

- Section 2 summarises the procedure leading to the adoption of this Decision;
- Section 3 sets out the legal framework for the assessment of Alphabet’s compliance with Article 6(5) of Regulation (EU) 2022/1925 in relation to Google Search and assesses Alphabet’s arguments in that respect;
- Section 4 describes the Google Search engine results page (“SERP”) following transactional queries, applies the legal framework to the Google SERP to determine Alphabet’s compliance with Article 6(5) of Regulation (EU) 2022/1925 in relation to Google Search and assesses Alphabet’s arguments in that respect;
- Section 5 describes the Google SERP following content queries, applies the legal framework to the Google SERP to determine Alphabet’s compliance with Article 6(5) of Regulation (EU) 2022/1925 in relation to Google Search and assesses Alphabet’s arguments in that respect;
- Section 6 rebuts Alphabet’s allegations of procedural shortcomings;
- Section 7 concludes on the duration of the infringement of Article 6(5) of Regulation (EU) 2022/1925;
- Section 8 identifies the addressees of this Decision;
- Section 9 explains the methodology for setting the fine and the amount of the fine imposed;
- Section 10 outlines the cease and desist order imposed by this Decision and the requirement for Alphabet to provide explanations on how it plans to comply with this Decision;
- Section 11 describes the periodic penalty payments necessary to compel Alphabet to bring the non-compliance with Article 6(5) of Regulation (EU) 2022/1925 effectively to an end.

2. PROCEDURE

(4) On 5 September 2023, the Commission adopted a decision designating Alphabet as a gatekeeper pursuant to Article 3 of Regulation (EU) 2022/1925 (the “Alphabet designation decision”). The Alphabet designation decision lists the following core

³ Throughout this Decision, the use of the words “intermediation” or “intermediation service” does not mean an “Online intermediation service” (OIS) as defined in Article 2(2) of Regulation (EU) 2022/1925.

platform services (“CPSs”) that are provided by Alphabet, and which individually constitute an important gateway for business users to reach end users: (i) its online intermediation service (“OIS”) Google Play; (ii) its OIS Google Maps; (iii) its OIS Google Shopping; (iv) its OSE Google Search; (v) its video-sharing platform service YouTube; (vi) its operating system Google Android; (vii) its online advertising services; and (viii) its web browser Google Chrome.⁴

- (5) Pursuant to Article 3(10) of Regulation (EU) 2022/1925, Alphabet had to comply, as of 7 March 2024, with the obligations laid down, among others, in Article 6(5) of Regulation (EU) 2022/1925 in relation to the CPSs listed in the Alphabet designation decision, notably in relation to Google Search.
- (6) On 7 March 2024, Alphabet submitted to the Commission pursuant to Article 11(1) of Regulation (EU) 2022/1925 a report describing the measures it has implemented to ensure compliance with the obligations laid down in Articles 5, 6 and 7 of that Regulation (the “Alphabet Compliance Report 2024”). The Commission analysed that report to determine whether the measures implemented by Alphabet ensure and demonstrate compliance, as of 7 March 2024, with the obligation laid down in Article 6(5) of Regulation (EU) 2022/1925 in relation to Google Search.
- (7) On 25 March 2024, the Commission adopted a decision opening proceedings pursuant to Article 20(1) of Regulation (EU) 2022/1925 with a view to the possible adoption of a decision pursuant to Article 29 of that Regulation in relation to Alphabet’s compliance with Article 6(5) of Regulation (EU) 2022/1925 (the “Opening Decision”).⁵
- (8) In the context of those proceedings, the Commission sent four requests for information (“RFIs”) to Alphabet (on 6 May 2024, 4 June 2024, 26 June 2024 and 2 August 2024). Alphabet responded to the RFI of 6 May 2024 on 4, 14 and 24 June 2024, 15 July 2024 and 19 August 2024. Alphabet responded to the RFI of 4 June 2024 on 28 June 2024. Alphabet responded to the RFI of 26 June 2024 on 15 and 26 July 2024. Alphabet responded to the RFI of 2 August 2024 on 9 September 2024.
- (9) On 6 March 2025, Alphabet submitted to the Commission its second annual compliance report pursuant to Article 11(1) of Regulation (EU) 2022/1925 (the “Alphabet Compliance Report 2025”). In this report, Alphabet maintains that the measures it had already put in place by 7 March 2024, as detailed in the Alphabet Compliance Report 2024, comply with Article 6(5) of Regulation (EU) 2022/1925.⁶ Alphabet’s Compliance Report 2025 confirms that it has not made any further changes to these measures.⁷
- (10) On 19 March 2025, the Commission communicated to Alphabet its preliminary findings pursuant to Article 29(3) and 34(1) of Regulation (EU) 2022/1925 in the context of the proceedings referred to in recital (7) of this Decision (the ‘Preliminary Findings’). In the Preliminary Findings, the Commission reached the preliminary conclusion that Alphabet failed to comply with the requirements laid down in Article

⁴ Decision C(2023) 6101 final.

⁵ Decision C(2024) 2053 final.

⁶ Alphabet Compliance Report 2025 – Google Search Chapter, paragraph 24, [Attachment ID].

⁷ Alphabet Compliance Report 2025 – Google Search Chapter, paragraph 54, [Attachment ID].

6(5) of Regulation (EU) 2022/1925. According to the Commission’s preliminary view, Alphabet favourably ranks services on Google Search that are distinct from or additional to Google Search, including, in particular, Alphabet’s comparison-shopping services, its flights intermediation service, trains intermediation service, lodging intermediation service, intermediation service for local places, Google Maps, translation services, sports results information services and gaming services. In the Commission’s preliminary view, the measures implemented by Alphabet to ensure compliance did not provide equal prominence to similar services of third parties.⁸

- (11) On 20 March 2025, Alphabet’s specified external advisers requested, on behalf of Alphabet, access to the Commission’s file pursuant to Article 34(4) of Regulation (EU) 2022/1925 and Article 8 of Commission Implementing Regulation (EU) 2023/814.⁹ In particular, Alphabet’s specified external advisers requested access to the non-confidential version of the documents referenced in the Preliminary Findings in accordance with Article 8(2) of Implementing Regulation (EU) 2023/814, as well as full access to all documents contained in the Commission’s file without redactions in accordance with Article 8(3) of Implementing Regulation (EU) 2023/814.¹⁰
- (12) By the same submission, Alphabet’s specified external advisers sent a letter to the Commission relating to Alphabet’s access to the file.¹¹ In that letter, Alphabet’s specified external advisers raised a number of concerns related to access to the file which allegedly compromised Alphabet’s rights of defence and made additional requests. These requests were reiterated and supplemented by additional submissions on 21 March 2025 and 25 March 2025.¹² The Commission replied to Alphabet’s requests by emails of 26 March 2025, 28 March 2025 and 2 April 2025,¹³ and rejected some of Alphabet’s claims. As far as Alphabet maintained its claims in response to the Preliminary Findings, these are discussed in Section 6 of this Decision.
- (13) On 21 March 2025, the Commission provided Alphabet and Alphabet’s specified external advisers, with non-confidential versions of all documents referenced and relied upon in the Preliminary Findings, pursuant to Article 8(2) of Implementing Regulation (EU) 2023/814.
- (14) In application of Article 8(3) of Implementing Regulation (EU) 2023/814, Alphabet’s specified external advisers were granted access to the Commission’s file at the Commission’s premises via a data room between 24 March 2025 and 8 April 2025 pursuant to the Terms of Disclosure laid down in the Commission decision of 21 March 2025 (the ‘Terms of Disclosure Decision’).¹⁴ Pursuant to the Terms of Disclosure Decision, Alphabet’s specified external advisers were granted access to all documents in the case file with the exception (under Article 8(4) of Implementing

⁸ Preliminary Findings, recitals 330-341.

⁹ Commission Implementing Regulation (EU) 2023/814 of 14 April 2023 on detailed arrangements for the conduct of certain proceedings by the Commission pursuant to Regulation (EU) 2022/1925 of the European Parliament and of the Council (OJ L 102, 17.4.2023, p. 6).

¹⁰ Alphabet’s email of 20 March 2025, [Attachment ID].

¹¹ Alphabet’s email of 20 March 2025, [Attachment ID].

¹² Alphabet’s email of 21 March 2025, [Attachment ID]; Alphabet’s email of 25 March 2025, [Attachment ID].

¹³ Commission’s email of 26 March 2025, [Attachment ID]; Commission’s email of 28 March 2025, [Attachment ID]; Commission’s email of 2 April 2025, [Attachment ID].

¹⁴ Decision C(2025) 1882 final.

Regulation (EU) 2023/814) of correspondence with the United Kingdom’s Competition and Markets Authority (“CMA”), consisting of minutes of the meetings between the Commission and the CMA of 17 October 2024 and 16 December 2024 and email exchanges of 29 November 2024 and 10 December 2024 related to the latter meeting, and correspondence with the United States Department of Justice (“DOJ”), consisting of minutes of the meeting with the DOJ of 4 December 2024. On 8 April 2025, the data room report was finalised and a non-confidential version of it was shared with Alphabet.

- (15) On 18 May 2025, Alphabet responded to the Preliminary Findings contesting the Commission’s preliminary conclusions on non-compliance.¹⁵
- (16) On 6 March 2026, Alphabet submitted to the Commission its third annual compliance report pursuant to Article 11(1) of Regulation (EU) 2022/1925 (the “Alphabet Compliance Report 2026”). Alphabet’s Compliance Report 2026 confirms that it has not made any further changes to the measures it had put in place by 7 March 2024.¹⁶

3. LEGAL FRAMEWORK FOR THE ASSESSMENT OF COMPLIANCE WITH ARTICLE 6(5) OF REGULATION (EU) 2022/1925

- (17) Pursuant to Article 29(1), point (a), of Regulation (EU) 2022/1925, where the Commission finds that a gatekeeper does not comply with any of the obligations laid down in Articles 5, 6, or 7 of that Regulation, it shall adopt an implementing act setting out its finding of non-compliance (the “non-compliance decision”). In such a non-compliance decision, the Commission shall, pursuant to Article 29(5) of Regulation (EU) 2022/1925, order the gatekeeper to cease and desist with the non-compliance and to provide explanations on how it plans to comply with that decision. The Commission may also impose a fine pursuant to Article 30(1), point (a), of Regulation (EU) 2022/1925, and impose periodic penalty payments pursuant to Article 31(1), point (h), of that Regulation, to compel a gatekeeper to comply with such a non-compliance decision.
- (18) Article 6(5) of Regulation (EU) 2022/1925 states that a gatekeeper “*shall not treat more favourably, in ranking and related indexing and crawling, services and products offered by the gatekeeper itself than similar services or products of a third party*”, and “*shall apply transparent, fair and non-discriminatory conditions to such ranking*”.
- (19) Pursuant to Article 8(1) of Regulation (EU) 2022/1925, the measures implemented by the gatekeeper to ensure compliance with Article 6(5) of Regulation (EU) 2022/1925 must be effective in achieving the objectives of that Regulation and of such obligation.
- (20) Recital 51 of Regulation (EU) 2022/1925 explains that “*Gatekeepers are often vertically integrated and offer certain products or services to end users through their own core platform services, or through a business user over which they exercise control which frequently leads to conflicts of interest. This can include the situation whereby a gatekeeper provides its own online intermediation services through an online search engine. When offering those products or services on the core platform service, gatekeepers can reserve a better position, in terms of ranking, and related*

¹⁵ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, [Attachment ID].

¹⁶ Alphabet Compliance Report 2026 – Google Search Chapter, paragraph 54, [Attachment ID].

indexing and crawling, for their own offering than that of the products or services of third parties also operating on that core platform service. This can occur for instance with products or services, including other core platform services, which are ranked in the results communicated by online search engines, or which are partly or entirely embedded in online search engines results, groups of results specialised in a certain topic, displayed along with the results of an online search engine, which are considered or used by certain end users as a service distinct or additional to the online search engine. (...)”.

- (21) Recital 52 of Regulation (EU) 2022/1925 further adds that *“In such situations, the gatekeeper should not engage in any form of differentiated or preferential treatment in ranking on the core platform service, and related indexing and crawling, whether through legal, commercial or technical means, in favour of products or services it offers itself or through a business user which it controls. To ensure that this obligation is effective, the conditions that apply to such ranking should also be generally fair and transparent. Ranking should in this context cover all forms of relative prominence, including display, rating, linking or voice results and should also include instances where a core platform service presents or communicates only one result to the end user. To ensure that this obligation is effective and cannot be circumvented, it should also apply to any measure that has an equivalent effect to the differentiated or preferential treatment in ranking. The guidelines adopted pursuant to Article 5 of Regulation (EU) 2019/1150 should also facilitate the implementation and enforcement of this obligation”.*
- (22) Article 2, point (6), of Regulation (EU) 2022/1925 defines OSEs by reference to Article 2, point (5), of Regulation (EU) 2019/1150.¹⁷ The latter provision defines OSEs as *“a digital service that allows users to input queries in order to perform searches of, in principle, all websites, or all websites in a particular language, on the basis of a query on any subject in the form of a keyword, voice request, phrase or other input, and returns results in any format in which information related to the requested content can be found”.*
- (23) Article 2, point (23), of Regulation (EU) 2022/1925 further defines ‘search results’ as *“any information in any format, including textual, graphic, vocal or other outputs, returned in response to, and related to, a search query, irrespective of whether the information returned is a paid or an unpaid result, a direct answer or any product, service or information offered in connection with the organic results, or displayed along with or partly or entirely embedded in them”.*
- (24) Moreover, Article 2, point (22), of Regulation (EU) 2022/1925 defines ‘ranking’ as *“the relative prominence given to goods or services offered through online intermediation services, online social networking services, video-sharing platform services or virtual assistants, or the relevance given to search results by online search engines, as presented, organised or communicated by the undertakings providing online intermediation services, online social networking services, video-sharing platform services, virtual assistants or online search engines, irrespective of the*

¹⁷ Regulation (EU) 2019/1150 of the European Parliament and of the Council of 20 June 2019 on promoting fairness and transparency for business users of online intermediation services, OJ L 186, 11.7.2019, p. 57-79.

technological means used for such presentation, organisation or communication and irrespective of whether only one result is presented or communicated”.

- (25) In that context, it follows from Article 6(5) of Regulation (EU) 2022/1925 and recital 51 of that Regulation, that Alphabet should not treat its own distinct or additional services on its SERP more favourably in ranking as compared to similar services of third parties that are also ranked on the SERP.
- (26) This means that Alphabet does not comply with Article 6(5) of Regulation (EU) 2022/1925 in cases where: (i) Alphabet offers a service that is distinct or additional to Google Search, and which is ranked on, embedded in, or displayed along search results communicated by that OSE; (ii) third parties offer similar services to Alphabet’s distinct or additional service and such third parties’ services are also ranked on, embedded in, or displayed along search results shown on the SERP; and (iii) Alphabet treats its own distinct or additional service more favourably in ranking or related indexing and crawling than those similar services offered by third parties.

3.1. The existence of distinct or additional services to an online search engine that are ranked on the SERP

3.1.1. The Commission’s position

- (27) In the Alphabet designation decision, which Alphabet has not appealed, the Commission found that all results or outputs that the OSE Google Search shows on its SERP, regardless of their format or type and irrespective of the means through which users access such results or the type of device they use, constitute search results within the meaning of Article 2, point (23), of Regulation (EU) 2022/1925. Such a finding does not preclude, however, that such search results contain and rank services which are distinct or additional to an OSE.¹⁸
- (28) To determine whether Alphabet offers a service that is distinct or additional to Google Search, and which is ranked in, embedded in, or displayed alongside the search results of Google Search, it is necessary, as clarified in recital 51 of Regulation (EU) 2022/1925, to examine whether such a service is considered or used by certain end users as a service distinct or additional to an OSE. As is apparent from Section D(2) of the Annex to the DMA, examining whether a given service is used by end users or business users as a service distinct or additional to an OSE requires an assessment of the service’s purpose, as compared to the purpose of an OSE. Such an assessment must be carried out by reference to the objective functionalities and tasks performed by the service in question.
- (29) In carrying out this assessment, it is important to take into account that the purpose of an OSE is set out in Article 2, point (5), of Regulation (EU) 2019/1150, which is referred to in Article 2, point (6), of Regulation (EU) 2022/1925. These provisions indicate that the purpose of an OSE is, in essence, to search the Internet and deliver to users results in which information related to the requested content can be found.¹⁹

¹⁸ Decision C(2023) 6101 final, recitals 94, 95.

¹⁹ The Impact Assessment of the proposal for a Regulation of the European Parliament and of the Council on promoting fairness and transparency for business users of online intermediation services, SWD (2018) 138 final, p. 69, sec. 7.2.5, states that “*Internet search engines are services that help Internet users find the relevant answers to their search requests from among tens of billions of web pages on the*

- (30) If, following the above-mentioned assessment, it is concluded that a service which is ranked in, embedded in, or displayed alongside the search results of Google Search has a purpose that is different from or goes beyond the purpose of an OSE, that service is to be considered a distinct or additional service to Google Search.
- (31) Recital 51 of Regulation (EU) 2022/1925 clarifies that distinct or additional services to an OSE may take the form of products or services which are ranked in the results communicated by OSEs, or which are partly or entirely embedded in OSEs results, groups of results specialised in a certain topic, displayed along with the results of an OSE.
- (32) In light of the above, it must be noted that Alphabet shows distinct or additional services on the SERP of Google Search, in response to transactional and to content-related²⁰ search queries, when a given group of results or dedicated unit specialised in a certain topic has a different purpose to that of an OSE, insofar as it has functionalities or performs tasks that are different to or go beyond searching the Internet and delivering to users results in which information related to the requested content can be found.
- (33) As regards transactional queries, this is the case, in particular, when a given group of results or dedicated unit, specialised in a certain topic, presents a series of functionalities or performs tasks that, individually or in combination, allow users to filter, interact with, and compare competing offers, based on relevant commercial parameters, directly on the SERP, in order to facilitate the initiation of transactions between businesses and consumers.
- (34) As regards content-related queries, this is the case, in particular, when a given group of results or dedicated unit, specialised in a certain topic, presents a series of functionalities or performs tasks that, individually or in combination, allow users to perform, directly on the SERP, actions that are unrelated to or otherwise go beyond searching the Internet and obtaining results in which information related to the requested content can be found (e.g., playing a game or translating words or groups of words from one language to another).
- (35) Additionally, it must be noted that services provided by Alphabet that fall into a category of CPS pursuant to Article 2, point (2), of Regulation (EU) 2022/1925 other than OSE, such as OISs, by definition, have a purpose that is different to that of an OSE, and therefore are distinct from or additional to Google Search. This is clearly the case, for instance, for those CPSs – other than Google Search – which the Commission

internet. They facilitate direct interaction between internet users seeking information, website operators seeking an audience for their content, and online advertisers targeting potential customers. The fundamental purpose of a search engine is to make it easier for users to find information on the internet. Given the fact that the number of web pages is constantly increasing (approximately 46 billion indexed and searchable pages in March 2016) and that the random assignment of web addresses (URLs) does not provide any practical way of identifying their contents, a search for information would be impossible without technical assistance”.

²⁰ ‘Transactional’ search queries are queries that relate to purchasing, booking, or otherwise advance commercial transactions with respect to products or services (for example, goods, flights, trains, hotels, restaurants or services provided in other physical locations). ‘Content-related’ search queries are queries aimed at accessing content related to specific categories of information or other services (for example, translation, sport information or games).

listed in the Alphabet designation decision, and which are ranked in, embedded in, or displayed along search results communicated by Google Search.

- (36) Finally, a distinct or additional service to an OSE can also be shown when, regardless of its purpose, a given group of results or dedicated unit specialised in a certain topic is not assembled by performing searches of, in principle, all websites, or all websites in a particular language, as required by the definition of an OSE contained in Article 2, point (6), of Regulation (EU) 2022/1925, by reference to Article 2, point (5), of Regulation (EU) 2019/1150. Indeed, in such a case, such a group of results or dedicated unit does not meet the definition of an OSE, as established in the abovementioned legal provisions. Consequently, such a group of results or dedicated unit is, by definition, a distinct or an additional service to an OSE.
- (37) This is the case, for instance, when, in response to a transactional or content-related query, a given group of results or dedicated unit specialised in a certain topic, rather than showing results obtained by searching in principle all websites, shows results that have been sourced only or predominantly through means other than searching in principle all websites (*e.g.*, they are exclusively or predominantly sourced through licensed data, through data feeds,²¹ or through data obtained from distinct or additional services of the gatekeeper), or shows only results obtained from a limited data source or pool of websites pre-defined or selected by Alphabet.

3.1.2. *Alphabet's arguments*

- (38) First, Alphabet notes that the output of an OSE includes search results responding to queries on any subject, presented in any format and with any information.²²
- (39) In the first place, Alphabet argues that OSEs are not limited to returning results for or links to websites. Relying on the wording of Article 2, point (23), of Regulation (EU) 2022/1925 and Article 2, point (5), of Regulation (EU) 2019/1150, Alphabet highlights that the output of an OSE may include search results in any format, including direct answers, and that the legislator deliberately chose to define the output of an OSE broadly.²³ According to Alphabet, the reference in Article 2, point (5), of Regulation (EU) 2019/1150 to searching “in principle, all websites” is not a limitation on the results a search engine can return, but a minimum criterion that an OSE must meet to qualify as such. To be an OSE, a service must be capable of enabling users to search for, in principle, all websites. However, an OSE may return results that are not

²¹ Data feeds are a mechanism to continuously provide real-time information. Specifically, data providers can, either manually or programmatically via an API (application programming interface) send a continuous stream of data on pre-defined parameters, such as certain characteristics of products and services, availability, pricing. Data feeds are used mostly for the provision of information that is volatile over time because they allow keeping information reliable and up-to-date without any lags. See: Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 42, [Attachment ID] and Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 41, [Attachment ID].

²² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 34-52, [Attachment ID].

²³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 36-37, [Attachment ID].

websites at all, including direct answers or results for things that exist in the real world.²⁴

- (40) In the second place, Alphabet argues that OSEs do not show results for all websites for any given query. When a user inserts a query on a specific topic, an OSE only returns results for the particular type of website relevant to that query.²⁵
- (41) In the third place, Alphabet argues that OSEs and OISs overlap. Indeed, OSEs return results for queries on any subject and enable searches of in principle all websites. The fact that a particular type of search result might also be returned by an OIS does not mean that the search result is not part of an OSE.²⁶
- (42) In the fourth place, Alphabet submits that OSEs facilitate transactions by intermediating between users and suppliers. In this regard, Alphabet refers to recital 6 of Regulation (EU) 2019/1150, which, according to Alphabet, recognises that facilitating transactions is part of what an OSE does.²⁷
- (43) In the fifth place, Alphabet argues that OSEs may display results in any format and with any information. Limiting their ability to do so would hinder their ability to provide useful and effective results in response to user queries. OSEs organise their results in different ways in order to respond to different types of queries in the most effective and helpful way possible.²⁸
- (44) In the sixth place, Alphabet argues that OSEs enable users to compare results. Following a query, OSEs provide users with multiple different results, which users can then compare in order to select the one that is of particular interest to them. The way results are formatted and the information they provide help users to compare and select results.²⁹
- (45) Second, Alphabet notes that the inputs of an OSE include the queries that users issue and the data for its results that it collects via multiple different means.³⁰
- (46) In the first place, regarding user queries, Alphabet refers to Article 2, point (5), of Regulation (EU) 2019/1150 to argue that OSEs allow users to issue queries through various mechanisms beyond keyword input, including query suggestions and shortcut chips. This is, in Alphabet's view, consistent with Regulation (EU) 2019/1150's recognition that an OSE can provide different means for users to input queries.³¹

²⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 38-40, [Attachment ID].

²⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 41, [Attachment ID].

²⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 42-43, [Attachment ID].

²⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 44-46, [Attachment ID].

²⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 47-50, [Attachment ID].

²⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 51-52, [Attachment ID].

³⁰ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 53-69, [Attachment ID].

³¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 54-57, [Attachment ID].

- (47) In the second place, as to data collection, Alphabet emphasises that OSEs use multiple different means to collect data that they use to deliver search results. Indeed, crawling the Internet is only one of multiple techniques used by OSEs to gather information, and has well-documented limitations such as incomplete coverage, outdated results, and poor performance with dynamic or non-textual data.³²
- (48) In addition to crawling, Alphabet states that OSEs collect data, for instance, through licensed sources, data feeds and direct uploads.³³ This broader approach, it argues, aligns with the technology-neutral definition of OSEs under Regulation (EU) 2019/1150, as clarified in particular by recital 13 thereof, and is consistent with the Commission’s own description of OSEs.³⁴
- (49) Third, Alphabet, citing Section D(2)(b) of the Annex to Regulation (EU) 2022/1925, maintains that separate first-party services are services that are used by users for a different purpose. Thus, an element on an OSE should only be deemed a separate service if such an element is used by users for a different purpose to that of an OSE. In Alphabet’s view, assessing this question requires empirical analysis and evidence regarding, notably, user expectations, user behaviour, and the development and operation of search engines over time.³⁵

3.1.3. *The Commission’s assessment of Alphabet’s arguments*

- (50) First, as regards the output of an OSE, the Commission, in the first place, acknowledges the fact that such output may include not only search results in the form of links to websites, but also search results in any other format, including direct answers, as established in Article 2, point (23), of Regulation (EU) 2022/1925 and Article 2, point (5), of Regulation (EU) 2019/1150. Indeed, it is true that search results may be presented “in any format”. However, it is also true that, irrespective of their format, search results may contain and rank services which are distinct or additional to an OSE, as set out in recitals (32) to (37) of this Decision. This is the case, in particular, if a given group of results or dedicated unit specialised in a certain topic has specific functionalities or performs tasks that are different to or go beyond searching the Internet and delivering to users results in which information related to the requested content can be found, or is not assembled by performing searches of, in principle, all websites, or all websites in a particular language, as required by the definition of an OSE.
- (51) The Commission notes, additionally, that pursuant to Article 2, point (5), of Regulation (EU) 2019/1150, an OSE is a service that allows users to “*perform searches of, in principle, all websites, or all websites in a particular language*”. The Commission agrees with Alphabet that this sets out a minimum criterion that a service must meet in order to qualify as an OSE, in the sense that, if a service does not enable users to perform searches of, in principle, all websites, or all websites in a particular

³² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 58-63, [Attachment ID].

³³ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 64-65, [Attachment ID].

³⁴ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 66-69, [Attachment ID].

³⁵ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 70-73, [Attachment ID].

language, such a service may not qualify as an OSE. Therefore, if a given group of results or dedicated unit specialised in a certain topic is not assembled by performing searches of, in principle, all websites, or all websites in a particular language, but instead, for instance, shows only results that have not been sourced from websites at all or that have been obtained from a limited data source or pool of websites pre-defined or selected by the provider of the OSE, such a group of results or dedicated unit can constitute a distinct or additional service to an OSE.

- (52) In the second place, the Commission acknowledges the fact, put forward by Alphabet, that, when a user inserts a query on a specific topic, an OSE will only return a subset of results for websites that are most relevant to that query, and does not provide the list and relative ranking (based on the match with the query) of all websites indexed. Alphabet, however, conflates the mechanism for the retrieval of search results with the set of information shown to users. Indeed, as stated in recital (29) of this Decision, the reference contained in Article 2, point (5), of Regulation (EU) 2019/1150 according to which an OSE must allow users to “*perform searches of, in principle, all websites, or all websites in a particular language*” describes a characteristic of an OSE, namely that of returning a list of results that contain content related to the user’s query and that are retrieved from a very broad range of sources (i.e., in principle all websites). This does not however mean that, for each user query, an OSE must return the list of all websites ranked based on their relevance in relation to the query.
- (53) Additionally, Alphabet notes that, if a user searches for a specific topic (e.g., a recipe), an OSE will return results for websites that provide information on that specific topic (e.g., recipes), and not websites relating to other topics (e.g., physics). It is true that returning results sourced from, in principle all websites, limited only to the extent they have some relationship to each user query, is consistent with the definition of an OSE, whether it ranks simple blue links or specialised units. However, limiting results to those that have relevance for the query is not what the Commission refers to when describing situations where elements on the SERP are not assembled based on a search of ‘in principle, all websites’, as set out in recitals (36) - (37) of this Decision. Specifically, whereas, e.g., the simple blue links shown by Google Search on the SERP can refer users to all types of websites that provide information that is relevant and specific to the topic of each user query, there are elements ranked on Google Search which contain information that is *systematically* not sourced from ‘in principle, all websites’. For example, showing users who enter a query indicating they want to buy products results that are relevant for that purpose can be consistent with the definition of an OSE. On the other hand displaying a dedicated unit which, for example, for purposes of enabling comparison of product offers systematically shows only shopping results that are sourced from a specific pool of shopping-related websites does not show results from in principle, all websites, in particular when the websites participating in these units are pre-defined or selected by Alphabet on the basis of specific eligibility criteria selecting only shopping-related businesses that share specific data or display pre-defined website elements. Those units do therefore not meet the definition of an OSE.
- (54) In the third place, contrary to Alphabet’s assertion, the Commission does not claim that the distinct or additional services identified in this Decision, except Google Maps which was designated as such, are OISs. Nevertheless, the Commission does not

exclude that, in practice, a partial overlap may exist between OSEs and OISs or any other distinct or additional services. However, the assessment whether a particular service may be qualified as an OSE, as an OIS, or as any other type of distinct or additional service, must be carried out, in particular, in light of the purpose of such services, as defined in Regulation (EU) 2022/1925.

- (55) Moreover, in Article 2, points (2), (5) and (6), of Regulation (EU) 2022/1925, the legislator drew a clear legal distinction between the notion of an OSE and that of an OIS. The Impact Assessment of Regulation (EU) 2019/1150 also clearly points to a distinction between OSEs and other online platforms insofar as it stresses that “*Online platforms and online general search engines are distinct types of online services, with the latter indexing websites without necessarily entering into contractual relations with the website users. Online search engines also generate revenue from advertising rather than from intermediating B2C transactions and they necessarily have to index the entire Internet in order to provide a quality service (i.e. there is no room for specialisation in general search)*”³⁶. Even if both OSEs and OISs allow users to enter queries and show results consistent with that query, an important distinction exists between the purpose of an OSE, which is to search the Internet and deliver to users results in which information related to the requested content can be found, and the specialised nature of OISs, which allow users to initiate transactions for a particular type of product or service. For example, a service specialised in intermediating a specific type of transaction will, like an OSE, show different results in response to a user query to the extent that query relates to the type of transaction it specialises in. However, differently from an OSE, such a service will not use as sources all websites, but only those that are related to queries in the category of transactions it intermediates.
- (56) In the fourth place, it is true that, according to recital 6 of Regulation (EU) 2019/1150, at least in some cases, an OSE may incidentally facilitate a transaction. However, it is clear in particular from recital 10, Article 2, point (2)(b), and Article 2, point (5), of that Regulation that, while facilitating the initiation of direct transactions between business users and consumers is a constitutive part of the purpose of an OIS, this is not a part of the purpose of an OSE. This means that, if the purpose of a given digital service is to facilitate the initiation of transactions, such a service is more appropriately qualified as an OIS than it is as an OSE. Indeed, while OSEs may, in response to a transactional query, refer users to commercial websites, for the same given query they may also show many different kinds of results, from all websites that are relevant to that query. Conversely, showing results only from a pre-defined and limited type of businesses that offer a specific type of transactional offers, together with functionalities enabling users to filter, interact with, and compare search results for that type of offers facilitates the initiation of transactions. This is different from, or at least goes beyond the purpose of an OSE. The broad interpretation put forward by Alphabet, according to which, in essence, facilitating transactions would also be the purpose of an OSE, would render the legal distinction between OSEs and OISs meaningless.

³⁶ Impact Assessment of Regulation (EU) 2019/1150, SWD(2018) 138 final, pp. 13-14.

- (57) In the fifth place, the Commission acknowledges the fact that OSEs may display results in any format and with any information, as established in Article 2, point (23), of Regulation (EU) 2022/1925 and Article 2, point (5), of Regulation (EU) 2019/1150. The fact remains, however, as also explained in recital (27) of this Decision, that such search results may contain and rank services which are distinct or additional to an OSE.
- (58) In the sixth place, as regards Alphabet's argument that OSEs enable users to compare search results, it is important to make a distinction between, on the one hand, enabling users to choose among search results depending on their relevance to a user query, and, on the other, enabling users to select products or services directly on the SERP, among products or services specialised in a certain topic, based on relevant commercial parameters by filtering, interacting with, and comparing transactional offers on the SERP, with a view to initiating a transaction. While the first action relates to searching the Internet and obtaining results in which information related to the requested content can be found, and falls within the purpose of an OSE, the second one relates to transactional intermediation and goes beyond the purpose of an OSE.
- (59) Second, as regards the inputs of an OSE, the Commission, in the first place, acknowledges the fact that, pursuant to Article 2, point (5), of Regulation (EU) 2019/1150, an OSE may allow users to issue queries through various mechanisms, including for instance query suggestions and shortcut chips. Thus, the fact that a specific query mechanism is available to users is not in itself determinative of a service going beyond the purpose of an OSE. However, if, for instance, a query mechanism such as a query shortcut chip, in combination with other functionalities, enables users to filter, interact with, and compare competing transactional offers, based on relevant commercial parameters, directly on the SERP, in order to facilitate the initiation of a transaction, the existence of that query mechanism will contribute towards the conclusion that there is a service which is distinct or additional to an OSE.
- (60) In the second place, as regards Alphabet's argument that using multiple different means to collect data (including not only crawling but also, for instance, licensed sources, data feeds, and direct uploads) is consistent with the purpose of an OSE, the Commission notes that, as explained in recital (37) of this Decision, when in response to a given query Google Search returns a group of results, or dedicated unit, specialised in a certain topic, which is sourced only or predominantly through means other than searching in principle all websites, such a group of results or dedicated unit are, by definition, a distinct or additional service. The fact that certain groups of results or dedicated units displayed by Alphabet on the SERP show only results obtained from a limited data source or pool of websites pre-defined or selected by Alphabet is evidence of the presence of an additional or distinct service.
- (61) Third, the Commission agrees with Alphabet that, pursuant to Section D(2) of the Annex to Regulation (EU) 2022/1925, to determine whether a service is distinct or additional to an OSE, it should be established, in particular, whether such a service has a different purpose from that of an OSE (see recital (27) of this Decision). The Commission is of the view that such an assessment should be carried out objectively by reference to the specific functionalities or tasks that the service in question performs rather than relying on subjective user perceptions or expectations as

Alphabet claims.³⁷ Alphabet correctly points out that the Commission's assessment is not, and should in the Commission's view not be, based on evidence regarding user expectations, perceptions or behaviour.³⁸

- (62) In the first place, Article 2, point (5), of Regulation (EU) 2019/1150, which is referred to in Article 2, point (6), of Regulation (EU) 2022/1925, defines an OSE and clearly sets out the purpose and characteristics of such a service. The functionalities and tasks set out in this provision determine the purpose for which an OSE is intended to be used and can therefore be assumed to be used. If a given service is used, in view of the specific functionalities and tasks that it performs, for a purpose that is different to or goes beyond searching the Internet and delivering to users results in which information related to the requested content can be found, it should be concluded that such a service has a different purpose to that of an OSE and qualifies as a distinct or additional service under Article 6(5) of Regulation (EU) 2022/1925.
- (63) In the second place, pursuant to Article 1(1) of Regulation (EU) 2022/1925, that Regulation is meant to contribute to the proper functioning of the internal market by laying down harmonised rules. The application of harmonised rules would be impaired if the assessment of a distinct or additional service depended on user perceptions or expectations, which as these are subjective and may vary by user groups.
- (64) In the third place, user perceptions or expectations are driven by the design of Google Search as the major OSE in the Union. User expectations, perceptions, and behaviour are subjective and may be heavily influenced by the very practices covered by Article 6(5) of Regulation (EU) 2022/1925. Moreover, such perceptions and expectations may also vary by Member State and user group and are, therefore, inadequate to assess a service's purpose. The purpose of a service must be assessed by reference to its objective functionalities and tasks. Indeed, given that user perceptions are not homogeneous, relying on the latter for determining a service's purpose would risk undermining the consistent interpretation of Article 6(5) of Regulation (EU) 2022/1925. It would also imply an effects-based analysis similar to what is required for the assessment of conduct under Union competition law rules. However, as follows, *inter alia*, from recitals 5 and 11 of Regulation (EU) 2022/1925, that Regulation aims to assess the conduct of gatekeepers without requiring an effects analysis. Put simply, the fact that certain users may be accustomed to seeing a distinct service embedded in an OSE, and may not even perceive it as a distinct service anymore, does not mean that such a service ceases to be objectively distinct, if it is used for a purpose that is different to or goes beyond the purpose of an OSE.

3.2. The presence of similar services of third parties that are ranked on the SERP

3.2.1. The Commission's position

- (65) To determine whether there is non-compliance with Article 6(5) Regulation (EU) 1925/2022, it must be established whether there are similar third-party services on Google Search to Alphabet's distinct or additional services.

³⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 70, [Attachment ID].

³⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 70-73, [Attachment ID].

- (66) A third-party service is similar to a distinct or additional service offered by Alphabet when it has a similar purpose, in terms of the functionalities and tasks that it performs. Therefore, establishing similarity necessitates a comparison of the functionalities and tasks performed by Alphabet’s distinct or additional services, and the functionalities and tasks performed by the services offered by third parties.
- (67) As is apparent from its wording, the notion of ‘similar’ services of a third party, set out in Article 6(5) Regulation (EU) 1925/2022, is not limited to services that are the same or identical to services offered by the gatekeeper, but is broader.
- (68) In this context, the Commission notes that the notion of ‘similar’ services does not necessarily coincide with services belonging to the same relevant market or being substitutable for users, within the meaning of Union competition law. As recital 11 of Regulation (EU) 2022/1925 points out, this Regulation pursues an objective that is complementary to, but different from that of Union competition law, which is to protect undistorted competition on any given market. Consequently, the application of Union competition law, including competition law precedents, is without prejudice to the application of Regulation (EU) 2022/1925, for the purposes of establishing the existence of similar services to those of a gatekeeper.

3.2.2. *Alphabet’s arguments*

- (69) First, according to Alphabet, the Commission fails to establish an objective benchmark or criteria to determine whether there are third-party services that are similar to the separate first-party service at issue.³⁹
- (70) Second, Alphabet argues that the Commission does not clarify the conceptual distinction between “*similar services*” and services that belong to the same relevant market or are substitutable from the perspective of users.⁴⁰ According to Alphabet, a third-party service should only be considered “similar” if it serves the same purpose for users as the gatekeeper’s service, i.e. if it is an alternative for users.⁴¹

3.2.3. *The Commission’s assessment of Alphabet’s arguments*

- (71) First, as explained in recital (66) of this Decision, third-party services are considered similar to the distinct or additional services offered by Alphabet on Google Search when they serve a similar purpose. Contrary to Alphabet’s claims, the Commission does not disregard this assessment but explains that whenever a service provides for similar functionalities as Alphabet’s distinct or additional services, such a service should be considered as similar. This is clearly explained and even exemplified for each of the services assessed in this Decision.
- (72) Second, the Commission disagrees with Alphabet’s position that similarity should be equated with substitutability or the existence of alternatives in the sense it is used in competition law. The Commission recalls that the concept of “*similar services*” under

³⁹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 75, [Attachment ID].

⁴⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 74-75, [Attachment ID].

⁴¹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 76, [Attachment ID].

Article 6(5) Regulation (EU) 1925/2022 does not coincide with the notion of substitutability used in Union competition law.

- (73) This interpretation is supported by recitals 5, 11, and 23 of Regulation (EU) 1925/2022, which clarify that the legislator deliberately avoided using concepts emanating from competition law, referring to “market definition” in very specific instances which serve, essentially, to reject its relevance.⁴²
- (74) In conclusion, this assessment must be done considering the purpose of the service in terms of tasks and functionalities and bearing in mind that the concept of “*similar services*” is not the same as demand substitutability.

3.3. More favourable treatment in ranking and related indexing and crawling

3.3.1. The Commission’s position

- (75) To determine whether Alphabet is treating its own distinct or additional services more favourably in ranking and related indexing and crawling than similar services offered by third parties, recital 52 of Regulation (EU) 2022/1925 clarifies that more favourable treatment includes “*any form of differentiated or preferential treatment in ranking (...) whether through legal, commercial or technical means*” and that ranking in this context is to be understood as “*all forms of relative prominence, including display, rating, linking or voice results*”. Furthermore, recital 52 states that any measure that has an equivalent effect to the differentiated or preferential treatment in ranking is equally non-compliant with Article 6(5) of Regulation (EU) 2022/1925.
- (76) More favourable treatment in ranking is thus to be understood as not only including the position in the lists of search results provided by an OSE, but also any other form of relative prominence, given to the gatekeeper’s distinct or additional service. One way in which a gatekeeper may favour its own distinct or additional service in ranking occurs when the search results of an OSE contain prominent links to distinct or additional services offered by the gatekeeper and when links to similar services offered by third parties do not receive the same relative prominence.
- (77) Other examples of such relative prominence are the frequency of display, the amount of information displayed, the type of display features (for instance, pictures or featured units), and the engagement possibilities for users with the content, granted to a distinct or additional service offered by a gatekeeper, when compared to what is granted to similar third-party services ranked on the OSE.
- (78) In this context, conditioning the provision of more prominence to third parties on requirements which do not apply to the gatekeeper’s own distinct or additional services, does not eliminate favourable treatment. Specifically, if third-party providers

⁴² Recital 5 states “*It follows that the market processes are often incapable of ensuring fair economic outcomes with regard to core platform services. Although Articles 101 and 102 of the Treaty on the Functioning of the European Union (TFEU) apply to the conduct of gatekeepers, the scope of those provisions is limited to certain instances of market power, for example dominance on specific markets and of anti-competitive behaviour, and enforcement occurs ex post and requires an extensive investigation of often very complex facts on a case by case basis[...]*” emphasis added. Recital 23 relating to gatekeepers’ designation specifically refers to market definition by rejecting any justification “seeking to enter into market definition”, which could be used by gatekeepers providing core platform services.

of similar services are, without justification, required to become business partners of Alphabet in order to receive equal prominence, this does not constitute equal treatment as required by Article 6(5) of Regulation (EU) 2022/1925, but rather makes them suppliers to Alphabet's distinct or additional service.⁴³

3.3.2. *Alphabet's arguments*

- (79) According to Alphabet, the fact that Article 6(5) of Regulation (EU) 2022/1925 prohibits an OSE from treating a separate Alphabet service more favourably than a similar third-party service in ranking does not mean that search engines are required to treat third-party services identically. Rather, the second sentence of Article 6(5) of Regulation (EU) 2022/1925 clarifies the overarching requirement that ranking must be fair, non-discriminatory and transparent. For this reason and by reference to case law,⁴⁴ Alphabet asserts that more favourable treatment is only in conflict with Article 6(5) of Regulation (EU) 2022/1925 when it is arbitrary and discriminatory and emphasises the following four points to be taken into account when assessing whether there is more favourable treatment.⁴⁵
- (80) First, Alphabet argues that the non-discrimination obligation of Article 6(5) of Regulation (EU) 2022/1925 is about opportunity, not outcome. Since online search engines rank search results in response to a query, search results are necessarily treated differently. Not all results can rank in the first place and not all results will show with the same identical format. Therefore, to comply with Article 6(5) of Regulation (EU) 2022/1925, websites should have the same opportunity of appearing in search results commensurate with their relevance, quality, and ultimately utility for users, which does not mean that all results will appear in the same way, in the same rank and with the same frequency. In that context, Alphabet contends that if the Commission's reference to "*all forms of relative prominence, including the frequency of display*", is meant to suggest that OSEs must provide all similar third-party services the same, identical prominence, including how often they are shown, regardless of their relevance, quality and utility to users, this is wrong.⁴⁶
- (81) Second, because Article 6(5) of Regulation (EU) 2022/1925 does not prohibit mere different treatment, but more favourable treatment, Alphabet states that the favourable treatment must produce a tangible advantage in terms of traffic, money, data, or

⁴³ The same conclusion was reached, by analogy in the context of Union competition law, by the General Court in the judgment of 10 November 2021, Case T-612/17, *Google LLC and Alphabet Inc. v Commission*, T-612/17, EU:T:2021:763, paragraph 351: "(...) *the alternative offered to competing comparison shopping services in order for them to appear in Shopping Units, namely to act as intermediaries, also requires them to change their business model in that their role then involves placing products on Google's comparison shopping service as a seller would do, and no longer to compare products. Accordingly, in order to access Shopping Units, competing comparison shopping services would have to become customers of Google's comparison shopping service and stop being its direct competitors*". Judgment upheld on appeal in judgment of 10 September 2024, C-48/22 P, *Google LLC and Alphabet Inc. v Commission*, C-48/22 P, EU:C:2024:726.

⁴⁴ Judgment of 10 September 2024, *Google Shopping*, Case C-48/22, paras. 180, 182, 186 and 187. See also Judgment of 11 July 1974, *Union des Minotiers de la Champagne v. France*, Case-11/74, para. 22; and Judgment of 24 October 1973, *Merkur v. Commission*, Case 43/72, para. 22.

⁴⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 77-78, [Attachment ID].

⁴⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 80-81, [Attachment ID].

commercial partners for Alphabet's separate service and a commensurate disadvantage to the similar third-party service for the obligation to be violated. According to Alphabet, the objective of Article 6(5) of Regulation (EU) 2022/1925 as stated in recital 51 of that Regulation, namely to ensure that platforms do not "*undermine directly the contestability*" of separate services "*to the detriment of business users which are not controlled by the gatekeeper*" confirms this conclusion.⁴⁷

- (82) Third, Alphabet contends that the analysis of favouring must take into account relevant differences between the alleged first- and third-party services involved since for discriminatory treatment to arise, comparable things must be treated differently.⁴⁸
- (83) Fourth, Alphabet argues that the analysis of favouring needs to take into account that search engines must strike a balance between the interests of different stakeholders. In its view, this follows from Article 6(5) requiring ranking to be fair and non-discriminatory, the objective of Regulation (EU) 2022/1925 as a whole of ensuring contestability and fairness, and the general principle of proportionality. According to Alphabet, Article 6(5) of Regulation (EU) 2022/1925 does not serve the interests of a selective class of operators, such as OIS. Instead, impermissible favouring can arise only where the ranking is arbitrary and discriminatory because it deviates from its task to balance the different interests involved. Thus, in Alphabet's view, different treatment that strikes a reasonable balance between different interests is not improper favouring under Article 6(5) of Regulation (EU) 2022/1925.

3.3.3. *The Commission's assessment of Alphabet's arguments*

- (84) The Commission considers that Alphabet's interpretation of the legal test to determine whether there is favouring under Article 6(5) of Regulation (EU) 2022/1925 is flawed.
- (85) First, the Commission agrees with Alphabet that ranking results inherently involves treating various results differently because not all results can rank in the first place. The Commission also agrees with Alphabet's claim that to comply with Article 6(5) of Regulation (EU) 2022/1925, similar services should have the same opportunity to be shown prominently on the Google SERP. Therefore, if similar services offered by third parties do not have the means or possibility to obtain the same prominence under the same conditions as Alphabet's services, the conditions for equal (not less favourable) treatment pursuant to Article 6(5) of Regulation (EU) 2022/1925 are not met.
- (86) Second, Alphabet's claim that for proving favourable treatment, it needs to be shown that any differential treatment produces a tangible advantage for its services and a commensurate disadvantage for similar third-party services has no basis in the law.
- (87) As set out in recital (80) of this Decision, Alphabet has correctly identified that Article 6(5) of Regulation (EU) 2022/1925 is about equality of opportunity, not of outcome, which confirms that an analysis of the *effects* of the prominence afforded to first- and third-party services is not a requirement for the application of Article 6(5) of that Regulation.⁴⁹

⁴⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 82-84, [Attachment ID].

⁴⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 85, [Attachment ID].

⁴⁹ As also confirmed by recitals 11 and 23 of Regulation (EU) 2022/1925.

- (88) Third, the Commission agrees with Alphabet’s argument that any analysis of favouring needs to take into account relevant differences between first- and third-party services only to the extent that Article 6(5) of Regulation (EU) 2022/1925 only applies to third-party services that are similar to first-party services, as explained in recitals (65) - (68) of this Decision. Once this similarity has been established, Article 6(5) of Regulation (EU) 2022/1925 does not require any further, in-depth assessment of third parties’ differences in business models.
- (89) Fourth, with respect to Alphabet’s argument that the analysis of favouring must take into account OSEs’ need to strike a balance between the interests of different stakeholders, the Commission notes that the obligation set out in Article 6(5) of Regulation (EU) 2022/1925 addresses favouring of Alphabet’s distinct or additional services in ranking over similar services of third parties, and not favouring of any group of business users of the OSE over another. The interests of the various business users of Alphabet’s OSE will be taken into account when assessing the measures Alphabet is required to take to ensure compliance with this Decision pursuant to Article 29(6) of Regulation (EU) 2022/1925. Indeed, when applying Article 6(5) of Regulation (EU) 2022/1925, the Commission needs to take into account Alphabet’s other obligations under this Regulation, namely Article 6(12) thereof, which stipulates that Alphabet has the obligation to apply fair, reasonable and non-discriminatory general conditions of access to its OSE for business users, as well as the general principle of proportionality.

4. ASSESSMENT OF ALPHABET’S COMPLIANCE WITH ARTICLE 6(5) OF REGULATION (EU) 2022/1925 RELATING TO GOOGLE SEARCH FOR TRANSACTIONAL QUERIES

- (90) The Commission considers that the ranking of certain of Alphabet’s services compared to similar services offered by third parties on Google Search does not comply with Article 6(5) of Regulation (EU) 2022/1925.
- (91) As noted in recital (26) of this Decision, Article 6(5) of Regulation (EU) 2022/1925, applies where (i) Alphabet offers a service that is distinct from or additional to Google Search and that is ranked on Google Search; (ii) third parties offer similar services that are also ranked on Google Search; and (iii) Alphabet’s services are treated more favourably in ranking or related indexing and crawling on Google Search than those services offered by third parties.
- (92) This Decision identifies Alphabet’s non-compliance with Article 6(5) DMA regarding Google Search in relation to nine distinct or additional services provided by Alphabet, and which concern certain specific query types, as assessed in detail below. These include intermediation services provided in relation to transactional queries, where Alphabet enables the comparison of alternative offers and facilitates the initiation of direct transactions between users and businesses, in particular, when searching for products, flights, trains, hotels, restaurants or other physical locations.

4.1. Products intermediation

4.1.1. The Google SERP

- (93) As shown in Image 1, in response to a transactional query relating to a product (“product-related query”), the Google SERP displays a number of different results and

features. The results include websites of direct suppliers of products (“merchants”) including merchant platforms (e.g., Amazon Marketplace), and websites of vertical search services (“VSSs”). In the context of product-related queries, VSSs are commonly referred to as comparison-shopping services (“CSSs”). The Union Courts defined CSSs as “*specialised search services that (i) allow internet users to search for products and compare their prices and their characteristics across the offers of several different online sellers and merchant platforms, and (ii) provide links that lead (directly or via one or more successive intermediary pages) to the websites of such online sellers or merchant platforms.*”⁵⁰ Unlike merchants and merchant platforms, CSSs do not predominantly enable users to purchase products on their own website.

⁵⁰

Judgment of 10 November 2021, *Google LLC and Alphabet Inc. v Commission*, T-612/17, EU:T:2021:763, paragraphs 328, 336. See also judgment of 10 September 2024, *Google LLC and Alphabet Inc. v Commission*, C-48/22 P, EU:C:2024:726, paragraph 5.

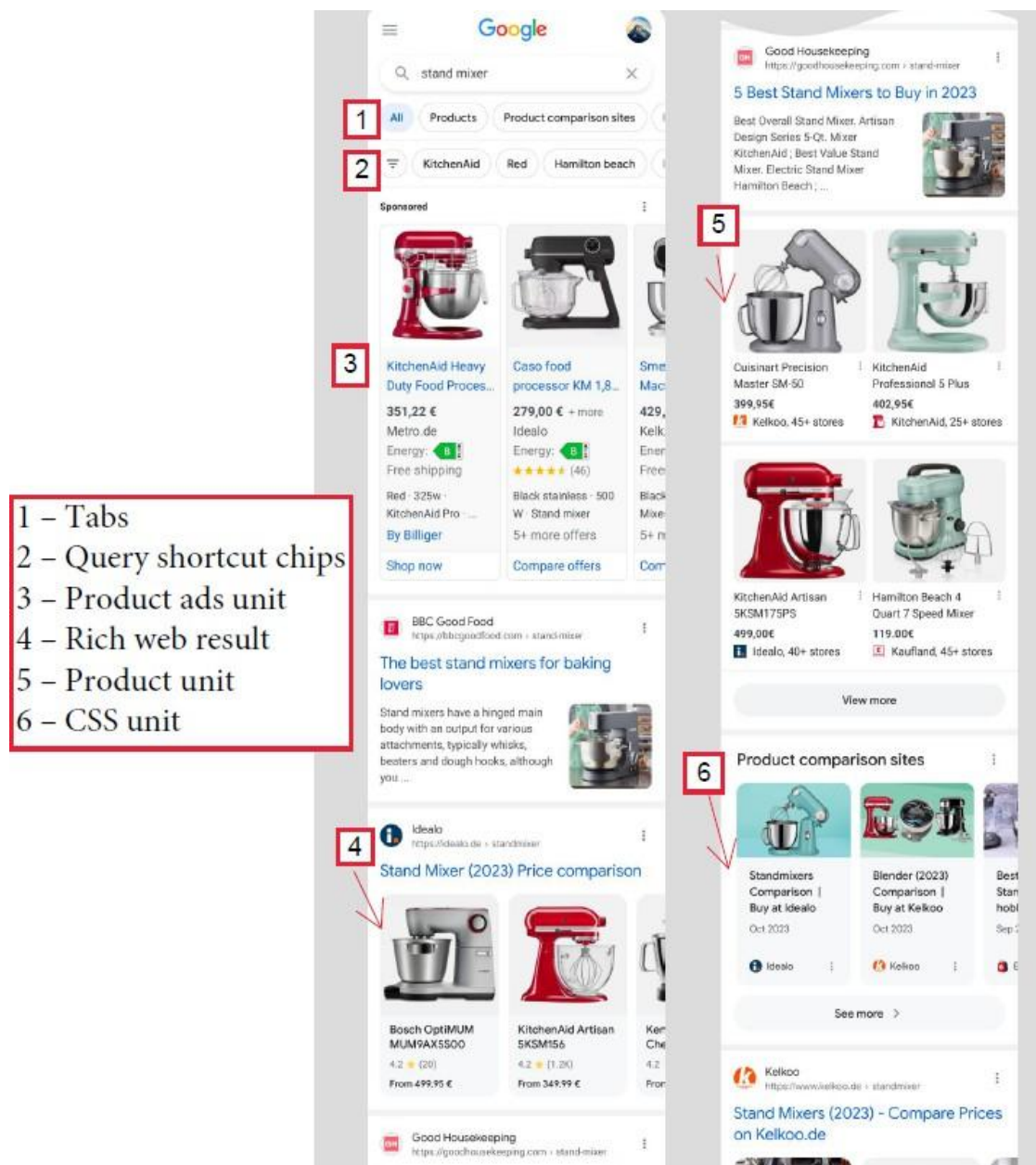


Image 1: SERP following a product-related query.⁵¹

- (94) The search results presented in Image 1, after users enter a search query in the search bar, can be split into paid results (i.e., the product ads unit at block number 3) and free results (all other results).

⁵¹ Alphabet, Mocks used by Alphabet in the DMA 6(5) Shopping Workshop on 16 January 2024 and shared with the Commission on 21 February 2024, page 5, [Attachment ID]. Numbering added. Unlike what the image suggests at number 5, in reality, the products unit does not show CSS results such as Kelkoo or Idealo, but only merchant offers. See Image 6 and Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 11, [Attachment ID].

4.1.1.1. Paid results

- (95) The SERP may display a product ads unit which is filled with multiple swipeable offers for products corresponding to the query. These paid results provide information on the advertised product such as images, prices, shipping costs, ratings, colour, material and energy efficiency.⁵² An example of a product ads unit is shown in Image 1 (block number 3) under the title ‘Sponsored’.
- (96) The product ads unit is ranked based on different algorithms and criteria than those of the free results. Free results are ranked by search algorithms based on their relevance and quality. Paid results are ranked by search ad algorithms on the basis of relevance, quality and an auction which takes the bid-level into account.⁵³ Whether the product ads unit is displayed, is determined in three steps. First, enough product ads need to pass Alphabet’s relevance and quality thresholds to assemble a product ads unit. Second, the eligible product ads compete for slots in the product ads unit on the basis of an auction. Third, the product ads unit must perform better than text ads that Alphabet could otherwise show on the SERP. If the product ads unit passes all these tests, it appears in a dedicated space on top of the SERP. If the product ads unit fails, it does not show at all.⁵⁴
- (97) Only CSSs are eligible to bid for slots in the product ads unit.⁵⁵ As a result, merchants wishing to advertise their offers in the product ads unit need to pass their inventory to a CSS of their choice and remunerate that CSS. In turn, the CSS determines for which of its merchant partners’ offers it places bids for product ads.⁵⁶
- (98) To participate in the product ads unit, CSSs must apply and meet the eligibility criteria for Alphabet’s CSS Program. When approved, Alphabet creates an account for the applicant in Alphabet’s CSS Centre. Subsequently, the CSS can set up feeds for the offers it wishes to upload. To advertise these offers, CSSs must create an account with Google Ads. There, they can set up product ads campaigns and specify criteria such as ad format, targeting criteria and budget. Once the campaign is set up, the CSS’s product ads will participate automatically in auctions for display on Google Search.⁵⁷
- (99) Alphabet’s own CSS, Google Shopping, participates in the auctions for product ads on Google Search. Merchants can choose any CSS, including Google Shopping, to advertise their offers in the product ads unit.⁵⁸ If a merchant partners with Google Shopping, its inventory will appear on Google Shopping’s website. The merchant then can submit bids, which Google Shopping (after having deducted its margin) places in

⁵² Alphabet Compliance Report 2024, Annex 11 to Section 2 – Google Search Chapter, paragraph 38, [Attachment ID].

⁵³ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 95, [Attachment ID].

⁵⁴ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 16 and 17, [Attachment ID].

⁵⁵ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 35, [Attachment ID].

⁵⁶ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 66, 82, [Attachment ID].

⁵⁷ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 39-45, [Attachment ID].

⁵⁸ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 51 et seq., [Attachment ID].

auctions for product ads on Google Search. The same principles apply for third-party CSSs. If a merchant partners with a third-party CSS, the latter can surface the merchant's inventory on its website and bid for slots in the product ads unit showcasing that inventory on Google Search.⁵⁹

- (100) CSSs can bid for two different ad formats to appear in the product ads unit on the SERP. Standard product ads are directly linked to the website of the merchant whose products the CSS advertises. From a user perspective, they are recognisable by the label 'Shop now'. By contrast, CSS ads redirect users to the website of the advertising CSS. They are labelled with 'Compare offers'.⁶⁰ As can be seen in Image 2, CSS ads included in the product ads unit are shown alongside standard product ads. For both types of ads, Alphabet is remunerated on a cost-per-click basis: For every click on a product ad or CSS ad, Alphabet invoices the CSS whose ad was clicked. In turn, the CSS may charge its merchant partner.⁶¹

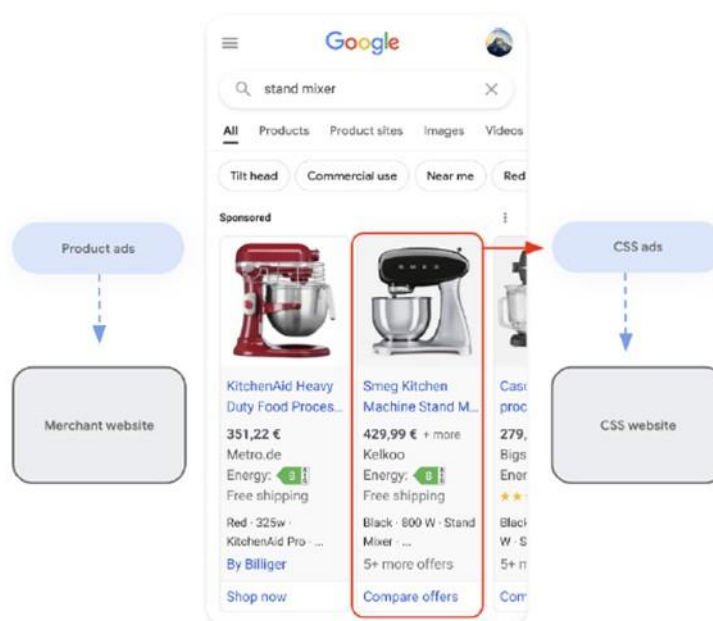


Image 2: The product ads unit with a standard product ad and a CSS ad.⁶²

- (101) In addition to this, CSSs can bid on a separate ad format called Comparison Listing Ads (“CLAs”) which is an ad format that promotes a CSS website as a whole, rather than a particular product on that website. Clicks on a CLA lead to a CSS's website showing different products matching a user's product-related query. CLAs are selected based on a separate auction that is independent from the auction for selecting ads in the product ads unit. The CLA unit is only presented when the product ads unit is

⁵⁹ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 68, [Attachment ID]; Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 2 et seq., 8, [Attachment ID].

⁶⁰ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 36, 90, [Attachment ID].

⁶¹ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 103, 120, [Attachment ID].

⁶² Alphabet Compliance Report 2024 – Google Search Chapter, p. 12, [Attachment ID].

displayed and a user clicks on the ‘Comparison Sites’ button on top of the product ads unit as shown in Image 3.⁶³

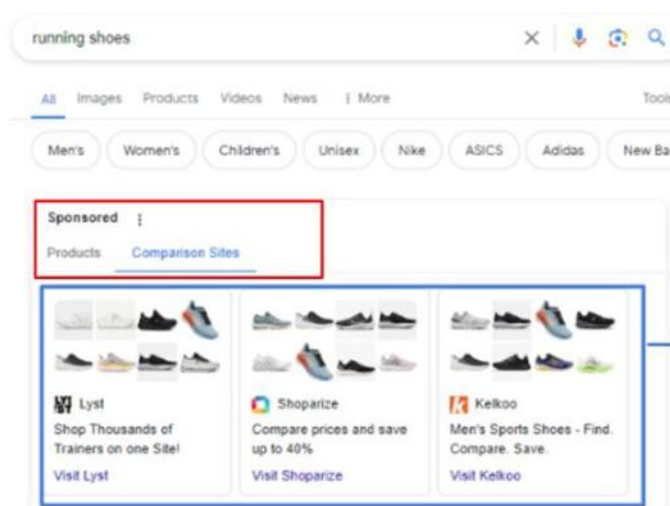


Image 3: CLAs shown after clicking the comparison sites tab on top of the product ads unit.⁶⁴

4.1.1.2. Free results

- (102) First, as depicted in Image 4, a user who has entered a product-related query is presented with a number of tabs just below the search bar. These tabs include a ‘Product comparison sites’ tab, which when clicked on allows the user to focus the free results on CSSs only.

⁶³ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 72-75, [Attachment ID].

⁶⁴ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, Annex Q7, [Attachment ID].

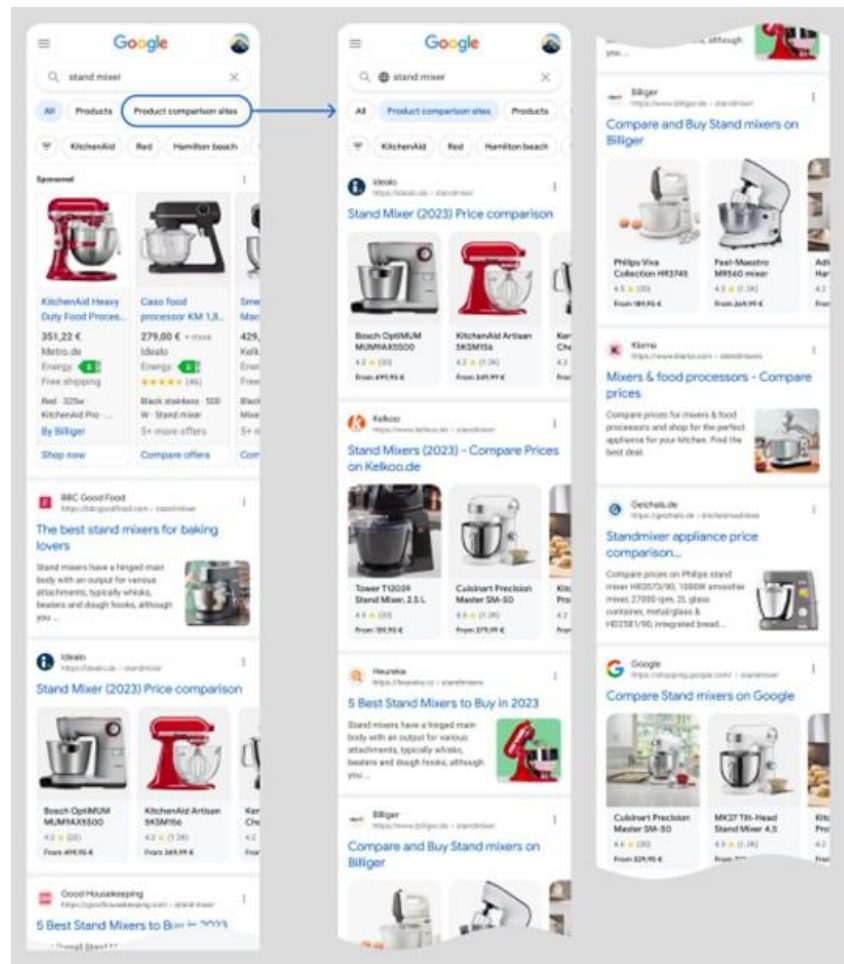


Image 4: ‘Product comparison sites’ tab.⁶⁵

- (103) As displayed in Image 5, users are also shown a ‘Products’ tab, which when clicked on allows the user to focus the free results on merchant offers only. As shown in the middle column, CSSs (e.g., Guenstiger) may still feature in the product ads unit on top of the free results, even when the user has chosen the ‘Products’ tab.⁶⁶

⁶⁵ Alphabet, Mocks provided to the Commission on 21 February 2024 and used in the DMA 6(5) Shopping Workshop on 16 January 2024, page 12, [Attachment ID].

⁶⁶ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 188, [Attachment ID].

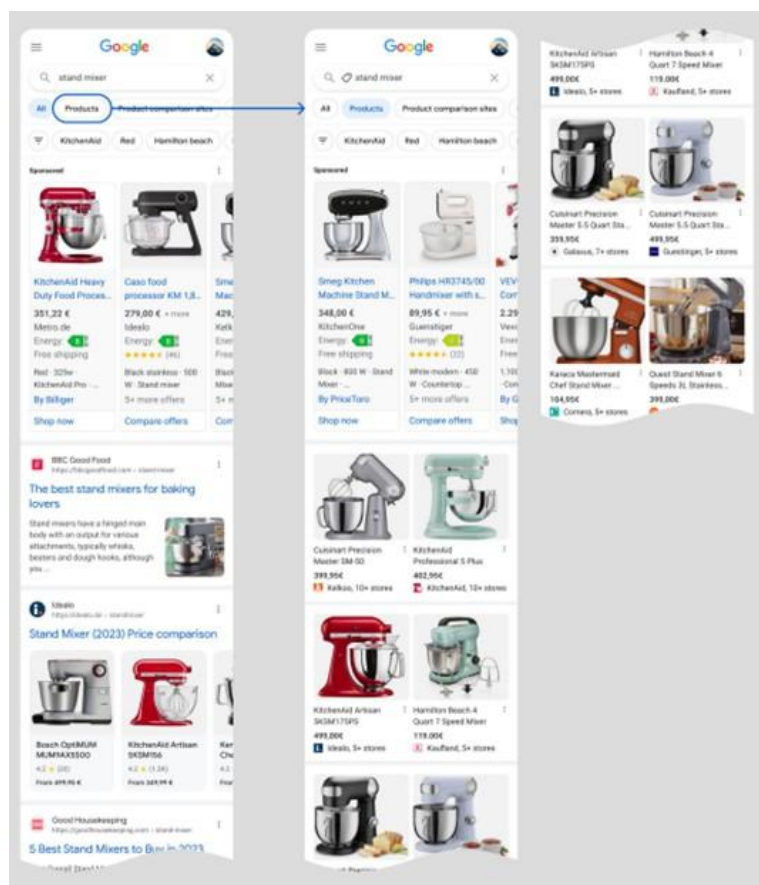


Image 5: ‘Products’ tab.⁶⁷

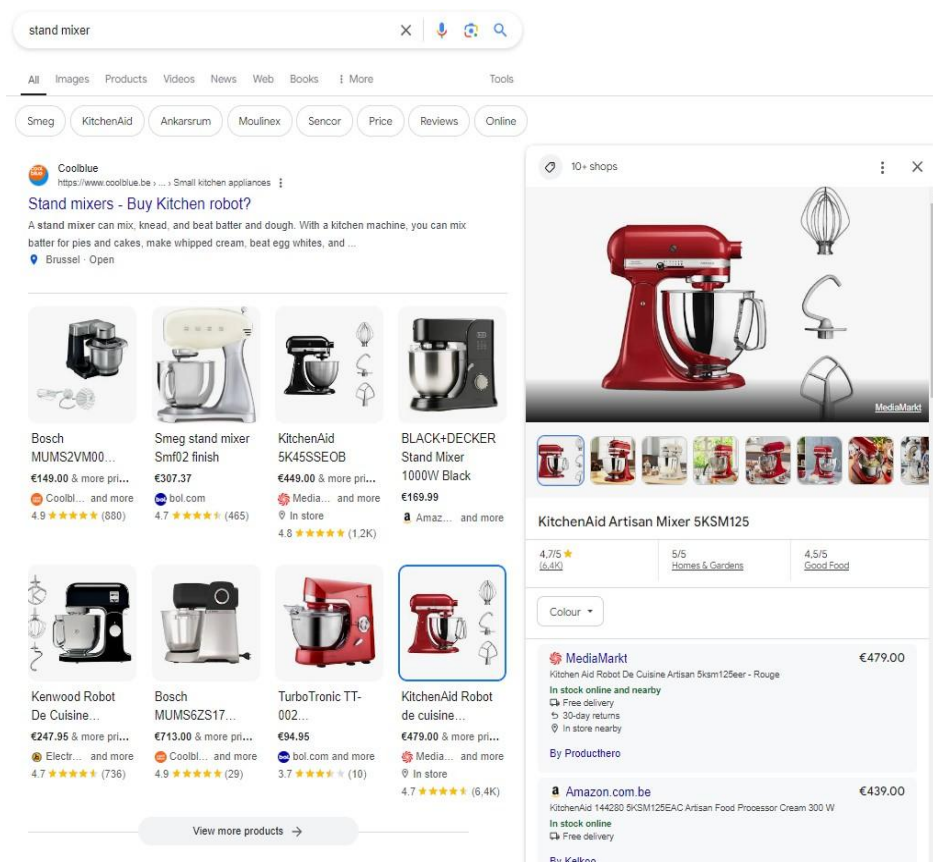
- (104) Second, as Image 1 shows, Alphabet displays query shortcut chips below the tabs. Query shortcut chips operate as a mechanism for users to add search terms to their query without having to manually type out those terms. When a user selects a query shortcut chip, Google Search issues the results of a new query with the clicked term being added to the search bar. As a result, the user is presented with a new SERP adjusted to the refined query. The available query shortcut chips change depending on the query.⁶⁸ For transactional queries, a user is presented with a row of at most eight query shortcut chips.
- (105) Third, Alphabet shows enhanced individual free web results (“rich web results”) for CSSs and merchants. As depicted in Image 1, these are enhanced formats of search results, which enable CSSs and merchants to showcase their products by showing images, star ratings, prices, and to include carousels with samples of the business’ inventory in the search results.⁶⁹ A rich web result shows only one CSS or merchant at a time.

⁶⁷ Alphabet, Mocks provided to the Commission on 21 February 2024 and used in the DMA 6(5) Shopping Workshop on 16 January 2024, page 13, [Attachment ID].

⁶⁸ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 159-167, [Attachment ID].

⁶⁹ Alphabet Compliance Report 2024 – Google Search Chapter, paragraph 40, [Attachment ID].

- (106) These results typically rely on structured data in the mark-up of a web page. CSSs and merchants can choose to mark-up their websites according to Alphabet's specifications for such query types⁷⁰ using structured mark-ups to allow Alphabet's crawlers to identify the relevant elements on their webpages to be used in rich web results. If a CSS or merchant marks up the relevant elements, Alphabet will include these elements as part of search results that it displays on Google Search for the site.⁷¹
- (107) Fourth, the SERP also shows a products unit containing offers by merchants. A products unit is depicted in Image 1 (block number 5)⁷² and on the left-hand side of Image 6. When users click on 'View more' (at the bottom of the products unit on Image 1) or 'View more products' (bottom left side on Image 6), they are directed to the products tab described in recital (103) of this Decision. As an illustration, Image 5 shows the results in the products tab that are an extended version of those displayed in the products unit shown in Image 1 (block number 5).



⁷⁰ For <https://developers.google.com/search/docs/appearance/structured-data/product-snippet#ison-ld> 2. For CSSs:
merchants: <https://developers.google.com/search/docs/appearance/structured-data/merchant-listing>. For

⁷¹ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 149, [Attachment ID].

⁷² Unlike the image suggests at number 5, in reality, the products unit does not show CSS results such as Kelkoo or Idealo. See Image 6 and Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 11, [Attachment ID].

Image 6: Product preview page following a product-related query retrieved on 11 October 2024.⁷³

- (108) As shown on the right side of Image 6, clicking on any product offer in a products unit on the SERP opens a scrollable preview page, which provides users with further information about that particular product. Below the fold, i.e. not visible in image 6, the preview page may include, depending on the exact query, a product description by the manufacturer ('about this product' section), user reviews, videos and a list of 'more options' i.e., similar offers available at merchants' websites.
- (109) As displayed in the lower right corner of Image 6 and in more detail in Image 7, the preview page also contains offer result blocks. These are lists of free results drawn from offers that CSSs have selected for appearing in offer result blocks. Offer results link either to the CSS's website or to its merchant partner's website. In the case of product-related queries, these offer result blocks can only be populated by CSSs.⁷⁴ CSSs can participate in offer result blocks free of charge. In order to feature in the offer result blocks, the CSSs need to provide data feeds via Alphabet's CSS Centre.⁷⁵

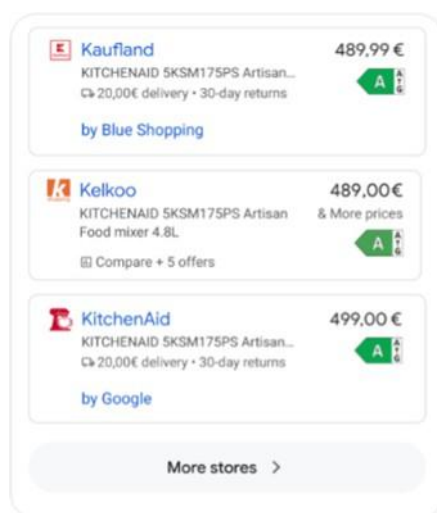


Image 7: Offer result blocks for CSSs.⁷⁶

- (110) Fifth, as depicted in Image 1 (block number 6), a user may be presented with a dedicated CSS unit containing groups of results for CSSs titled 'Product comparison sites'. Unlike rich web results, the CSS unit is populated with offers of several CSSs at a time. The results in this unit link directly to the CSSs' websites and CSSs can participate in this format free of charge. Similarly to the products unit, when users click 'See more', they are directed to the product comparison sites tab.

⁷³ Screenshot of the SERP following a query 'Stand mixer' retrieved on 11 October 2024, [Attachment ID].

⁷⁴ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 139 et seq., [Attachment ID].

⁷⁵ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 129, [Attachment ID].

⁷⁶ Alphabet Compliance Report 2024 – Google Search Chapter, page 16, [Attachment ID].

- (111) Alphabet explains that CSSs do not need to add any mark-up to their websites to be eligible to appear in CSS units.⁷⁷ However, they need to be part of Alphabet's CSS program. For admission to the program, CSSs need to meet Alphabet's eligibility criteria.⁷⁸
- (112) Rich web results, the products unit and the CSS unit are ranked based on their expected utility to users (i.e., based on relevance and quality).⁷⁹ Rich web results, offer result blocks and the CSS unit are accessible also to Alphabet's CSS, Google Shopping.⁸⁰
- 4.1.2. *Alphabet embeds and ranks on the SERP comparison-shopping services which are distinct or additional to Google Search*
- 4.1.2.1. The Commission's position
- (113) Alphabet provides two CSSs which are ranked on and embedded in the SERP but are distinct or additional to the OSE Google Search.
- 4.1.2.1.1. The product ads unit
- (114) As described in recitals (95) - (100) of this Decision, in response to product-related queries, the Google SERP returns a product ads unit grouping paid search results in the relevant product category (e.g., stand mixers as shown in Image 1). The product ads unit, which is ranked on and embedded in Google Search, provides a distinct or an additional service to an OSE because its purpose is different from, or in any event goes beyond, that of an OSE. In particular, the product ads unit has specific functionalities and performs tasks which are consistent with the purpose of a CSS, which is to allow users to search for products and compare their prices and characteristics across the offers of several merchants (see recital (93) of this Decision). This is because the product ads unit presents a group of results specialised in a certain topic with functionalities that allow users to filter, interact with, and compare competing offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers.
- (115) More precisely, the product ads unit groups multiple commercial offers in the product category searched by the user and enables the search for and comparison of product offers, as displayed in Image 2. These offers are enhanced with transactional information such as price, provider, star rating, shipping cost and product characteristics (e.g., energy efficiency, colour). This information is presented in a standardised manner, facilitating the comparison of different offers intermediated by Alphabet. Notably, the display of price information, together with other attributes and commercial information (like shipping cost) for clearly identified products, constitute

⁷⁷ Alphabet Compliance Report 2024 – Google Search Chapter, paragraphs 41 et seq., [Attachment ID].

⁷⁸ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 26, 49-54, [Attachment ID].

⁷⁹ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 15-20, 23, [Attachment ID].

⁸⁰ Alphabet's response to Questions from CSSs on Google's Initial Proposal on DMA Art. 6(5), submitted on 27 February 2024, paragraph 23, [Attachment ID].

important parameters based on which users compare offers.⁸¹ In addition, the unit points out discounted offers by displaying a ‘SALE’ or ‘PRICE DROP’ label on the top left of the product image.

- (116) Moreover, as described in recital (104) of this Decision and shown in Image 1, the SERP provides query shortcut chips that allow users to add search terms (e.g. ‘KitchenAid’). These induce users to specify which product they are searching for and updates the SERP accordingly including additional commercial information parameters for offers displayed in the product ads unit. Query shortcut chips thus help users to refine their search and tailor the product ads unit according to their demand. Query shortcut chips are discussed in more detail at Section 4.1.2.3.2.
- (117) Thus, the product ads unit performs tasks consistent with the purpose of a CSS. As explained in recital (93) of this Decision, CSSs (i) allow internet users to search for products and compare their prices and characteristics across the offers of several different online sellers and merchant platforms, and (ii) provide links that lead (directly or via one or more successive intermediary pages) to the websites of such online sellers or merchant platforms. The product ads unit connects users with CSSs and, ultimately, with CSSs’ merchant partners. By providing information such as prices, shipping cost, discounts and ratings, the product ads unit allows users to compare product offers by a large range of different merchants. Furthermore, it provides links that ultimately lead users to these merchants’ websites. The fact that users may be directed to a third-party CSS’s website, as an intermediary step, does not affect the nature of the product ads unit being a CSS, as further addressed in Section 4.1.2.3.3. Also, CSS ads (directing users to a CSS’s website) form an insignificant fraction of the ads displayed in the product ads unit whereas the vast majority of slots is taken up by standard product ads (leading directly to a merchant’s website).⁸²
- (118) In addition, the products ads unit falls outside the definition of an OSE as it does not perform searches of, in principle, all websites or all websites in a particular language, as explained in recitals (97) - (98) of this Decision, not all types of websites can appear in the product ads unit; Alphabet sources this information from a specified group of advertising partners, namely eligible CSSs and, indirectly, their merchant partners. The information in the product ads unit is therefore not assembled by performing searches of, in principle, all websites, but is limited to those websites that are eligible based on the criteria pre-defined by Alphabet and provide data feeds to Alphabet.
- (119) In summary, the product ads unit presents a group of results, specialised in a specific product category, which allows users to compare offers, including through the use of refinement mechanisms in the form of query shortcut chips, directly on the SERP. Its purpose therefore goes beyond the purpose of an OSE which is, in essence, to search the Internet and deliver to users results in which information related to the requested content can be found. Moreover, this group of results, specialised in a certain topic is

⁸¹ See e.g., Ecommerce Europe/EuroCommerce/Independent Retail Europe, “Joint retail sector statement: key principles for Google compliance with article 6(5) of the Digital Markets Act”, p. 3, [Attachment ID]: *“For online shopping, price is by far the most prominent criterion for consumers when deciding to click on a product over another”*.

⁸² Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 108 et seq., [Attachment ID].

assembled from a limited pool of websites pre-defined and selected by Alphabet, namely, CSSs which meet Alphabet's eligibility criteria and are its advertising partners, and not by performing searches of, in principle, all websites as required by the definition of an OSE. Accordingly, Alphabet provides the product ads unit which is a distinct or additional CSS, directly ranked on and embedded in the SERP.

4.1.2.1.2. The products unit

- (120) As described in recitals (107) - (109) of this Decision, in response to a query about products, the Google SERP also shows a products unit, grouping product offers relevant for that query (e.g. stand mixers). For similar reasons as for the product ads unit, the products unit, including the preview page and the option to "View more", constitutes a distinct or an additional service which is ranked on and embedded in Google Search.
- (121) In particular, the purpose of the products unit is different from, or in any event goes beyond that of an OSE, namely, it has specific functionalities and performs tasks which are consistent with the purpose of a CSS, which is to allow users to search for products and compare their prices and characteristics across the offers of several merchants.
- (122) Like the product ads unit, the products unit presents a group of results specialised in a specific topic with functionalities that allow users to filter, interact with and compare competing offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers.
- (123) More precisely, the products unit groups commercial product offers for a given product-related query and enables the search for and comparison of product offers. These offers are enhanced with detailed commercial information such as swipeable images, price, provider, colour and rating.⁸³ It also provides a special label for products on 'SALE'. This information is presented in a standardised manner, facilitating the comparison of different product offers intermediated by Alphabet.
- (124) In the case of the products unit, this is reinforced by the preview page (as seen on the right side of image 6) which resembles a product page on a CSS's website, and which as explained in recital (108) of this Decision, appears when clicking on any of the product offers. On the preview page, users are provided with a wealth of product attributes and commercial information to inform their purchase decision. This includes images, descriptions, reviews, and videos. Further details on the products are also included in the offer result blocks displayed in the preview page. By informing users about the commercial information regarding different offers such as price, shipping cost and return policy of different sales channels, the preview page facilitates the initiating of direct transactions.
- (125) Users can also refine their search by employing query shortcut chips. In addition, the preview page may include extendable pickers allowing users to indicate e.g., their preferred 'colour' in a dropdown menu. Pickers are adjusted to the product category. When searching sneakers, for example, users can pick not only the colour but also

⁸³ See also Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 34, [Attachment ID].

their size like they would do on a product page on a CSS's website. These query shortcut chips and extendable pickers allow users to filter, interact with and further compare offers.

- (126) In addition, the products unit falls outside the definition of an OSE as it does not perform searches of, in principle, all websites or all websites in a particular language. As explained in recitals (107) - (109) of this Decision, not all types of websites can appear in the products unit; only merchant offers can be displayed in the products unit, and only CSSs that meet Alphabet's criteria and have provided it with data feeds are eligible to populate the offer result blocks in the products unit's preview page. The information contained in the products unit is therefore not obtained by performing searches of, in principle, all websites as required by the definition of an OSE.
- (127) Through the page that users can access by clicking either 'View more products' or the 'Products' tab described in recital (103) of this Decision Alphabet presents users with an extended CSS occupying the whole SERP containing (other than the product ads unit) only merchant offers accompanied by the commercial information and features described above, that are typical of a CSS.
- (128) In summary, the products unit as well as its expansion in the 'Products' tab constitutes a group of results specialised in a certain topic, which allows users to compare offers, including through the use of filtering options in the form of query shortcut chips and the possibility to further compare different product offers in the preview page, directly on the SERP. Its purpose is therefore to direct users to merchants' websites and, ultimately, to facilitate direct transactions between them. As a result, the products unit has a different purpose from that of an OSE, which is, in essence, to search the Internet and deliver to users results in which information related to the query can be found, or in any event goes beyond that purpose. Moreover, these groups of results, specialised in a certain topic, are assembled from a limited pool of websites pre-defined and selected by Alphabet and not by performing searches of, in principle, all websites as required by the definition of an OSE. Accordingly, Alphabet provides a distinct or an additional service which is ranked on and embedded in Google Search.

4.1.2.2. Alphabet's arguments

- (129) In response to the Commission's Preliminary Findings and RFI⁸⁴ Alphabet brought forward arguments contesting that products unit and product ads unit are additional services on the SERP.

4.1.2.2.1. Arguments about the Commission's analysis to determine that the products unit and product ads unit are distinct or additional services

- (130) According to Alphabet, the Commission's argumentation that the products unit and the product ads unit are distinct or additional services to Google Search is based on a flawed reasoning.
- (131) First, according to Alphabet the Commission is just listing supposedly similar features⁸⁵ of third-party services without analysing whether these features really

⁸⁴ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 21, [Attachment ID].

⁸⁵ By using the word "features", Alphabet seems to be referring to features, tasks and functionalities mentioned by the Commission in the Preliminary Findings rather than different units on Google SERP.

establish the presence of a distinct or additional service. This approach allegedly ignores the fact that it is possible for different services to share the same features. The preliminary findings provide no assessment and no reasoning to explain why the allegedly overlapping features turn units into separate services.⁸⁶

- (132) Second, the Commission allegedly ignores the fact that OSEs and OISs overlap in their features and that they both facilitate the initiation of transactions.⁸⁷
- (133) Third, according to Alphabet, the assessment of whether there are separate distinct or additional first-party services, needs to be based on the purpose for which the users of an OSE use the elements under examination. But the Commission allegedly ignores evidence on the file submitted by Alphabet on whether the products unit and the product ads unit are used by users for a different purpose than they use Google Search for and fails to seek information from users to understand for which purpose the latter units are used.⁸⁸. Alphabet provides some additional evidence on this point.⁸⁹
- (134) In addition, according to Alphabet, recital 51 of, as well as the Annex to, Regulation (EU) 2022/1925, and recital 95 of the Alphabet Designation Decision stipulate that, in order to find a separate distinct or additional service, the Commission needs to prove that the product ads unit acts as a substitute for a standalone service that is distinct from Google Search. In Alphabet's view, the Commission failed to produce such evidence. To the contrary, Alphabet conducted a survey showing that users in different Member States expect an OSE like Google Search to show product ads. ⁹⁰ Moreover, the Commission's reference to recital 95 of the Alphabet Designation Decision in this context is beside the point because the Designation Decision did not identify units on Google Search as distinct services.⁹¹
- (135) Fourth, Alphabet opposes the Commission's argument that the products unit and the product ads unit are a distinct service from Google Search because they rely on non-crawled data, such as data feeds. Technical means through which OSEs obtain data to produce results are not a meaningful basis for delineating OSEs from separate services for two reasons. In the first place, the definition of OSEs does not set any limits on the technology used for collecting data. Crawling invoked by the Commission appears nowhere in the definition. In the second place, technical means through which data is collected say nothing about the purpose for which the OSE is used by users. Moreover, the same results displaying the same information can be generated with data obtained via different technical means.⁹²

⁸⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 92-95, [Attachment ID].

⁸⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 96 – 100, [Attachment ID].

⁸⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 101 – 105, [Attachment ID].

⁸⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 104, [Attachment ID].

⁹⁰ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 22 et seq., [Attachment ID].

⁹¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 103, [Attachment ID].

⁹² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 106 – 113, [Attachment ID].

4.1.2.2.2. Arguments about the features of the products unit and the product ads unit

- (136) Alphabet argues that none of the features that the Commission lists to support its view establish that the products and product ads units are distinct services and that rather, all those features are consistent with the purpose of an OSE.⁹³
- (137) According to Alphabet, the Commission lists seven features to claim that the products unit and the product ads unit are separate services. Namely, the units (i) show links to merchants and their offers; (ii) group results; (iii) display transaction-related information; (iv) allow users to search for and compare offers; (v) contain information sourced via data feeds; (vi) contain information sourced from a specified group of providers; and (vii) are displayed together with query shortcut chips on the same results page. Alphabet adds that none of these seven features, either on their own or in combination, turn the units into separate OISs.⁹⁴
- (138) First, Alphabet argues that the Commission wrongly suggests that showing results for merchants' offers that link to those merchants' websites is inconsistent with an OSE because it facilitates the initiation of transactions and is similar to what third-party OISs do. According to Alphabet, Google shows relevant results for queries on any subject and enable users to search, in principle, all websites and therefore, search engines also show results that link to suppliers and their offers when such results are relevant. Alphabet adds that some submissions from suppliers emphasize that losing the ability to appear in Google's search results and to directly connect with users through these results would be harmful to them. Finally, Alphabet adds that the idea that an OSE does not or cannot show links to merchants conflicts with the legal definition of an OSE in Article 2(5) Regulation (EU) 2019/1150 and Article 2, point (6), Regulation (EU) 2022/1925.⁹⁵
- (139) Second, Alphabet argues that an OSE can also organise search results e.g. merchant offers in groups and that the definition of an OSE itself confirms that "organising" results is part of what an OSE does. According to Alphabet, merchants confirm that presenting results for merchants in units or groups is important for showing effective search results for suppliers.⁹⁶
- (140) Third, regarding transaction-related information, Alphabet argues that the definition of an OSE in Article 2(5) Regulation (EU) 2019/1150 states that OSEs can show "any information" and return search results in "any format" and as such the information and formats search engine uses cannot possibly delineate a separate service.⁹⁷ According to Alphabet, the transaction-related information that Alphabet shows provides context for the results that helps users understand the nature of the result and choose the results that are of interest to them. Just showing blue links without any context would not be a

⁹³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 114, [Attachment ID].

⁹⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 115-116, [Attachment ID].

⁹⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 117-120, [Attachment ID].

⁹⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 121-123, [Attachment ID].

⁹⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 125-126, [Attachment ID].

meaningful search result.⁹⁸ Alphabet adds that users including some VSSs as well as several submissions from a consumer organisation confirm that the transaction-related information on the SERP is properly part of an OSE and useful for users.⁹⁹

- (141) Alphabet argues that preventing OSEs from displaying transaction-related information for merchant results runs counter to the goals of Regulation (EU) 2022/1925 to promote contestability and fairness. Alphabet adds that not displaying such information would result in offers available directly on merchants' websites, which may be cheaper or better than offers on CSSs' websites, to be hidden or obfuscated from users of Google Search.¹⁰⁰
- (142) Fourth, similar as in recital (44) of this Decision, Alphabet argues that the Commission is wrong in maintaining that enabling users to compare results goes beyond what an OSE does. Alphabet claims that OSEs enable users to compare results because they show not just one, but multiple results. Alphabet argues that Regulation (EU) 2019/1150 defines an OSE as something that "returns results" (plural) in response to queries and that engages in ranking of "search results" (plural). Therefore, OSEs also enable users to compare results for commercial offers.¹⁰¹ Alphabet argues that enabling users to compare offers because they display results for offers in groups and showing transaction-related information are legitimate parts of the tasks of an OSE.¹⁰² Suggesting that a search engine cannot enable users to compare offers implies that search engine cannot show multiple results for suppliers together with relevant information. Such interpretation would conflict with legal definitions of a search engine and ranking, and core principles how search operates.¹⁰³
- (143) Fifth, Alphabet argues that sourcing data via data feeds is consistent with an OSE's purpose because it enables it to show better results. Indeed, according to Alphabet, Regulation (EU) 2022/1925 does not preclude OSEs from using data feeds, which are merely a technical mechanism used for decades for an OSE to obtain data for the results it shows. Alphabet adds that data feeds enable OSEs to show better and more relevant results and that the Commission itself observes that "data feeds enable a more accurate display" of information. Alphabet claims that data feeds do not turn the products or product ads unit into separate services.¹⁰⁴ Likewise, Alphabet claims that

⁹⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 127-128, [Attachment ID].

⁹⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 129 [Attachment ID] and Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 21 [Attachment ID].

¹⁰⁰ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 130 [Attachment ID].

¹⁰¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 131-132 [Attachment ID].

¹⁰² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 133 [Attachment ID].

¹⁰³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 134 [Attachment ID].

¹⁰⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 135-136 [Attachment ID].

the accessibility only to a closed group of advertisers does not qualify the product ads unit as a CSS either.¹⁰⁵

- (144) Sixth, Alphabet claims that the Commission’s argument that Alphabet’s result are “not crawled from all websites as an OSE would do” is flawed, because the data for the search results shown in response to a particular query comes only from relevant websites, not from “all websites”. For example, following a health-related query, the data for the results displayed would come from relevant websites like medical websites and hospitals, and not from banking websites. Alphabet adds that collecting data via other means than crawling does not “limit” the type or number of websites for which an OSE provides results, as the Commission alleges.¹⁰⁶ Rather, relying on different technologies to obtain different data from different websites is consistent with both the legal definition of an OSE and the purpose for which users use it.¹⁰⁷
- (145) Seventh, Alphabet contests the Commission’s view that query shortcut chips contribute to the units at issue being separate OISs “only in combination” with other OIS features of these units. This is because these other features that the Commission invokes are not indicative of the units constituting separate OISs and therefore, query shortcut chips do not turn the units into OISs. Alphabet adds that query shortcut chips are part of an OSE.¹⁰⁸
- (146) In the first place, Alphabet argues that showing query shortcut chips is consistent with an OSE’s purpose because the chips are an input mechanism for users to issue queries rather than forming part of any distinct or additional services. Given that per its legal definition, OSEs enable users to input queries “in any form”, allowing users to issue new, modified queries without having to manually type them out is consistent with the purpose for which users use an OSE.¹⁰⁹
- (147) In the second place, Alphabet contends that the Commission’s file shows that both VSSs and merchants confirm that allowing users to update their queries is important and that OSEs have provided such functionality since at least 2003.¹¹⁰
- (148) In the third place, Alphabet claims that the Commission’s view regarding query shortcut chips is incorrect because they do not enable the filtering or narrowing of results as CSSs’ websites do. Instead, interacting with a query chip trigger the creation of a full new SERP with results from differing categories relevant for the query. Alphabet also argues that query shortcut chips do not interact with and add to the functionality of the units and that query shortcut chips are independent of any particular result elements on a page.

¹⁰⁵ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 25, [Attachment ID].

¹⁰⁶ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 137-139 [Attachment ID].

¹⁰⁷ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 141 [Attachment ID].

¹⁰⁸ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 142-143 [Attachment ID].

¹⁰⁹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 144 [Attachment ID].

¹¹⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 145 [Attachment ID].

- (149) In the fourth place, Alphabet also adds that the Commission argues that the query shortcut chips compound when users issue multiple queries. But the Commission has evidence on file demonstrating that users do not use multiple query shortcut chips: they almost never click on multiple chips sequentially. Alphabet also claims that, while CSSs offer a large set of refining and filtering options, the SERP offers a limited set of eight query shortcut chips for product queries.¹¹¹
- (150) Eighth, Alphabets claims that neither the product unit nor the product ads unit has functionality of their own that could enable them to operate as a separate OIS.
- (151) In the first place, with regard to the Commission’s argument that the units do not need to provide all functionality of an OIS to be distinct, Alphabet argues that if the product unit and product ads units are not substitutes for an OIS and do not have full OIS functionality, they cannot be a separate OIS.¹¹²
- (152) In the second place, Alphabet contends that the product unit and product ads units have no functionality *at all* that is separate from Google Search and specific to an alleged separate service. In particular, the units provide no means for users to issue a request to the alleged embedded service, nor do they have mechanisms to filter or sort the results in the unit. The mechanisms that Google Search provides for users to issue queries are all mechanisms for issuing queries to its OSE. Alphabet adds that for a full separate service to be embedded on a platform, that service would have to provide all the constituent functionalities of the separate service. These units, according to Alphabet, cannot be dissociated from Google Search and cannot operate as separate services.¹¹³

4.1.2.2.3. Arguments about the products unit and product ads unit being a means to show better results

- (153) Alphabet contests that the product ads unit and the products unit constitute distinct or additional services because these units serve the purpose of an OSE by showing relevant results that respond to users’ queries and by presenting the results in formats that help users find what they are looking for.¹¹⁴
- (154) Regarding the product ads unit, Alphabet claims, first, that it is a box that shows product ads. According to Alphabet, product ads are a better ad format, in terms of costs and effectiveness, than standard text ads (which Alphabet would show if it would remove the product ads unit). According to Alphabet, the benefits of the product ads unit are confirmed by submissions from merchant associations and CSSs on the Commission’s file.¹¹⁵

¹¹¹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 146 [Attachment ID] and Alphabet, Paper discussing Google’s 6(5) compliance solution for query shortcut chips - Annex 1 - Google Query Shortcut Chips vs. VSS filters, [Attachment ID].

¹¹² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 149 [Attachment ID].

¹¹³ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 149-151 [Attachment ID].

¹¹⁴ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 152, [Attachment ID].

¹¹⁵ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 153-154, [Attachment ID].

- (155) Second, Alphabet submits a survey to substantiate that most users in Ireland, France and Germany expect an OSE to show product ads. In Alphabet’s opinion, the Commission failed to adduce evidence from users to draw a different conclusion.¹¹⁶
- (156) Third, Alphabet argues that the product ads unit does not constitute a CSS because it operates differently from third-party CSSs. Since 2017, the unit is open to all interested CSSs to comply with the Commission’s *Google Shopping* decision. Since March 2024, Alphabet allows CSSs to link either to their own site or to the websites of their merchant partners to ensure compliance with Regulation (EU) 2022/1925. Given that CSSs can choose between these options, it is immaterial that *de facto* most ads in the unit link to merchants’ websites. The distinction between the product ads unit and a CSS is not called into question by the broad definition of a CSS in the General Court’s ruling. The ruling concerned the situation before Alphabet introduced the above-mentioned changes to the product ads unit and, in any event, the definition simply refers to the one in the Commission’s decision. In that decision, the Commission did not treat the product ads unit as a CSS and, the “*Court of Justice, in turn, found that product ads ‘boxes do not constitute an infrastructure that is separate’ to Google Search*”.¹¹⁷
- (157) As regards the products unit, Alphabet insists that showing relevant results for product queries is consistent with the purpose of an OSE. Product *offers* are not shown in the products unit but on its preview page. Like the product ads unit, the products unit operates differently from a CSS as it is open to all interested CSSs and a CSS can choose whether its offer result blocks link to the CSS’s website or to its merchant partners’.¹¹⁸

4.1.2.3. The Commission’s assessment of Alphabet’s arguments

4.1.2.3.1. Arguments about the Commission’s analysis to determine that the products unit and product ads unit are distinct or additional services

- (158) The Commission did not err in its analysis when establishing that the products unit and the product ads unit are distinct or additional services to Google Search for the following reasons.
- (159) First, contrary to Alphabet’s assertion, the Commission does not determine the existence of a distinct service simply based on such service having features that are also present in third-party services. Instead, the Commission’s assessment in this Decision is based on an examination of whether a given group of results or dedicated unit specialised in a certain topic present on the SERP is different or goes beyond an OSE in terms of its purpose or the definition of an OSE. More specifically, for each of the groups of results or dedicated units specialised in a certain topic, the Commission assesses whether it presents a series of functionalities or performs tasks that, individually or in combination, allow users to filter, interact with, and compare

¹¹⁶ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 155, [Attachment ID].

¹¹⁷ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 156-161, [Attachment ID], citing judgment of 10 September 2024, C-48/22 P, *Google LLC and Alphabet Inc. v Commission*, C-48/22 P, EU:C:2024:726, paragraph 105.

¹¹⁸ Alphabet’s response to the preliminary findings, submitted on 16 May 2025, paragraphs 162-163, [Attachment ID].

competing offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers.

- (160) Moreover, this assessment does not exclude the possibility that different services can share some of the same features. In fact, as explained in recital (27) of this Decision, all results or outputs that the OSE Google Search shows on its SERP, regardless of their format or type and irrespective of the means through which users access such results or the type of device they use, constitute search results. Such search results may contain and rank services which are distinct or additional to an OSE. In other words, contrary to Alphabet's assertions, a specific feature shown on the SERP may at the same time be part of an OSE and of a distinct or additional service to an OSE. The distinguishing factor for the finding of a distinct service is not assessed based on individual features taken in isolation but is assessed taking account of the context and the combination of features provided. Query shortcut chips are an example of such a feature. On the one hand, as explained in recital (59) of this Decision, when query shortcut chips, in combination with other functionalities, are used to filter, interact with, and compare results for a given group of search results or dedicated unit specialised in a certain topic with a view of facilitating the initiation of transactions between businesses and consumers, this is evidence that there is a service whose purpose is different or goes beyond that of an OSE and, which is, therefore, distinct or additional to an OSE. These same query shortcut chips can be used to filter non-specialised search results on the SERP, which do not contain transaction-relevant information, whose purpose is to search the Internet and deliver to users results in which information related to the requested content can be found. Therefore, these same chips can be a feature of an OSE as well as of a distinct or additional service on the SERP.
- (161) Second, contrary to Alphabet's claim, the Commission does not exclude that, in practice, OSEs and OISs may overlap in their features and that an OSE may facilitate transactions. First, the Commission does not claim that products unit and product ads unit are OISs and such an assessment and conclusion is not required to prove that a service is distinct or additional to an OSE. However, the Commission does find that the purpose of these distinct or additional services is that of a CSS, which is ultimately the facilitation of initiation of transactions and which in turn is also the purpose of an OIS. Second, as explained in recital (160) of this Decision, different services can share some of the same features. The same applies to OSEs and OISs. Third, as explained in recitals (55) and (56) of this Decision, the Commission bases its assessment of the existence of a distinct service also on the fact that the legislator draws a clear legal distinction between the notion of an OSE and that of an OIS, based on their purpose. The broad interpretation put forward by Alphabet, according to which, in essence, facilitating transactions would also be the purpose of an OSE, would render the legal distinction between OSEs on the one hand, and OISs and services which have the same purpose as OISs on the other hand, meaningless.
- (162) In particular, while facilitating the initiation of direct transactions between business users and consumers is a constitutive part of the purpose of an OIS, this might be what an OSE incidentally does in some cases but is not a constitutive part of its purpose. As explained in recital (58) of this Decision, it is important to make a distinction between,

on the one hand, enabling users to choose among search results depending on their relevance to a user query, and, on the other, enabling users to select offers from among products or services specialised in a certain topic, by filtering, interacting with, and comparing them based on commercially relevant criteria, with a view to initiating a transaction. While the first action might incidentally facilitate the initiation of direct transactions, its purpose is to search the Internet and deliver to users results in which information related to the requested content can be found, the second one has the purpose of initiation of direct transactions, which goes beyond the purpose of an OSE.

- (163) Third, Alphabet correctly points out that the Commission’s assessment is not based on evidence regarding user expectations, perceptions or behaviour. This is because, as explained in recitals (61) - (64) of this Decision, such information is subjective, may be biased, may vary by user group and is, therefore, inadequate to assess a service’s purpose. This purpose therefore must be assessed by reference to its objective functionalities and tasks. The contrary would risk undermining consistent interpretation of Article 6(5) of Regulation (EU) 2022/1925. Furthermore, the fact that certain users may be accustomed to seeing a distinct or additional service embedded in an OSE does not mean that such a service ceases to be distinct from or additional to an OSE, if it is used by end users for a purpose that is different or goes beyond the purpose of an OSE.
- (164) Additionally, Article 6(5) Regulation (EU) 2022/1925 does not require that the product ads unit acts as a substitute for a standalone service. In line with the Annex to Regulation (EU) 2022/1925 and the Alphabet designation decision,¹¹⁹ to which Alphabet refers and which it has not contested, for the purposes of Article 6(5) of that Regulation and in relation to the Google Search OSE, the Commission considers as ‘distinct or additional’ those services (i) that either fall in a different category of CPS or; (ii) that serve a different purpose from that of an OSE. As explained in recitals (114) - (119) of this Decision, the Commission found that the product ads unit serves a different purpose from that of an OSE. The finding of a distinct or additional Alphabet service does not require a substitutability assessment as Alphabet erroneously claims.
- (165) Moreover, the Commission’s reference to recital 95 of the Alphabet Designation Decision is relevant in this context because it sets out criteria for determining distinct or additional services for the purposes of Article 6(5) Regulation (EU) 2022/1925.
- (166) In any event, assuming that Alphabet’s evidence submitted for this purpose¹²⁰ is correct, it only suggests that users expect an OSE like Google Search to show product ads and products units. However, this finding does not rule out that these units, in combination with other features provided on the SERP, are distinct or additional services to Google Search or that users do not use them for a purpose that is different or goes beyond that of an OSE. It simply reports that users might expect to be shown a product ads and a products unit along the results of Google Search.
- (167) Fourth, the Commission’s argumentation that the products unit and the product ads unit rely on non-crawled data, such as data feeds, indicates that those units provide distinct or additional services, is sound. In the first place, Alphabet contradicts itself

¹¹⁹ Decision C(2023) 6101 final, recital 95.

¹²⁰ Alphabet’s response to the preliminary findings, submitted on 16 May 2025, paragraph 104, [Attachment ID].

when saying that the same information can be generated using crawling and data feeds.¹²¹ In fact, according to Alphabet, data feeds are one of the components that are necessary for displaying the products unit in its current form and without them the results would be of a lower quality.¹²² This implies that the results would be different if only crawled data were used. In the second place, contrary to what Alphabet is alleging, the Commission does not claim that technological means through which data is collected is a decisive factor for finding of a distinct service. As explained in recital (60) of this Decision, one distinguishing factor for the finding of a distinct service is whether a given group of results or dedicated unit specialised in a certain topic is assembled by performing searches of, in principle, all websites, or all websites in a particular language, as required by the definition of an OSE. If instead such a group of results or dedicated unit shows only results obtained from a limited data source or pool of websites pre-defined or selected by Alphabet through, for example, data feeds, this is evidence of the presence of a distinct or an additional service. For producing products unit and product ads unit, Alphabet uses data feeds from a limited pool of websites pre-defined and selected by Alphabet. Therefore, this is one of the reasons based on which the Commission concludes that these units are distinct or additional to Google Search.

4.1.2.3.2. Arguments about the features of the products unit and product ads unit

- (168) Alphabet's assertion set out in recitals (136) - (152) of this Decision, that the features that the Commission lists, on their own or taken together, fail to establish that the products unit and the product ads unit are distinct or additional services from its OSE Google Search, is wrong. The Commission establishes that the products unit and product ads unit are distinct or additional services to an OSE because these dedicated units specialised in a certain topic, have functionalities and perform tasks, which taken together go beyond the purpose of an OSE and because they fall outside the definition of an OSE.
- (169) First, the Commission does not argue that linking to suppliers' websites is inconsistent with the purpose of an OSE. On the contrary, as set out in recital (29) of this Decision, the purpose of an OSE is, in essence, to search the Internet and deliver to users results in which information related to the requested content can be found. The Commission's position is rather that the provision of links to merchant's websites (directly or via a CSSs' website) together with specific functionalities or tasks performed directly on the SERP by the products unit and the product ads unit is inconsistent with the purpose of an OSE since their purpose is transactional intermediation. Moreover, these links can only be provided by a limited pool of websites, which are pre-defined and selected by Alphabet, instead of in principle, all websites as required by the definition of an OSE.
- (170) Second, with respect to Alphabet's argument set out in recital (139) of this Decision, the Commission acknowledges that OSEs can and do organise search results in varying formats, however, such search results nevertheless may be distinct or additional to an OSE if they are specialised in a certain topic and have functionalities

¹²¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 112, [Attachment ID].

¹²² See, for example, Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 113 and 288 a), [Attachment ID] and Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 32, [Attachment ID].

or perform tasks that, individually or in combination, allow users to filter, interact with, and compare competing offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers or when they are not assembled by performing searches of, in principle, all websites. For instance, dedicated units such as the products unit or product ads unit have specific functionalities, which enable users to perform various tasks directly on the SERP such as comparing product characteristics, viewing prices, checking availability or navigating between commercial offers with a view to initiating transactions. In this case, the purpose of these units goes beyond searching the Internet and delivering to users results in which information related to the requested content can be found. Moreover, these results are not assembled by performing searches of, in principle, all websites, but are based on a limited pool of websites pre-defined and selected by Alphabet.

- (171) Regarding Alphabet's argument about merchants considering the presentation of results in units or groups as important for showing effective search results, as explained in recitals (28) and (64) of this Decision, examining whether a service is used by businesses as a service distinct or additional to an OSE requires an assessment of the service's objective purpose, rather than subjective perceptions or beliefs of its users. Moreover, as just noted organisation of results in groups is not something that is objected to by the Commission in itself.
- (172) Third, with respect to Alphabet's argument in recital (140) of this Decision, the Commission acknowledges that OSE may display results in any format and with any information but such search results may nevertheless contain and rank services which are distinct or additional to an OSE, as noted in recital (57) of this Decision. When showing products units or product ads units, Google Search shows groups of results specialised in a certain topic, displayed along with the results of an OSE. Those units allow users to compare different offers on SERP with a view of initiating transactions. Therefore, regardless of whether transaction-related information helps users to better understand the search results, the objective functionalities these units perform tasks that go beyond the purpose of an OSE, and Alphabet's argument must therefore be rejected.
- (173) The Commission disagrees with Alphabet's contention in recital (141) that the reduced availability of transaction-relevant information on Google Search runs counter to the objectives of fairness and contestability enshrined in Article 1(1) of Regulation (EU) 2022/1925. On the contrary, the conduct described in Article 6(5) of Regulation (EU) 2022/1925, whereby a gatekeeper treats more favourably its own services compared to similar services of a third party as explained in Section 4.1.4 limit contestability and are unfair.
- (174) The effects on users of the application of Article 6(5) of Regulation (EU) 2022/1925 is immaterial to assessing the existence of a distinct service on the SERP as explained in recitals (28) and (64) of this Decision.
- (175) Fourth, regarding Alphabet's argument, set out in recital (142) of this Decision, the Commission is correct that, in the case of the products unit and the product ads unit, enabling users to compare product offers goes beyond what an OSE does. As explained in recital (58) of this Decision, there is a distinction to be made between, on

the one hand, enabling users to choose among search results depending on their relevance to a user query and, on the other enabling users to select among product offers from merchants and CSSs, based on the same commercial parameters with a view of initiating transactions. As described in recital (93) of this Decision, CSSs allow users to compare products across number of different online sellers on the basis of their prices and other product-specific characteristics. The product unit and product ads units have exactly those functionalities and perform those tasks.

- (176) Fifth, contrary to what Alphabet is alleging, the Commission does not consider that sourcing data via data feeds is not consistent with the purpose of an OSE per se. Instead, the Commission notes that, as explained in recital (60) of this Decision, a distinct or additional service to an OSE is shown when a given dedicated unit specialised in a certain topic is not assembled by performing searches of, in principle, all websites. In this case, in response to a product-related query, the product ads and products units show results obtained from a limited pool of websites pre-defined and selected by Alphabet and that have opted in to providing data feeds to Alphabet as explained in recital (118) of this Decision. Therefore, the decisive factor for finding of a distinct service in this case is the fact that the dedicated units in question are assembled based on data feeds that are provided by a limited pool of websites pre-defined and selected by Alphabet instead of by searching, in principle, all websites. In addition, as explained in recital (118) Alphabet sources information from CSSs and therefore, information in the product ads unit is not assembled by performing searches of, in principle, all websites as required by the definition of an OSE.
- (177) Sixth, as regards Alphabet's argument in recital (144) of this Decision that the data for the search results shown in response to a particular query comes only from relevant websites and not from "all websites", the Commission notes that, as explained in recital (53) of this Decision, returning results from in principle all websites, limited only to the extent they have some relationship to a user's query, is not the same as presenting grouped results or dedicated units in a specific topic, which *systematically* show information not sourced from 'in principle, all websites' and whose purpose is to compare offers and thereby facilitate initiation of transactions. More precisely, the products and product ads unit inherently and only show results retrieved from merchants and CSSs' websites, since, as set out in recital (126) of this Decision, only CSSs who have opted into providing data feeds to Alphabet are eligible to participate in the offer result blocks contained in the products unit, and only CSS websites who have successfully applied previously to Alphabet's CSS program can place product ads in the product ads unit. This means that, regardless of the query, these units are never populated by searching 'in principle, all websites'. Furthermore, as described in recitals (114) - (118) and (122) - (127) the fact that these units are assembled based on data feeds from a limited pool of websites, allows for a comparison of transaction-relevant information within those units, which goes beyond the purpose of an OSE..
- (178) Seventh, regarding Alphabet's arguments about query shortcut chips set out in recitals (145) - (147) of this Decision, the Commission notes that, as explained in recital (59) of this Decision, the availability of query shortcut chips to users is indicative of the existence of a distinct or additional service to an OSE because these chips, in

combination with other functionalities, allow users to perform tasks which go beyond the purpose of an OSE.

- (179) Indeed, as regards the product ads unit and the products unit, the Commission notes that, as explained in recitals (116) and (125) of this Decision, query shortcut chips provide an additional means to interact with these units and, in particular, to filter transaction-relevant information, thereby adding CSS-like functionalities to the units and performing tasks of a CSS.
- (180) In the first place, the fact that query shortcut chips can serve as a means to input search queries without having to type as set out in recital (146) of this Decision, has no bearing on the assessment of whether such chips can also be used to filter and compare product offers on the basis of relevant parameters.
- (181) In the second place, regarding Alphabet's argument in recital (147) of this Decision that certain stakeholders believe query shortcut chips to be an important part of an OSE and that OSEs have provided such a functionality since 2003, the fact remains that, as explained in recitals (28) and (32) of this Decision, one of the decisive factors for the assessment to determine whether a service is distinct or additional service to an OSE is by reference to its purpose, in particular in terms of the functionalities and tasks that the service in question performs and not subjective perceptions or beliefs. The data from the last 15 years show that Alphabet has consistently held a very large share of the European search market, remaining between roughly 88–95% throughout the entire period.¹²³ Therefore users have become deeply accustomed to how Google Search looks and operates, and that they might expect to be shown query shortcut chips on the SERP. However, this finding does not rule out that these chips, in combination with other features of the units in question, turn these units into distinct or additional services to Google Search or that users do not use them for a purpose that is different or goes beyond that of an OSE.
- (182) In the third place, contrary to Alphabet's claims, query shortcut chips allow users to filter and narrow down the offers displayed in the products unit and product ads unit. Because these units only include results from a limited type and pool of websites as set out in section 4.1.1 and in recital (118) of this Decision, interactions with query shortcut chips do narrow down the pool of results shown. This is also evident when one searches for e.g., a "kitchen mixer" on Google Search. Once such query is issued and "Smeg" query shortcut chip is selected, products unit presents only Smeg (brand) kitchen mixers. This indeed proves that those chips interact with the product ads and products units by filtering the results.
- (183) In the fourth place, regardless of how often users click on query shortcut chips, the functionality itself is designed to allow users to select multiple chips to refine and filter their results continuously on the SERP.
- (184) Lastly, regarding Alphabet's argument that it only includes eight query shortcut chips it must be noted that new query shortcut chips are displayed following every refinement of a query, which compounds the number of chips shown for each query. The initial number of query shortcut chips displayed is therefore not determinative for the assessment.

¹²³ <https://gs.statcounter.com/search-engine-market-share/all/europe#monthly-200901-202511>

- (185) Eighth, Alphabet’s claim set out in recitals (150) - (152) of this Decision that neither the product unit, nor the product ads unit provide full functionality of an OIS and, therefore, are not distinct from Google Search, is incorrect.
- (186) In the first place, as explained in recital (54) of this Decision, the Commission does not claim that the product unit or product ads unit are OISs. Nevertheless, the Commission does not exclude that, in practice, an overlap may exist between OSEs and other distinct services. The assessment whether a particular service may be qualified as an OSE or as other type of distinct or additional service must be carried out, in particular, in light of the purpose of such services. In this case, the specific functionalities or tasks performed by the products unit and product ads unit are inconsistent with the purpose of an OSE as set out in recitals (113) - (128) of this Decision.
- (187) In the second place, Alphabet’s argument that the products unit and product ads unit are not distinct from Google Search because they do not have any separate means for users to issue a query to Alphabet’s distinct CSSs nor have any separate mechanisms to filter or sort results in the units, is irrelevant as it is not determinative for finding of a distinct or additional service. In fact, as set out in recital 51 of Regulation (EU) 2022/1925 distinct or additional services may be partly or entirely embedded in or displayed along search results. Therefore, the fact that an OSE and a distinct or additional service, which is partly or entirely embedded in its search results use the same means to issue queries, or filter and sort results cannot by itself imply that such a service is not distinct or additional.

4.1.2.3.3. Arguments about the products unit and product ads unit being a means to show better results

- (188) The Commission disagrees with Alphabet’s view that the product ads unit serves the purpose of an OSE. While the Commission does not contest that the unit helps users find products corresponding to their query, the purpose of the product ads unit goes beyond searching the Internet and delivering to users results in which information related to the requested content can be found. As explained in recital (119) of this Decision, the unit has specific functionalities and performs tasks that enable not only the search for product offers but also their comparison directly on the SERP. This is not called into question by Alphabet’s arguments.
- (189) First, it is not decisive for the application of Article 6(5) of Regulation (EU) 2022/1925 whether Alphabet’s own service is beneficial to one user group or another. The legislator deliberately opted against allowing for this sort of efficiency defence in the application of that Regulation.¹²⁴ In any event, as set out in Section 10 of this Decision, Alphabet is not required to remove the product ads unit altogether. To comply with Article 6(5) of Regulation (EU) 2022/1925, it would be sufficient for

¹²⁴ See the recitals of Regulation (EU) 2022/1925 seeking to avoid ‘an extensive investigation of often very complex facts on a case by case basis’ (recital 5), ‘the possibility of undertakings to make efficiency and objective justification arguments’ (recital 10) and ‘[a]ny justification on economic grounds seeking to [...] demonstrate efficiencies’ (recital 23); Commission impact assessment report accompanying the document proposal for a Regulation of the European Parliament and of the Council on contestable and fair markets in the digital sector (Digital Markets Act), SWD(2020)363 final, 15 December 2020, paragraph 158.

Alphabet to remove certain product-comparison functionalities of the product ads unit or to extend the prominence given to that unit to similar third-party services.

- (190) Second, the alleged expectation by users that Google Search shows product ads does not prevent the application of Article 6(5) of Regulation (EU) 2022/1925.
- (191) In the first place, as explained in recitals (61) - (64) of this Decision, the delineation between services is a legal question rather than an empirical one. The Commission applied an objectivised test to determine the purpose of the product ads unit from a user perspective. To this end, the Commission examined the purpose by reference to the functionalities and tasks performed by the service in question (see recital (28) of this Decision).
- (192) In the second place, a service can be distinct from Google Search regardless of whether users expect to find it there. In the same vein, YouTube and Google Maps are distinct from Google Search although they commonly feature on the SERP.
- (193) In the third place, as emphasised by Alphabet itself, Google Search displays and develops product ads since 2008 and has not ceased doing so by the time of adoption.¹²⁵ If a long-standing integration of services with Google Search would mean that these services are no longer distinct, the application of Article 6(5) of Regulation (EU) 2022/1925 could be entirely undermined by a gatekeeper's past practice even if such practice became unlawful.
- (194) Third, the Commission disagrees with Alphabet's view that the product ads unit does not constitute a CSS.
- (195) In the first place, the product ads unit allows users to compare products regardless of whether the offers are brokered by CSSs through whose websites the clicks are routed. Accordingly, the General Court confirmed that a CSS may "*provide links that lead (directly or via one or more successive intermediary pages)*" to the websites of online sellers or merchant platforms.¹²⁶ Unlike Alphabet suggests, the General Court did not simply refer to the Commission's definition of a CSS. The General Court found that "*[i]n the present case, it is appropriate to adopt the definition of a comparison shopping service [...], which, moreover, has not been called into question by Google*".¹²⁷ While it is true that Alphabet tweaked the product ads unit in the meantime, these changes do not take the product ads unit outside the scope of the definition of a CSS.
- (196) In the second place, the distinction between the OSE Google Search and the product ads unit is not called into question by Alphabet's reference to the Court of Justice's ruling. A comprehensive reading of the quote reveals that product ads "*do not constitute an infrastructure that is separate from [Google Search] in the sense of an independent results page*" (emphasis added).¹²⁸ The Commission does not contest,

¹²⁵ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 6, [Attachment ID].

¹²⁶ Judgment of 10 November 2021, *Google LLC and Alphabet Inc. v Commission*, T-612/17, EU:T:2021:763, paragraph 328.

¹²⁷ Judgment of 10 November 2021, *Google LLC and Alphabet Inc. v Commission*, T-612/17, EU:T:2021:763, paragraph 336.

¹²⁸ Judgment of 10 September 2024, C-48/22 P, *Google LLC and Alphabet Inc. v Commission*, EU:C:2024:726, paragraph 105.

indeed it makes the point, that the product ads unit is integrated in Google's results page. This is confirmed by recital 51 of Regulation (EU) 2022/1925 mentioning that a distinct service can be entirely embedded in groups of results specialised in a certain topic no matter if those groups are on a separate infrastructure or not.

- (197) The Commission also disagrees with Alphabet's view that the products unit serves the purpose of an OSE. Like the product ads unit, the products unit goes beyond that purpose by performing functionalities and tasks that enable the comparison of product offers. The unit serves that purpose regardless of whether product offers appear before or after opening the preview page given that the latter forms part of the products unit. As explained in view of the product ads unit, the products unit constitutes a CSS even though it is open to third-party CSSs and allows links to their websites (see recital (195) of this Decision).

4.1.3. *Third parties offer similar services which are ranked on the SERP*

4.1.3.1. The Commission's position

- (198) When a user submits a product-related search query on third-party CSSs' websites they are presented with a display of the product, which typically includes functionalities such as product image, customer ratings and reviews, prices from different suppliers, delivery options and links to direct suppliers of the specific product. In addition, users can apply filters when they search for products on CSSs websites. These filters typically allow users to narrow down or refresh product searches based on various criteria like price, brand, ratings, sizes or availability (or other criteria depending on the specific product query). Examples of such CSSs include Ceneo, Guenstiger, Idealo, Kelkoo and Trovaprezzi.
- (199) As noted in recitals (117) to (127) of this Decision, functionalities offered by third-party CSSs following product-related query are similar to the functionalities of the Alphabet's CSSs embedded and ranked on the Google SERP. As also noted in recital (120) of this Decision, a third-party service is similar to a distinct or additional service offered by Alphabet when it has a similar purpose.
- (200) The definition of an OSE in Article 2, point (5), of Regulation (EU) 2019/1150, which is referred to in Article 2, point (6), of Regulation (EU) 2022/1925 includes results of, "*in principle, all websites*". Given that third-party CSSs rely on OSEs to reach users, their websites are ranked on the SERP, absent any opt-out, following a product-related query to which they provide relevant results. This is because OSEs provide results based on searches performed, in principle, on all websites.

4.1.3.2. Alphabet's arguments

- (201) According to Alphabet, the Commission overlooks relevant differences between the result units at issue and the allegedly similar third-party services, which according to Alphabet, invalidates the Commission's favouring allegations.¹²⁹
- (202) First, Alphabet claims that the Commission does not maintain that Google's result units at issue provide all functionalities of the purported similar third-party services. According to Alphabet, the difference in functionality is a relevant factor for

¹²⁹ Alphabet's response to the preliminary findings, paragraphs 281-282.

determining whether a first-party service obtains an advantage from the display of the units and whether this is compensated by the March 2024 changes.¹³⁰

- (203) Second, Alphabet argues that the Commission does not establish that the result units at issue are a substitute to third-party services. There is no good reason, according to Alphabet, why results that address different user demand should be treated identically.¹³¹
- (204) Third, Alphabet states that Google's result units for suppliers treat suppliers fundamentally differently from third-party CSSs. The results in Google's supplier units are free for suppliers and open to them. Whereas to appear in these results, suppliers must pay CSSs, and users only get to see results from those paying suppliers. It is wrong, according to Alphabet, to demand that third-party CSSs, should be treated equally with the supplier units at issue, since the CSSs results operate differently.¹³²

4.1.3.3. The Commission's assessment of Alphabet's arguments

- (205) First, the Commission rejects Alphabet's assertion that it ignored relevant differences between the result units at issue and similar third-party services. As explained in recital (66) of this Decision, third-party services are considered similar when they allow users to serve equivalent purposes as those of Alphabet's additional services displayed on Google Search. The notion of a "*similar service*" does not rule out that certain differences between the services exist.¹³³
- (206) Second, the Commission recalls that as set out in recital (68) of this Decision, the concept of "*similar services*" under Article 6(5) of Regulation (EU) 2022/1925 does not coincide with the notion of substitutability used in Union competition law. It is not required that services belong to the same relevant market or are considered as substitute by users. The legislative choice of the term "*similar*" allows the Commission to focus its assessment based on the purpose of the service bearing in mind the concept of "*similar services*".
- (207) Third, the Commission disagrees with Alphabet's claim that the difference in monetisation between its own result units and similar services offered by third parties is material for the assessment under Article 6(5) of Regulation (EU) 2022/1925. Actually, the difference on monetisation models is a result of the vertical integration of Alphabet because it offers an OSE for which it has been designated as a gatekeeper and can monetise its embedded CSSs by selling advertising, whereas providers of similar services cannot monetise their services in this way. The analysis under Article 6(5) of Regulation (EU) 2022/1925 does not turn on chosen business model of the third-party but rather on whether the third-party service as a whole performs a comparable task for users. As long as both services allow users to perform comparable tasks—such as facilitating the comparison and selection of product offers—they can be considered similar, regardless of their business model.

¹³⁰ Alphabet's response to the preliminary findings, paragraph 281, a.

¹³¹ Alphabet's response to the preliminary findings, paragraph 281, b.

¹³² Alphabet's response to the preliminary findings, paragraph 281, c.

¹³³ Preliminary Findings, recital 101.

4.1.4. *More favourable treatment in ranking on the SERP of Alphabet's product ads unit and products unit*

4.1.4.1. The Commission's position

- (208) When entering a product-related query, Alphabet's product ads unit and its products unit are given more favourable treatment in ranking on Google Search, as compared to third-party CSSs.
- (209) Both Alphabet's product ads unit and its products unit are embedded and ranked prominently on Google Search.
- (210) First, Alphabet's product ads unit is embedded in the SERP and can be seen by a user immediately after entering a product-related query. It is displayed at the top of the SERP, which makes it especially visible for users navigating through the SERP. The product ads unit, which contains paid search results delivered in response to a product-related query, consists of a large, dedicated box displaying detailed information in relation to e.g., prices, shipping costs, ratings, energy efficiency, and other characteristics of products offered on CSS websites. This enables users, in the product ads unit itself (i.e., directly on the SERP, immediately after entering a product-related query), to search and compare several different products offered on CSS websites with a view to initiating a transaction.
- (211) Second, Alphabet's products unit is also embedded in the SERP and can be seen by a user immediately after entering a product-related query. The products unit, which contains free search results delivered in response to a product-related query, consists of a dedicated box displaying information in relation to e.g., prices and star ratings of several products offered by merchants. This enables users, in the products unit itself (i.e., directly on the SERP, immediately after entering a product-related query), to search and compare several different products offered by merchants with a view to initiating a transaction.
- (212) Additionally, when a user clicks on one of the results in the products unit, it is then presented with a preview page containing further information about the product at issue including, in addition to more images, information on e.g., availability, prices, ratings, shipping costs, and return policies. This preview page, which contains offers from both merchants and CSSs, enables users to carry out a further comparison of different products offered by merchants and CSSs. Also, the search results which are displayed following a click on the 'Products' tab or on the 'View more' or 'View more products' button (placed at the bottom of the products unit) contain more merchant offers displaying the same type of transaction-relevant information as the products unit. Additionally, the search results which are displayed following a click on the 'Products' tab also contain the product ads unit with the same characteristics.
- (213) Third-party CSSs also have opportunities to feature on the SERP. However, they feature less prominently, as compared to Alphabet's embedded products unit and product ads unit.
- (214) As regards free search results, first, it is true that a third-party CSS may display offers in the products unit's preview page (albeit not in the products unit itself), and that this preview page is accessible once a user clicks on one of the results in the products unit. However, for a third-party CSS, eligibility to potentially display individual offers in

the preview page is not the same as having its own box, embedded in the SERP and visible immediately after entering a product-related query, containing several product offerings from its inventory that a user can compare directly on the SERP, as is the case for Alphabet with its products unit. Conditioning equal prominence on requirements that do not apply to the gatekeeper's own services is not granting equal prominence on the SERP. In order to gain some prominence on the SERP, third-party CSSs have to become business partners of Alphabet's products unit instead of being able to display their own inventory on equal terms on the SERP. Therefore, Alphabet's CSS is favoured compared to third-party CSSs on the SERP.

- (215) Second, a third-party CSS may also appear in free organic search results, be it rich web results or ordinary (i.e., non-rich) results.
- (216) It is true that rich web results, which have an enhanced format, containing both images as well as information on the products at issue, also enable a third-party CSS to present several product offerings in an embedded box. However, overall, the possibility for a CSS to feature in rich web results does not compensate for the prominence given to Alphabet's products unit. This is because the prominence of the products unit is strengthened by additional features which provide users with more possibilities to compare products with a view to initiating a transaction. In particular, as stated above, contrary to rich web results, the products unit gives users access to a preview page (accessible by clicking on one of the results in the products unit), which contains not only more images, but also more detailed information on e.g., availability, prices, ratings, shipping costs, and return policies. Additionally, the products unit has, at the bottom, a 'View more' or 'View more products' button that directs users towards more merchant offers displaying the same type of transaction-relevant information, as does the 'Products' tab located at the top of the SERP.
- (217) Ordinary (i.e., non-rich) results, in turn, do not offer a third-party CSS a degree of prominence comparable to that of Alphabet's embedded products unit, as they do not contain images or structured product-related information, and do not enable a CSS to present different product offerings that a user can compare directly on the SERP.
- (218) Third, the possibility for a third-party CSS to feature in the CSS unit and in the 'Product comparison sites' tab does not give it equal prominence as compared to Alphabet's products unit either.
- (219) The CSS unit does not allow a given CSS to have its own box, embedded in the SERP and visible immediately after entering a product-related query, containing several product offerings that a user can compare directly on the SERP.
- (220) The possibility for a third-party CSS to include a link within the 'Product comparison sites' tab is not the same as it having its own box, embedded in the SERP and visible immediately after entering a product-related query, containing several product offerings that a user can compare directly on the SERP. Additionally, it is noteworthy that, while there are no tabs for individual third-party CSSs displayed on top of the SERP, which would link to and show only the offers from their respective inventory, the results in the 'Products tab' are an extended version of those displayed in Alphabet's products unit. Given that the 'Product comparison sites' tab shows the results of various CSSs, it gives less prominence to individual third-party CSSs

compared to the ‘Products’ tab, which exclusively shows results of Alphabet’s products unit.

- (221) As regards paid search results, first, while it is true that a third-party CSS may display ads directly on the SERP in the product ads unit, this does not give them equal prominence as compared to Alphabet’s product ads unit. Indeed, this is not the same as having their own box, embedded in the SERP and visible immediately after entering a product-related query, containing several product offerings that a user can compare directly on the SERP.
- (222) Second, a third-party CSS may also obtain visibility by placing CLAs. However, these ads promote a CSS website as a whole, but do not provide a third-party CSS with an embedded box or unit on the SERP, containing several product offerings that a user can compare directly on the SERP. The CLA unit is only displayed when a user clicks on the tab ‘Comparison Sites’ on top of the product ads unit, and is thus not visible directly on the SERP, immediately after entering a product-related query.
- (223) For the reasons stated above, the Commission concludes that Alphabet gives its products unit and its product ads unit more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.

4.1.4.2. Alphabet’s arguments

- (224) Alphabet argues that even if the products and product ads units at issue were qualified as distinct services that are similar to third-party CSSs, the Commission’s position that Alphabet improperly favours its first-party services on the SERP is invalid.¹³⁴

4.1.4.2.1. Arguments about the March 2024 changes compensating for the prominence of distinct Google services

- (225) Alphabet argues that the Commission’s arguments as to why the changes Alphabet made in March 2024 in the context of compliance with Article 6(5) of Regulation (EU) 2022/1925 are insufficient, are wrong.¹³⁵
- (226) First, Alphabet contends that as part of the March 2024 changes, Alphabet created multiple new designs for CSSs that created a disproportionate increase in prominence and visibility for CSSs.¹³⁶
- (227) In the first place, it developed rich results for individual CSSs, which improve CSSs’ ability to showcase their services, offers, and inventory and include features such as images, star ratings, prices, and the ability to include carousels with samples of the CSS’ inventory in the result. Alphabet claims that rich web results for CSSs in fact give each CSS their ‘own box’ where they can showcase multiple offers from their inventory.¹³⁷

¹³⁴ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 236, [Attachment ID].

¹³⁵ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 238, [Attachment ID].

¹³⁶ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 239, [Attachment ID].

¹³⁷ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 240 (b), [Attachment ID].

- (228) In the second place, Alphabet introduced free dedicated CSS units which show groups of free results for CSSs, with results in the units directly linking out to CSSs' websites. According to Alphabet, this creates a new opportunity for CSSs to connect with users and attract traffic to their websites.¹³⁸
- (229) In the third place, Alphabet introduced a new 'Product comparison sites' tab for CSSs, that enables users to see results just for CSSs. As on the main SERP, the results for CSSs in this view include the rich results that provide each CSS with their own box where they can showcase multiple offers from their inventory rather than just links as suggested by the Commission.¹³⁹
- (230) In the fourth place, Alphabet created a new CSS ad format that CSSs can place in the product ads unit, which link directly to CSSs' websites. CSSs now have the choice of placing standard product ads on behalf of their merchant partners or CSS ads, which compete on an equal basis in the product ads unit.¹⁴⁰
- (231) Alphabet claims that with these changes, it created a counterbalance to the product and product ads units that the Commission challenges as embedding first-party CSSs, and therefore addressed any alleged favourable treatment. According to Alphabet, data from comparing pre-March 2024 result pages to those after March 2024 demonstrate that the changes produced a large increase in CSSs' prominence and visibility and generated more search traffic for CSSs. Specifically, users see CSS results **[40-50]** % more often than before March 2024 and click on CSS results **[10-20]** % more often. Alphabet argues that **[GOOGLE'S INTERNAL DATA]** indicates that CSSs now get more prominence than what they merit based on user interest and therefore they are not disadvantaged. In fact, giving the CSSs this additional prominence goes against the task of an OSE to show users what they are likely looking for.¹⁴¹
- (232) Second, Alphabet argues that the Commission dismisses the benefits to CSSs from the March 2024 changes even though data on changes to visibility and clicks were on the Commission's file for over a year, based on three factually incorrect and contrived arguments.¹⁴²
- (233) Alphabet claims that the fact that the products unit contains links to a preview page and links to see more offers from merchants, whereas rich results for CSSs do not, does not give a disadvantage to CSSs as claimed by the Commission, but is actually in their favour. Namely, because links in CSS rich results link out to their own websites, this allows users to see and interact with the full service provided by a CSS.¹⁴³

¹³⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 240(a), [Attachment ID].

¹³⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 240(c), [Attachment ID].

¹⁴⁰ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 240(d), [Attachment ID].

¹⁴¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 241-245, [Attachment ID].

¹⁴² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 246, [Attachment ID].

¹⁴³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 248, [Attachment ID].

- (234) Third, Alphabet argues that the Commission overlooks that CSSs in fact participate in the product and product ads unit, creating even more prominence for them.¹⁴⁴
- (235) Contrary to the Commission's claim that a CSS participating in product ads is not the same in terms of prominence as each CSS getting its own box, Alphabet argues that all CSSs have the exact same ability to place offers in the product ads unit and present them to users. Just like third-party CSSs, Alphabet claims that the Google CSS does not get a box of its own either, so there is no disadvantage for third-party CSSs.¹⁴⁵
- (236) For the products unit, Alphabet contends that the Commission incorrectly argues that offers from CSSs can only appear in the preview page because offers from third-party CSSs can also appear in the products unit and are, therefore, not disadvantaged.
- (237) Moreover, with regard to the Commission's position that third-party CSSs have to provide Alphabet with data feeds and become intermediated by them and thus are required to become business partners of Alphabet rather than obtaining equal prominence to the products unit. Alphabet argues that the technical means through which CSSs provide data that Alphabet needs to create results in no way disadvantages CSSs. To the contrary, data feeds are necessary to provide the kind of prominent result elements that third-party CSSs should have according to the Commission. Alphabet argues that these findings are contradictory, demanding prominence but challenging the technical means to achieve this; providing each CSS with 'its own box' would not be practicable without data feeds.¹⁴⁶
- (238) In Alphabet's view, the complaint that CSSs are intermediated by or become business partners of Alphabet makes no sense because, by definition, all websites that appear on Google Search are intermediated by Alphabet and are all business partners of Alphabet.

4.1.4.2.2. Arguments about the lack of tangible advantage for distinct Google services

- (239) According to Alphabet, the Commission fails to establish a tangible advantage that a separate first-party service receives from the product and product ads units.¹⁴⁷
- (240) First, as regards the products unit, Alphabet argues that Google Search shows the products unit with free results for merchants because it enables users to obtain responses for their queries on any subject and helps them search for, in principle, all websites. Google Search does not show the products unit to advantage a separate Alphabet CSS, and the unit does not create any such advantage. In particular, Alphabet contends that the products unit (i) does not generate money for a separate Alphabet CSS because the results in the products unit are free; (ii) does not generate traffic for any separate first-party CSS because no links in it lead to an Alphabet CSS; and (iii) does not give Alphabet's CSS an advantage in terms of data or winning business partners because merchants that provide Google Search with data for appearing in the

¹⁴⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 259, [Attachment ID].

¹⁴⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 253(a), [Attachment ID].

¹⁴⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 254-255, [Attachment ID].

¹⁴⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 260, [Attachment ID].

units can freely choose whether these data should be used only for results on Google Search or also in Alphabet's CSS.¹⁴⁸

- (241) Alphabet contends that the Commission's position boils down to arguing that the products unit provides Alphabet's CSS with an advantage because it enables users to compare offers "*directly on the SERP*". In Alphabet's view, there are two reasons why the Commission's argument that the different treatment that results in favouring arises because third-party CSSs cannot provide a comparison directly on the Google SERP with a box of their own fails.¹⁴⁹
- (242) In the first place, enabling users to compare is intrinsic to online search engines and not specific to CSSs.¹⁵⁰
- (243) In the second place, the Commission does not explain how Google Search enabling comparison benefits an Alphabet CSS. The only service that benefits is Google Search from providing its users a high-quality search experience. At the same time, the units that Alphabet created for CSSs in March 2024 provide a tangible benefit to CSSs because these units refer users to the CSS' own site, where users can interact with their full service, including searching and comparing across a CSS' full inventory, which the CSS can monetise by selling onward clicks to merchants or by charging commission fees, which is more advantageous for CSSs than providing a comparison directly on Google Search.¹⁵¹
- (244) Second, as regards the product ads unit, Alphabet argues that it enables Alphabet's CSS to place product ads for offers from its merchant partners, for which it charges merchants and from which it therefore derives a benefit in terms of revenue. Following the 2017 remedy for *Google Shopping*, this same benefit is available to third-party CSSs, on the same terms. From March 2024, CSSs can also place CSS ads that link to their own websites. The Alphabet CSS has no guaranteed slots in the product ads unit, nor any other advantage, since it treats first- and third-party CSSs equally.

4.1.4.2.3. Arguments about taking into account stakeholder interests

- (245) In Alphabet's view, the Commission fails to consider the interests of merchants that benefit from the product and product ads units, as well as the interests of users of Google Search. Instead, the Commission allegedly focusses on the interests of CSSs at the exclusion of merchants and users. Alphabet contends that the inherent need for OSE to balance different interests must be taken into account and that different treatment that strikes a reasonable balance between different interests is not improper favouring under Article 6(5) of Regulation (EU) 2022/1925.¹⁵²

¹⁴⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 261, [Attachment ID].

¹⁴⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 262, [Attachment ID].

¹⁵⁰ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 263, [Attachment ID].

¹⁵¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 264-265, [Attachment ID].

¹⁵² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 283-286, [Attachment ID].

- (246) Alphabet claims that as an OSE that seeks to enable users to search for, in principle, all websites, Google Search must be able to show results for merchants as best as it can, with the most advanced technologies available and in the most effective way possible. The product and product ads units are a critical means for Alphabet to do so.¹⁵³
- (247) Alphabet adds to this argument that pursuant to Article 5(4) of the Treaty on the Functioning of the European Union, the Commission is required to respect the principle of proportionality when applying secondary legislation such as Regulation (EU) 2022/1925. However, the Commission's allegedly misconceived interpretation of Article 6(5) of that Regulation damages the quality of Alphabet's online search engine Google Search, harms merchants, hurts users and undermines economic growth in Europe, while this is not necessary for and actually runs counter achieving the objectives of contestability and fairness.¹⁵⁴

4.1.4.3. The Commission's assessment of Alphabet's arguments

4.1.4.3.1. Arguments about the March 2024 changes compensating for the prominence of distinct Google services

- (248) The Commission's position as to why the changes Alphabet made in March 2024 in the context of compliance with Article 6(5) of Regulation (EU) 2022/1925 are insufficient, is valid.
- (249) First, the Commission does not contest Alphabet's statement set out in recital (226) of this Decision that it has created multiple new designs for CSSs and that some of these designs have increased the prominence of CSSs on the Google SERP.
- (250) However, providing more prominence to CSSs than before March 2024 is not equivalent to providing the same prominence to Alphabet's own CSSs as those offered by third parties, as required by Article 6(5) of Regulation (EU) 2022/1925 and further explained in recitals (75) - (78) of this Decision.
- (251) In the first place, as regards rich results for CSSs, Alphabet's claim set out in recital (227) of this Decision was already addressed by the Commission in recital (216) of this Decision. While it is true that rich results provide additional prominence to CSSs as compared to ordinary (non-rich) results, this prominence is insufficient to compensate for the prominence of Alphabet's products unit. Even if third-party CSSs get 'their own box' by means of rich web results as Alphabet claims, this box is less prominent than Alphabet's products unit in terms of its presentation (see Image 1), detail, relevance, accuracy of the information, and interactivity because it provides users with more possibilities to compare products with a view to initiating a transaction than is the case for CSS rich results. Specifically, contrary to rich CSS results, the products unit gives access to a preview page which contains more images and more detailed information on parameters such as availability, prices, ratings, shipping costs, and return policies. Additionally, the 'View more' or 'View more products' button on the bottom of the products unit directs users towards more

¹⁵³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 288, [Attachment ID].

¹⁵⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 289-290, [Attachment ID].

merchant offers displaying the same type of transaction-relevant information, as does the ‘Products’ tab.

- (252) In the second place, as regards CSS units, Alphabet’s argument set out in recital (228) of this Decision is addressed with the response already given in recital (214) of this Decision; whereas CSS units give some additional prominence to third-party CSSs, this is insufficient to compensate for the prominence Alphabet gives to its own products unit because the CSS unit does not allow a given CSS to have its own prominent box.
- (253) In the third place, as regards the additional prominence offered to CSSs through the ‘Product comparison sites’ tab, it does not address the fact that Alphabet’s CSS gets a reserved page expanding only offers of its products unit through the ‘Products’ tab while no third-party CSS gets such a tab exclusively for its own inventory.
- (254) In the fourth place, with respect to Alphabet’s argument about the introduction of CSS ads that link directly to CSSs’ websites as set out in recital (230) of this Decision, Alphabet is comparing the relative prominence of merchants’ websites to that of CSSs’ websites. However, the relevant comparison is between Alphabet’s CSS (i.e. the product ads unit) and third-party CSSs (i.e. the links contained in some of the offers in that unit). Therefore, as explained in recital (221) of this Decision, the inclusion of CSS ads is insufficient to compensate for the prominence of the product ads unit.
- (255) Regarding Alphabet’s claims set out in recital (231) of this Decision, as regards the data on views of and clicks on CSS results allegedly indicating that CSSs are now advantaged with respect to the prominence they are afforded relative to user interest, the Commission notes that Article 6(5) of Regulation (EU) 2022/1925 does not address the prominence of third-party services relative to user interest, but the prominence of similar third-party services relative to first-party services. By not providing data which shows the difference in the evolution of clicks and views to Alphabet’s own CSS but only that of third-party CSSs, Alphabet is applying the wrong test.¹⁵⁵
- (256) Furthermore, even if this was the right test to apply, Alphabet interprets the data incorrectly. Namely, it should be noted that the number of views of any given result is necessarily equal to or higher than the number of clicks on it, since users can only click on results they are presented with.¹⁵⁶ Had third-party CSS results already been

¹⁵⁵ Even if one was interested in measuring user interest, it is also not a useful way to measure the relevance for users of first- and third-party CSSs. This can only be assessed based on their clicks and views provided they are given equal prominence on the SERP. As explained in recitals (77)-(78) of this Decision, views can measure components of prominence such as the place in the list of results or the inclusion of eye-catching elements such as pictures, but are far from the only factor determining how prominent different results are. As set out in recitals (209)-(224) Alphabet did not give equal prominence to third-party CSSs also in terms of other components of prominence such as their interactivity or the level of detailed transaction-relevant information of its products and product ads units.

¹⁵⁶ If, as Alphabet argues, before the March 2024 changes, users’ clicks and views on any given result were very close to one another (i.e. they were shown very little irrelevant results), this implies that the absolute number of views and clicks and their growth rates should also be close to one another. It is then hardly surprising that the growth in views is higher than the growth in clicks.

shown to the full extent users were interested in them prior to March 2024, *ceteris paribus* the data would have shown the same [40-50] % increase in views after the March 2024 changes, but a negligible increase in clicks. However, the data presented by Alphabet show that actually, CSSs obtained [10-20] % more clicks than before the March 2024 changes. This means that a rather sizeable positive share of the users for whom CSS results were not ranked sufficiently prominently for them to view them prior to March 2024, do in fact click on them now that they are being shown such results. This means, following Alphabet's logic, that prior to March 2024, a significant number of users was not shown third-party CSS results even though they were interested in them.

- (257) Second, as regards Alphabet arguments that the Commission incorrectly dismisses the benefits that CSSs receive from the March 2024 changes, these arguments seek to rebut a claim the Commission has not made. As explained in recital (249) of this Decision, the Commission does not challenge the introduction of new designs, neither does it argue that there are no benefits to CSSs from those designs. Instead, the Commission challenges that these changes sufficiently compensate for the prominence given to Alphabet's own CSSs to ensure equal prominence, as set out in recitals (213) - (223) of this Decision.
- (258) The arguments made by Alphabet to support this claim alleging that the Commission based its reasoning on factually incorrect and contrived arguments are also unsupported. Specifically, Alphabet's claim that having links to CSSs' own websites in CSS units instead of the links to previews or more merchant results as is the case for products unit is actually in CSSs' favour because it sends users to their websites is beside the point. The assessment of compliance with Article 6(5) of Regulation (EU) 2022/1925 does not involve an examination of what is more advantageous for similar services of third parties outside of Google Search, but whether there is preferential treatment of first- over third-party services in ranking on the Google SERP. Comparing the prominence of the products unit on the SERP to that of CSS rich results as set out in recitals (215) and (216) of this Decision, clearly shows that there is no equality in relative prominence.
- (259) Third, the Commission disagrees with Alphabet's argument that the Commission overlooks the fact that CSSs do in fact participate in the product and product ads unit set out in recital (234) of this Decision.
- (260) In particular, Alphabet's argument that each CSS, including Alphabet's own, has the exact same ability to place offers in the products and product ads unit ignores the fact that the products and product ads unit itself is an Alphabet CSS as set out in recitals (114) - (119) of this Decision that is prominently embedded on the SERP, as set out in recital (221) of this Decision. Therefore, Alphabet's claim that "*the Google CSS does not get a box of its own either*"¹⁵⁷ is not correct. Moreover, for the same reason the ability of third-party CSSs to participate in Alphabet's own CSS cannot compensate for the prominence given to the latter.

¹⁵⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 253(a), [Attachment ID].

4.1.4.3.2. Arguments about the lack of tangible advantage for distinct Google services

- (261) First, as regards Alphabet's arguments set out in recitals (240) - (243) of this Decision that the Commission incorrectly finds that the products unit is given more favourable treatment in ranking on Google Search compared to third-party CSSs it should be noted that the Commission's finding is about the relative prominence of first- and third-party services, not about the effects of such favourable treatment in ranking as Alphabet appears to argue. The Commission agrees that the products unit enabling comparison using Alphabet's CSS directly on the SERP, whereas third-party CSSs cannot enable comparison without having to navigate to another website, is one way in which the Commission finds that Alphabet's products unit gets more prominence on the SERP than similar third-party services. Alphabet's arguments fail to challenge this.
- (262) In the first place, Alphabet's argument in recital (242) of this Decision that enabling users to compare is intrinsic to OSEs and not specific to CSSs challenges the Commission's finding that Alphabet embeds its distinct CSS on the SERP rather than the prominence in ranking provided to the products unit relative to third-party CSSs and has been addressed in recital (175) of this Decision.
- (263) In the second place, Alphabet's argument set out in recital (243) of this Decision correctly identifies that the Commission does not explain how allowing comparison of product offers directly on the SERP benefits an Alphabet CSS. This is the case because as set out in recital (86) of this Decision, contrary to what Alphabet argues, the assessment of compliance with Article 6(5) of Regulation (EU) 2022/1925 does not require the Commission to establish a tangible advantage for Alphabet's distinct or additional services.
- (264) Nevertheless, some of Alphabet's claims to support this argument are addressed in order to correct them. Namely, Alphabet's contention that no traffic for Alphabet's CSS is generated because there are no links to an Alphabet CSS in the products unit ignores that the products unit itself obtains traffic by being prominently shown on the SERP and allowing users to use Alphabet's CSS without having to leave the SERP. Additionally, the fact that merchants can choose whether or not to also have their data used in Alphabet's CSSs on other domains than Google Search, means that some may choose to do so, thereby giving further benefits to Alphabet's own distinct or additional services by increasing the data available to its CSS. Alphabet's argument that it is more advantageous for third-party CSSs when users are led to their website than to allowing them to provide comparison directly on Google Search was already addressed in recital (258) of this Decision.
- (265) Second, as regards Alphabet's arguments in relation to the product ads unit, the relevant legal test assesses the relative prominence of first- and third-party services, not about the revenue made or other outcome variables. Alphabet's arguments about equal treatment and the product ads unit set out in recital (244) of this Decision were already addressed in recitals (259) and (260) of this Decision.

4.1.4.3.3. Arguments about taking into account stakeholder interests

- (266) Alphabet's claim set out in recitals (245) of this Decision that the Commission fails to consider the interests of merchants and instead focuses on the interests of CSSs is false. As emphasised by Alphabet, the Commission participated in multiple workshops

and meetings with both merchants and CSSs and recognises the need to balance stakeholder interests when applying Article 6(5) of Regulation (EU) 2022/1925. Therefore, contrary to what Alphabet claims, the Commission does not disregard merchants' interests and, as explained in recital (89) of this Decision, is cognisant of the need to take into account Alphabet's other obligations under Regulation (EU) 2022/1925 and to respect the general principle of proportionality when assessing Alphabet's measures to comply with the obligation in Article 6(5) of that Regulation. At the same time, assessing whether there is equal treatment in ranking, the comparison in prominence applies to Alphabet's distinct or additional services and similar services of third parties, not of any business user of the OSE in general.

4.1.5. Conclusion

- (267) The Commission therefore takes the view that Alphabet offers two product intermediation services that are distinct from or additional to Google Search and that those services are more favourably ranked on the SERP than similar services of third parties.

4.2. Flights intermediation

4.2.1. The Google SERP

- (268) As shown in Image 8, in response to a flight-related query, Google Search displays a number of different features and results. All these different results are ranked on Google Search based on their expected utility to users (i.e., based on relevance and quality).¹⁵⁸

¹⁵⁸ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 176, [Attachment ID].

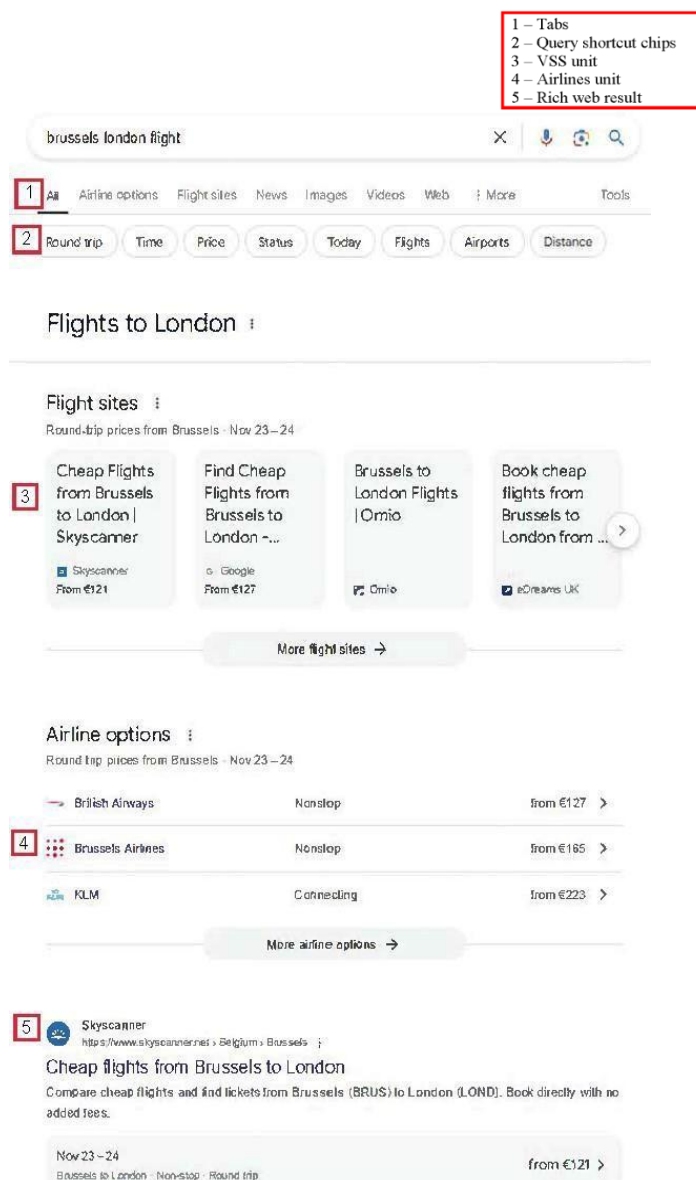


Image 8: SERP following a flight-related query.¹⁵⁹

- (269) First, a user is presented with the ‘Flight sites’ tab on top of the SERP, as shown under number 1 in Image 8, which allows users to show only VSSs that intermediate flights.¹⁶⁰ In order to appear in the ‘Flight sites’ tab, VSSs need to be added to

¹⁵⁹ Screenshot of the SERP following a query ‘brussels london flight’ retrieved on 14 November 2024, [Attachment ID].

¹⁶⁰ In general, similar to CSSs, specialised VSSs allow users to (i) search for entities or services and compare their business propositions (including services or products offered, their characteristics, reviews and, if applicable, prices) across the offers of several different suppliers, (ii) refine the search using various filters (on dates, characteristics, prices) and (iii) provide links that lead (directly or via one or more successive intermediary pages) to the websites of those suppliers.

Alphabet’s internal list of VSSs.¹⁶¹ The provision of data feeds to Alphabet is not required. However, it is possible for VSSs to provide Alphabet with data feeds on an optional basis in case they want to enhance the contextual information shown with their offers, such as information about prices.¹⁶² Moreover, on top of the SERP the user is also presented with the ‘Airline options’ tab. Clicking on the tab allows the user to show only the airline offers as shown in Image 9.

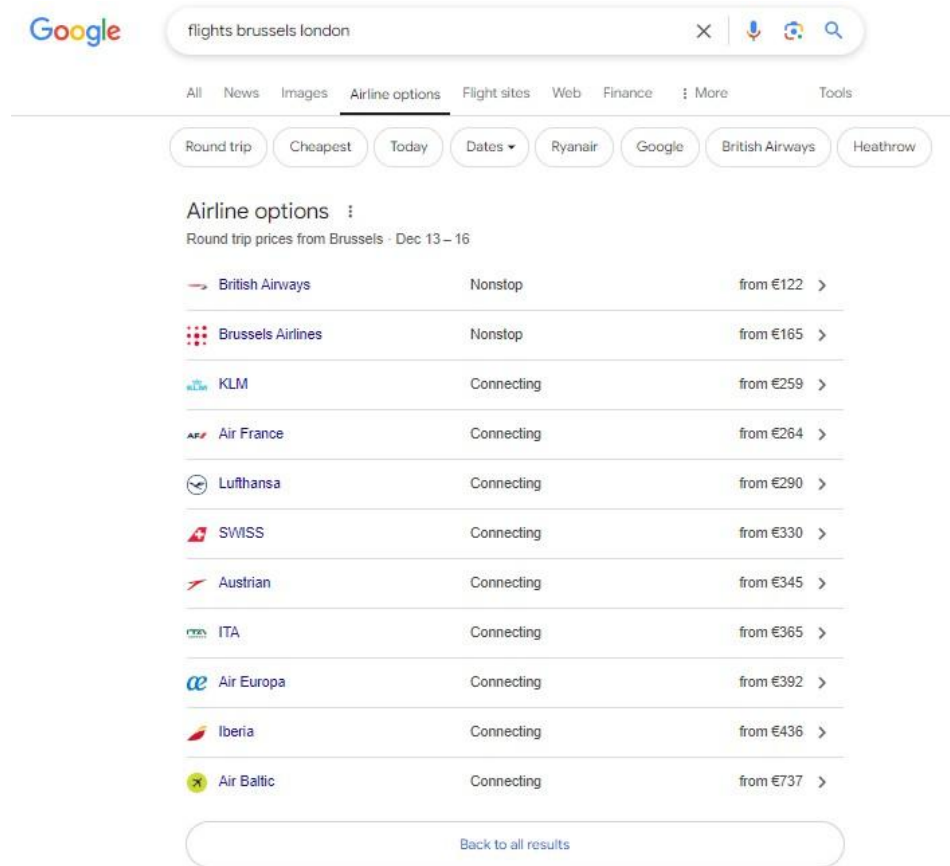


Image 9: SERP following a click on the ‘Airline options’ tab or the ‘More airline options’ button.¹⁶³

- (270) Second, the user is shown a row of at most eight query shortcut chips, as shown under number 2 in Image 8, which, as explained in recital (116) of this Decision, refresh the SERP when clicked, including the content of the various units. Examples of query shortcut chips a user might be shown after entering a query related to flights, are namely, ‘Round trip’, ‘Cheapest’, ‘Today’, ‘Dates’ (which is extendable picker), ‘Ryanair’, ‘Google’ etc., as shown under number 2 in Image 8 and Image 9.
- (271) Third, as shown under number 3 in Image 8, a user may be presented with a VSS unit containing links to VSSs that intermediate flights. In order to appear in the VSS unit,

¹⁶¹ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 55 and 71, [Attachment ID].

¹⁶² Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 54, 66, 74, [Attachment ID].

¹⁶³ Screenshot of the SERP following a click on the ‘More airline options’ button on the SERP following a query ‘flights brussels london’ retrieved on 11 November 2024, [Attachment ID].

VSSs need to be added to Alphabet’s internal list of VSSs.¹⁶⁴ At the bottom of the VSS unit, the user is presented with the ‘More flight sites’ button, which, when clicked on, shows more of the VSSs that intermediate flights. While the provision of data feeds to Alphabet is not required to appear in the VSS unit, it is possible for VSSs to provide Alphabet with data feeds on an optional basis in case they want to enhance the contextual information shown with their offers, such as information about prices.¹⁶⁵

- (272) Fourth, as depicted under number 4 in Image 8, a user may be presented with an airlines unit, which contains a list of flight offers of various airlines. In order for an entity to be eligible to appear in the airlines unit, that entity has to be an airline¹⁶⁶ and needs to provide data feeds to Alphabet, which it uses to assemble a dataset from which the flight offers are obtained and which are ranked using signals that are relevant for comparing flights.¹⁶⁷ The unit includes information on characteristics of different offers including minimum prices, whether a specific flight is nonstop or connecting as well as the flight operator. In addition, at the bottom of the airlines unit, the user is presented with the ‘More airline options’ button, which, when clicked on, shows more of the airline offers, same as when clicking on the ‘Airline options’ tab and as shown in Image 9.
- (273) Fifth, a user may be shown rich web results for airlines and/or VSSs intermediating flights, as shown under number 5 in Image 8. In order to be eligible to appear in rich web results, airlines and VSSs intermediating flights need to provide data feeds to Alphabet¹⁶⁸ VSSs must also be added to Alphabet’s internal list of VSSs to participate in rich web results.¹⁶⁹

4.2.2. *Alphabet’s flights intermediation service is distinct or additional to Google Search and is ranked on the SERP*

4.2.2.1. The Commission’s position

- (274) As described in recital (272) of this Decision, in response to flight-related queries, Google Search shows the airlines unit. The airlines unit, which is ranked on and embedded in Google Search, provides a distinct or an additional service to an OSE because its purpose goes beyond that of an OSE, namely, it has specific functionalities and performs tasks, which are consistent with the purpose of a VSS.
- (275) In particular, the airlines unit presents a group of results specialised in a certain topic with functionalities that allow users to filter, interact with, and compare competing

¹⁶⁴ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraph 49, [Attachment ID].

¹⁶⁵ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 54, 66, 74, [Attachment ID].

¹⁶⁶ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraph 28, [Attachment ID].

¹⁶⁷ Alphabet Compliance Report 2024 – Google Search Chapter, paragraph 47, [Attachment ID], Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 29-32, 34(d) and 37, [Attachment ID] and Alphabet’s response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 16, [Attachment ID].

¹⁶⁸ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 155 et seq., [Attachment ID].

¹⁶⁹ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraph 54, [Attachment ID].

offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers.

- (276) More precisely, the airlines unit groups commercial offers of flight operators for a given flight-related query and enables the search for and comparison of flight offers based on transaction-relevant information such as prices, whether the flight is ‘Non-stop’ or ‘Connecting’, as well as the name of the flight operator.
- (277) Additionally, as described in recital (270) of this Decision and shown in Images 8 and 9, the SERP provides query shortcut chips that allow users to filter the transaction-relevant information of offers displayed in the airlines unit and select, for example, whether they are searching for a round trip, the cheapest flight or flights from a specific operator.
- (278) In addition, the airlines unit falls outside the definition of an OSE as it does not perform searches of, in principle, all websites, or all websites in a particular language. As described in recital (272) of this Decision, not all types of websites can appear in the airlines unit; only airlines’ websites can. Additionally, to be eligible to feature in this unit, airlines have to provide data feeds to Alphabet. As explained by Alphabet, data feeds enable a more accurate display of transaction-relevant data, in particular, real-time prices for flights.¹⁷⁰ The airlines unit and comparison enabled within it, therefore, not assembled by performing searches of, in principle, all websites, but is limited to those websites that are airlines’ websites and that provide data feeds to Alphabet based on a predefined set of Alphabet’s criteria.
- (279) The search results, which are displayed following a click on the ‘Airline options’ tab on top of the SERP or the ‘More airline options’ button at the bottom of the airlines unit, contain more of the flight offers displaying the same type of transaction-relevant information as the airlines unit, include and interact with the same transaction-relevant query shortcut chips as the airlines unit, and are based on the same limited pool of websites pre-defined by Alphabet.
- (280) In summary, the airlines unit displayed on the SERP as well as the results page which is displayed following a click on the ‘Airline options’ tab or the ‘More airline options’ button, present a group of results specialised in a certain topic, which allows users to compare offers, including through the use of refinement chips, for a specific flight-related query, directly on the SERP. Their purpose is, therefore, to facilitate the initiation of direct transactions, and goes beyond the purpose of an OSE which is, in essence, to search the Internet and deliver to users results in which information related to the requested content can be found. Moreover, these groups of results, specialised in a certain topic are assembled from a limited pool of websites pre-defined and selected by Alphabet and not by performing searches of, in principle, all websites as required by the definition of an OSE. Accordingly, Alphabet provides a distinct or an additional flight intermediation service directly ranked on and embedded in the SERP.
- (281) For the reasons stated above, the Commission concludes that Alphabet offers a distinct or an additional flight intermediation service, via Google Search.

¹⁷⁰ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 32, [Attachment ID].

4.2.2.2. Alphabet's arguments

(282) In response to the Commission's Preliminary Findings Alphabet brought forward arguments contesting that the flights unit is an additional service on the SERP.

4.2.2.2.1. Arguments about the Commission's analysis to determine that the flights unit is a distinct or additional service

(283) According to Alphabet, the Commission's argumentation that the flights unit is distinct or additional service to Google Search is based on a flawed reasoning. To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (130) - (133) and (135) of this Decision.

4.2.2.2.2. Arguments about the features of the airlines unit

(284) Alphabet argues that none of the features that the Commission lists to support its view establish that the airlines unit is a distinct service.¹⁷¹ Alphabets argues that all those features noted in recitals (137) - (152) of this Decision in relation to the products and products ads unit, which apply by analogy to the airlines unit, are consistent with the purpose of an OSE.

4.2.2.2.3. Arguments about the airlines unit being a means to show better results

(285) Alphabet contests that the airlines unit constitutes a distinct or additional services. In Alphabet view, this unit serves the purpose of an OSE by showing relevant results that respond to users' queries and by presenting the results in a format that helps users find what they are looking for.¹⁷²

(286) First, Alphabet claims that submissions from airlines and their associations confirm that the airlines unit is beneficial to airlines and proper part of an OSE.¹⁷³

(287) Second, Alphabet argues that the airlines unit shows "results for relevant airlines" rather than flight offers. According to Alphabet, flight offers would involve identifying specific flights with relevant characteristics such as itinerary, departure date and time, seat class and luggage options together with a price for that flight (whereas Alphabet displays only an indicative price). The same applies to the airlines tab and query shortcut chips. As a result, the airlines unit and its features do not enable the search for, and comparison of flight offers.¹⁷⁴

4.2.2.3. The Commission's assessment of Alphabet's arguments

4.2.2.3.1. Arguments about the Commission's analysis to determine that the flights unit is a distinct or additional service

(288) The Commission did not err in its analysis when establishing that the flights unit is a distinct or additional service to Google Search for the same reasons as set out in

¹⁷¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 115-116, [Attachment ID].

¹⁷² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 164, [Attachment ID].

¹⁷³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 165, [Attachment ID].

¹⁷⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 166-167, [Attachment ID].

recitals (158) - (163) and (166) - (167) of this Decision in relation to the products and product ads units.

4.2.2.4. Arguments about the features of the airlines unit

(289) The Commission disagrees with Alphabet's assertions described in recitals (136) - (152) of this Decision that the features it identifies, on their own or taken together, do not demonstrate that the airlines unit constitute distinct or additional service. For the same reasons as given for the products and product ads units set out in recitals (168) - (187) of this Decision, the airlines unit is a distinct or additional service to Google Search.

4.2.2.4.1. Arguments about the airlines unit being a means to show better results

(290) The Commission disagrees with Alphabet's view that the airlines unit serves the purpose of an OSE. As explained in recital (280) of this Decision, the unit offers features and performs tasks that enable not only the search for airlines but also comparison.

(291) First, as noted in recital (189) of this Decision, it is not decisive for the application of Article 6(5) of Regulation (EU) 2022/1925 whether Alphabet's own service is beneficial to one user group or another. In any event, in order to comply with this Decision Alphabet is not required to remove the airlines unit altogether.

(292) Second, the Commission does not agree with Alphabet's distinction between flight offers and airline results. As explained in recital (272) of this Decision and not contested by Alphabet, the "indicative price" reflects the minimum price offered by an airline on a given date. The interplay between minimum prices and further information enables users to compare airlines in search for the most suitable offer. To this end, users do not require information on upgrades such as a higher seat class or checked baggage. As a matter of fact, third-party VSSs like Skyscanner do not offer these upgrades either. Instead, they direct users to the airline's website to customise their flight, just like the airlines unit does.

4.2.3. *Third parties offer similar services which are ranked on the SERP*

4.2.3.1. The Commission's position

(293) Third parties offer services, which have similar functionalities to those of Alphabet's flight intermediation service that is ranked on and embedded in the SERP. These third-party flight VSSs are ranked on the SERP in various ways. OSEs provide results based on search performed of, in principle, all websites, absent any opt-out.

(294) This is the case, for example, for VSSs intermediating flights, such as Kayak, Expedia, Skyscanner, eDreams or FareCompare. VSSs like these, typically share common functionalities, such as the display of transaction-relevant information, including the flight operator, pricing, whether the flight is connecting or not. They allow users to search for specific flight dates, filter results based on preferences such as price, round trip, duration, or number of stops and allow users to search for flights across various operators.

(295) As noted in recital (275) of this Decision, Alphabet's flight intermediation service is similar to these VSSs offered by third parties as it also displays transaction-relevant

information, namely, flight operator, prices and whether the flight is connecting or not. Just like third-party VSSs, Alphabet's flight intermediation service provides the users with means to refine their flight-related search query by, for example, filtering for the cheapest flight, a specific date, round trip or operator. As also noted in recital (274) of this Decision, a third-party service is similar to a distinct or additional service offered by Alphabet when it has a similar purpose, i.e., to facilitate the initiation of direct transactions.

- (296) For these reasons, the Commission concludes that third parties offer services, which are ranked on Google Search, and which are similar to the additional service, namely, the flight intermediation service, provided by Alphabet on the SERP.

4.2.3.2. Alphabet's arguments

- (297) According to Alphabet, the Commission overlooks relevant differences between the result units at issue and the allegedly similar third-party services, which according to Alphabet, invalidates the Commission's favouring allegations.¹⁷⁵ To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (201) – (204) of this Decision.

4.2.3.3. The Commission's assessment of Alphabet's arguments

- (298) First, the Commission rejects Alphabet's assertion that it ignored relevant differences between the result units at issue and similar third-party services, as also explained in recital (205) of this Decision. It is sufficient that the result units have certain functionalities that facilitate the initiation of transaction.
- (299) Second, the Commission recalls that as set out in recital (206) of this Decision, the concept of "*similar services*" under Article 6(5) of Regulation (EU) 2022/1925 does not coincide with the notion of substitutability used in Union competition law.
- (300) Third, the Commission disagrees with Alphabet's claim that the difference in monetisation between its own result units and similar services offered by third parties is material for the assessment under Article 6(5) of Regulation (EU) 2022/1925 as explained in recital (207) of this Decision.

4.2.4. *More favourable treatment in ranking on the SERP of Alphabet's flights intermediation service*

4.2.4.1. The Commission's position

- (301) When entering a flights-related query, Alphabet's own flights intermediation service is given more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.
- (302) First, Alphabet's flights intermediation service is embedded and ranked prominently on the SERP in the form of the airlines unit in combination with query shortcut chips. It consists of a dedicated box displaying transaction-relevant information such as prices of several flights offered by airlines. This enables users, in the flight's unit itself, to search and compare several different flights offered by airlines with a view to initiating a transaction.

¹⁷⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 281-282, [Attachment ID].

- (303) Second, users have the possibility to access the extended version of Alphabet's flights intermediation service directly from the SERP by clicking on the 'Airline options' tab displayed on top of the SERP or via the 'More airline options' button at the bottom of the airlines unit.
- (304) VSSs intermediating flights also have opportunities to feature on the SERP. They can appear in rich web results, dedicated VSS unit as well as following a click on the VSS tab and 'More flight sites' button at the bottom of the VSS unit. However, third-party VSSs intermediating flights feature less prominently on the SERP than Alphabet's flights intermediation service for the following reasons.
- (305) First, the possibility of VSSs to feature in rich web results does not compensate for the prominence given to Alphabet's flights intermediation service in the form of the airlines unit. Third-party VSSs are not given the possibility to display their own airlines unit, which would interact with the filters contained in query shortcut chips, anywhere on the SERP. While rich web results allow for a display of one single flight offer by a third-party VSSs directly on the SERP, unlike the airlines unit, they do not allow for comparison of several flights offered by the same VSS based on transaction-relevant information. Moreover, rich web results for VSSs are not displayed as prominently in terms of size as the airlines unit.
- (306) Second, the possibility of VSSs to feature in the VSS unit does not compensate for the prominence given to Alphabet's flights intermediation service in the form of the airlines unit. The VSS unit does not allow a given VSS to have its own box, embedded on the SERP and visible immediately after entering a flights-related query, containing several airline offers.
- (307) Third, there is no reserved link to any other VSS that intermediates flights on the SERP as is the case for the link to an extended version of the airlines unit, which is included at the bottom of the latter. The 'More flight sites' link, which is at the bottom of the VSS unit, presents to the user results of various VSSs and, therefore, does not give individual VSSs the same prominence as the prominence given to Alphabet's service via the link reserved for it at the bottom of the airlines unit. Similarly, the VSS tab does not compensate for the prominence given to Alphabet's flight intermediation service through the 'Flights' tab. There are no tabs for individual third-party VSSs displayed on top of the SERP, which would link to and show only the offers and functionalities from their respective inventory as is the case for Alphabet's flight intermediation service via the 'Flights' tab. Given that the VSS tab shows the results of various VSSs it gives less prominence to individual third party VSSs compared to the 'Flights' tab, which exclusively shows results of Alphabet's own flights intermediation service.
- (308) For the reasons stated above, the Commission concludes that Alphabet gives its flights intermediation service more favourable treatment in ranking on Google Search, compared to similar services offered by third parties.

4.2.4.2. Alphabet's arguments

- (309) According to Alphabet, the Commission's argumentation that the airlines unit is treated more favourably in ranking than similar services offered by third parties on Google Search is based on a flawed reasoning. To support this claim, Alphabet brings

forward a number of arguments. Arguments that do apply to flights intermediation, but that do not apply to products intermediation or not in the same way, are included individually in the remainder of this subsection. In all other cases, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (224) - (247) of this Decision.

4.2.4.2.1. Arguments about the March 2024 changes compensating for the prominence of distinct Google services

- (310) First, Alphabet's arguments about having introduced multiple new designs for flights VSSs that created a disproportionate increase and visibility for VSSs are the same, *mutatis mutandis*, as the arguments about new designs for CSSs set out in recitals (226) - (231) of this Decision, with the exception of the argument set out in recital (230) of this Decision about new ad formats, since no such format was introduced for flights VSSs. Furthermore, Alphabet's claim that it created a counterbalance for the airlines unit based on view and click data before and after 7 March 2024 is the same as the corresponding argument for product queries set out in recital (231) of this Decision, except that in the context of flights, users see VSS results **[50-60]** % more often and click on those results **[10-20]** % more often than before March 2024.
- (311) Second, Alphabet's arguments about the Commission's dismissal of the benefits to VSSs from the March 2024 changes are the same except that in the first place, the argument set out in recital (232) of this Decision for product queries does not apply to flights queries since the airlines unit does not have a preview page.
- (312) In the second place, Alphabet argues that, contrary to the Commission's position, query shortcut chips do not give more prominence to the airlines unit than to third-party VSSs, because their units do not '*interact with filters on the SERP anywhere*'. Alphabet claims that Google Search does not show any filters at all but it only shows query shortcut chips that apply in the same way to all units and results, including those for VSSs. Clicking on a query shortcut chip issues a new query and generates a new SERP in response to that new query. All units have the same chance to show on that SERP, so they do not afford more or different prominence to the airlines unit than those that Alphabet provides for VSSs.¹⁷⁶
- (313) Third, Alphabet's arguments regarding the Commission overlooking VSS participation in the airlines unit are the same as the corresponding arguments set out in recitals (234) - (238) of this Decision for product queries, except for those relating to ad formats and the preview page, neither of which exist for flights queries.

4.2.4.2.2. Arguments about the lack of tangible advantage for distinct Google services

- (314) Alphabet's arguments are the same as those made in the context of product queries set out in recitals (239) - (244) of this Decision.

4.2.4.2.3. Arguments about taking into account stakeholder interests

- (315) Alphabet's arguments are the same as those made in the context of product queries set out in recitals (245) - (247) of this Decision.

¹⁷⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 247, [Attachment ID].

4.2.4.3. The Commission's assessment of Alphabet's arguments

- (316) The Commission did not err in its analysis when establishing that the flights unit is treated more favourably in ranking on Google Search compared to similar services offered by third parties. For all arguments that are the same, *mutatis mutandis*, as for products queries, this is the case for the same reasons as set out in recitals (248) - (260) of this Decision.
- (317) Alphabet's only argument not already addressed in the context of product queries in section 4.1.4 is set out in recital (312) of this Decision and appears to misunderstand the argument the Commission makes. Namely, the Commission does not argue that an interaction with query shortcut chips gives the airlines units a better chance to appear on the SERP as compared to VSS units or rich results. As set out in recital (178) of this Decision, query shortcut chips provide an additional means to interact with airlines unit, thereby adding to the units' functionalities and, in turn, to their capacity to perform the tasks of a VSS.

4.2.5. Conclusion

- (318) The Commission therefore takes the view that Alphabet offers a flights intermediation service that is distinct from or additional to Google Search and that is more favourably ranked than similar services of third parties.

4.3. Trains intermediation

4.3.1. The Google SERP

- (319) As shown in Image 10, in response to a query related to train travel, Google Search displays a number of different features and results. All these different results are ranked on Google Search based on their expected utility to users (i.e., based on relevance and quality).¹⁷⁷

¹⁷⁷ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 176, [Attachment ID].

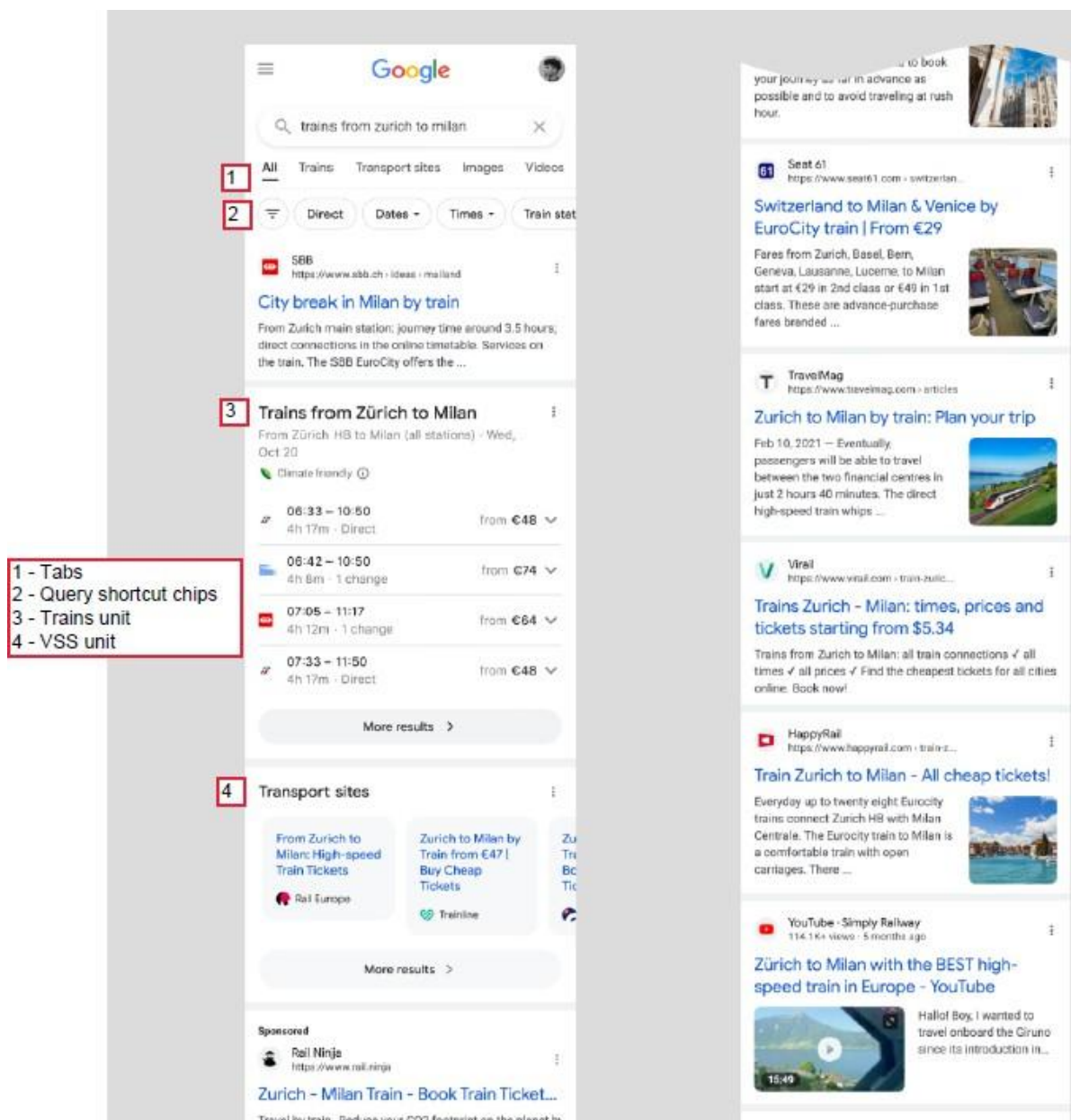


Image 10: SERP following a train-related query.¹⁷⁸

- (320) First, a user is presented with a ‘Transport sites’ tab on top of the SERP, as shown under number 1 in Image 10, which shows the train travel offers from various train travel VSSs.
- (321) Moreover, a user is also presented with the ‘Trains’ tab on top of the SERP, which shows only the train ticket vendor offers for different itineraries. The SERP displayed following a click on the ‘Trains’ tab is shown in Image 11.

¹⁷⁸ Alphabet’s response to RFI PO 5 of 9 July 2025, submitted on 18 July 2025, Question 1a, the trains unit, [Attachment ID].

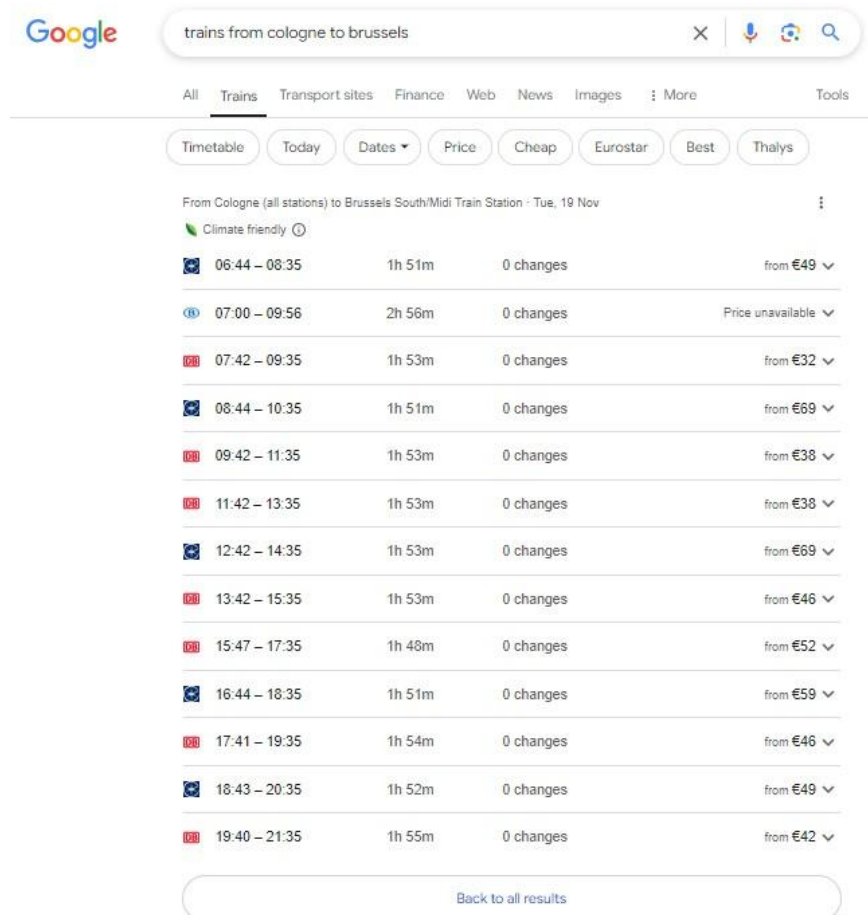


Image 11: SERP following a click on the ‘More results’ button at the bottom of the trains unit or ‘Trains’ tab.¹⁷⁹

- (322) Second, similar as for flight-related queries, for train travel-related queries, a user is presented with a row of at most eight query shortcut chips, which refresh the SERP when clicked, including the content of the various units. Examples of query shortcut chips including extendable pickers, such as ‘Direct’, ‘Dates’, ‘Times’ and ‘Train station’ are shown under number 2 in Image 10 and in Image 11.
- (323) Third, a user who has entered a query related to transport by train is presented with a trains unit, as shown under number 3 in Image 10, which displays a list of up to four itineraries with information such as minimum prices, train times, journey duration and changes. As shown in Image 12, if the user expands a particular itinerary, they will see further details regarding that particular itinerary including when and where the changes are taking place. In order for an entity to be eligible to appear in the trains unit, that entity has to be a train tickets vendor and has to provide data feeds to Alphabet.¹⁸⁰ As shown in Image 10, at the bottom of the trains unit, the user has the

¹⁷⁹ Screenshot of the SERP after a click on the ‘More results’ button at the bottom of the trains unit following a query ‘Trains from Cologne to Brussels’, retrieved on 12 November 2024, [Attachment ID].

¹⁸⁰ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 32, 34 [Attachment ID].

possibility to click on a 'More results' button.¹⁸¹ Clicking on that button will show the results of train ticket vendor offers for different itineraries as depicted in Image 11. In addition to data feeds, the information shown in the trains unit, including in the expanded view of one of the options in that unit, as well as in the view following a click on the 'More results' button, is mainly sourced from the General Transit Feed Specification ("GTFS") database, an open-source repository for transit information that Alphabet set up and that is available to third parties.¹⁸² Alphabet uses these different data sources to assemble a dataset from which the itineraries in the trains unit are obtained.¹⁸³

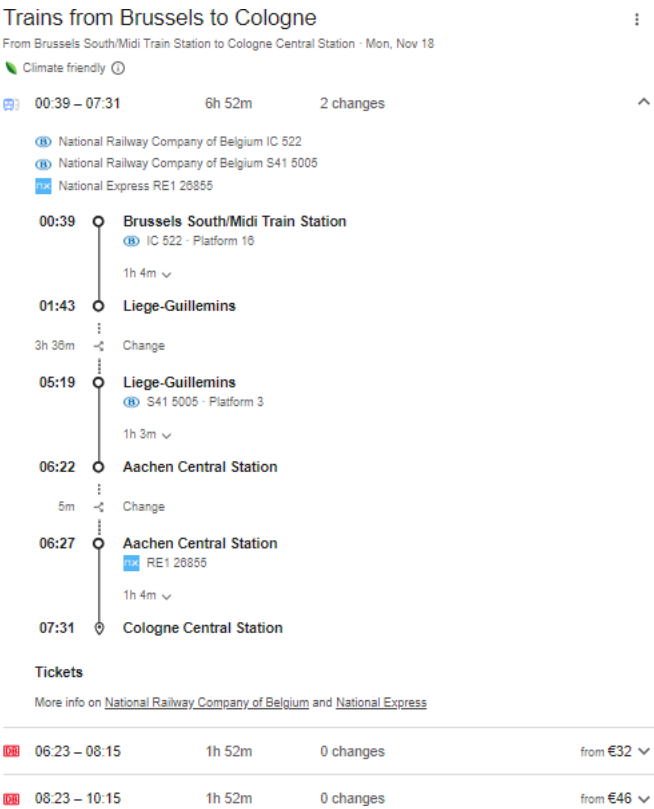


Image 12: Trains unit following a click on one of the options.¹⁸⁴

(324) Fourth, as depicted under number 4 in Image 10, the SERP may display a VSS unit titled 'Transport sites', which contains groups of results for VSSs, with links to the latter. In order to appear in the VSS unit, VSSs need to be added to Alphabet's internal

¹⁸¹ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 34, [Attachment ID] and Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 13, [Attachment ID].

¹⁸² Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 22, [Attachment ID].

¹⁸³ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 36-37 [Attachment ID].

¹⁸⁴ Screenshot of the SERP after a click on one of the options in the trains unit following a query 'Trains from Cologne to Brussels', retrieved on 11 November 2024, [Attachment ID].

list of VSSs.¹⁸⁵ At the bottom of the VSS unit, the user has the possibility to click on a 'More results' button. Clicking on that button will show more results of third-party train travel VSSs.

4.3.2. *Alphabet's trains intermediation service is distinct or additional to Google Search and is ranked on the SERP*

4.3.2.1. The Commission's position

- (325) As described in recital (323) of this Decision, in response to train-related queries, the Google SERP shows a trains unit. This unit, which is ranked on and embedded in Google Search, provides a distinct or an additional service to an OSE because its purpose goes beyond that of an OSE, namely, it has functionalities and performs tasks, which are consistent with the purpose of a VSS
- (326) In particular, the trains unit presents a group of results specialised in a certain topic with functionalities that allow users to filter, interact with, and compare competing offers based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers.
- (327) More precisely, by featuring transactional information, the trains unit enables the search for and comparison of train itinerary offers based on different commercial factors such as prices, trip duration, times of departure and arrival and number of changes. Clicking on one of the train options in the unit expands to show further details for that trip.
- (328) Furthermore, as described in recital (322) of this Decision and shown in Images 10 and 11, the SERP provides query shortcut chips that allow users to filter the information in the trains unit and select, for example, whether they are searching for a 'Direct' train itinerary while the 'Dates', 'Times' and 'Train station' pickers allow them to choose exact date, times and train stations of their choice. As Alphabet states itself, query shortcut chips operate as 'filters'.¹⁸⁶
- (329) In addition, the trains unit falls outside the definition of an OSE as it does not perform searches of in principle all websites, or all websites in a particular language. As described in recital (323) of this Decision, not all types of websites can appear in the trains unit; only train ticket vendors' websites can. Additionally, to be eligible to feature in this unit, train ticket vendors have to provide data feeds to Alphabet. As explained by Alphabet, data feeds enable a more accurate display of transaction-relevant data, in particular, of real-time prices for train itineraries.¹⁸⁷ The trains unit and the comparison enabled within is, therefore, not assembled by performing searches of, in principle, all websites, but is limited to those websites that are train ticket vendors' websites and that provide data feeds to Alphabet based on a pre-defined set of Alphabet's criteria.
- (330) The search results, which are displayed following a click on the 'Trains' tab on top of the SERP or the 'More results' button at the bottom of the trains unit, contain more of

¹⁸⁵ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraph 55, [Attachment ID].

¹⁸⁶ Alphabet, Gelato DMA 6(5) Visual PRD, p. 15, [Attachment ID].

¹⁸⁷ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 32, [Attachment ID].

the train travel offers displaying the same type of transaction-relevant information as the trains unit, include and interact with the same transaction-relevant query shortcut chips as the trains unit and are based on the same limited pool of websites, predefined by Alphabet.

- (331) In summary, the trains unit displayed on the SERP, as well as the results page which is displayed following a click on the ‘Trains’ tab or the ‘More results’ button, presents a group of results specialised in a certain topic which allows users to compare offers, including through refinement chips, for a specific train-travel related query, directly on the SERP. Their purpose is, therefore, to facilitate the initiation of direct transactions, which goes beyond the purpose of an OSE, which is, in essence, to search the Internet and deliver to users results in which information related to the requested content can be found. Moreover, these groups of results, specialised in a certain topic are assembled from a limited pool of websites pre-defined and selected by Alphabet and not by performing searches of, in principle, all websites as required by the definition of an OSE. For these reasons, Alphabet provides a distinct or an additional train intermediation service directly ranked on and embedded in the SERP.
- (332) For the reasons stated above, the Commission concludes that Alphabet offers a distinct or an additional train intermediation service, via Google Search.

4.3.2.2. Alphabet’s arguments

- (333) In response to the Commission’s Preliminary Findings Alphabet brought forward arguments contesting that trains unit is an additional services on the SERP.

4.3.2.2.1. Arguments about the Commission’s analysis to determine that the trains unit is a distinct or additional service

- (334) According to Alphabet, the Commission’s argumentation that the trains unit is distinct or additional service to Google Search is based on a flawed reasoning. To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (130) - (133) and (135) of this Decision.

4.3.2.2.2. Arguments about the features of the trains unit

- (335) Alphabet argues that none of the features that the Commission lists to support its view establish that the trains unit is a distinct service.¹⁸⁸ Alphabet argues that all those features noted in recitals (137) – (152) of this Decision in relation to the products and products ads unit, which apply by analogy to the trains unit, are consistent with the purpose of an OSE.

4.3.2.2.3. Arguments about the trains unit being a means to show better results

- (336) Alphabet contests that the trains unit constitutes a distinct or additional service. In Alphabet’s view, this unit serves the purpose of an OSE by showing relevant results that respond to users’ queries and by presenting the results in a format that helps users find what they are looking for.¹⁸⁹

¹⁸⁸ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 115-116, [Attachment ID].

¹⁸⁹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 169, [Attachment ID].

(337) First, Alphabet argues that the trains unit shows train itinerary information rather than train itinerary offers. In Alphabet’s view, the display of train operators and train VSSs offering tickets with an indicative price is an ancillary element. Train itinerary offers would involve specific prices and seat class options.¹⁹⁰

(338) Second, Alphabet submits that the trains unit does not constitute a VSS because it operates differently from third-party VSSs. The trains unit is open to all interested train VSSs and results for train VSSs in the unit link to the websites of VSSs.¹⁹¹

4.3.2.3. The Commission’s assessment of Alphabet’s arguments

4.3.2.3.1. Arguments about the Commission’s analysis to determine that the trains unit is a distinct or additional service

(339) The Commission did not err in its analysis when establishing that the trains unit is a distinct or additional service to Google Search for the same reasons as set out in recitals (158) - (163) and (166) - (167) of this Decision in relation to the products and product ads units.

4.3.2.4. Arguments about the features of the trains unit

(340) The Commission disagrees with Alphabet’s assertions described in recitals (137) – (152) of this Decision that the features it identifies, on their own or taken together, do not demonstrate that the trains unit constitute distinct or additional service. For the same reasons as given for the products and product ads units set out in recitals (169) - (187) of this Decision, the trains unit is a distinct or additional service to Google Search.

4.3.2.4.1. Arguments about the trains unit being a means to show better results

(341) The Commission disagrees with Alphabet’s view that the trains unit serves the purpose of an OSE. As explained in recital (331) of this Decision, the unit offers features and performs tasks that enable not only the search for offerings of train tickets but also their comparison.

(342) First, the Commission does not follow Alphabet’s distinction between train itinerary offers and train itinerary information. Neither is there any basis for Alphabet’s claim that certain features are ancillary in nature. As explained at recital (292) of this Decision, the interplay between minimum prices and further information enables users to compare train itineraries in search for the most suitable offer. To this end, users do not require information on upgrades.

(343) Second, a trains VSS is no less of a VSS because it includes third-party VSSs and links to their websites. A “VSS” operates the same way as a “CSS” apart from the latter being sector specific. Hence, the reasoning stated for CSSs in recital (195) of this Decision applies to VSSs, as well.

¹⁹⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 170-171, [Attachment ID].

¹⁹¹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 172, [Attachment ID].

4.3.3. *Third parties offer similar services which are ranked on the SERP*

4.3.3.1. The Commission's position

- (344) Third parties offer services, which have similar functionalities to those of Alphabet's train intermediation service that is ranked on and embedded in the SERP. These third-party train travel VSSs, such as Rail Europe, Trainline, Omio, TrainPal or HappyRail are ranked on the SERP in various ways. This is because OSEs provide results based on search performed of, in principles, all websites, absent any opt-out. They can appear as organic search result on the SERP or in the VSS unit as explained in recital (324) of this Decision.
- (345) VSSs like the ones mentioned, offer platforms for users to find and compare train travel options. They typically share common features such as display of transaction-relevant information: pricing, train schedules and number of stops. They allow users to search for specific train travel dates, filter results based on preferences such as price, train ticket vendor or number of stops and allow users to search for train itineraries across various train operators and vendors.
- (346) Alphabet's train intermediation service is similar to these VSSs offered by third parties as it also displays transaction-relevant information, namely, prices, number of changes and trip duration. Just like third-party VSSs, it provides users with the means to refine their train-travel search query by, for example, filtering for a specific date, time or direct itineraries only.
- (347) For these reasons, the Commission concludes that third parties offer services, which are ranked on Google Search and which are similar to the additional service, namely, train intermediation service, provided by Alphabet on the SERP.

4.3.3.2. Alphabet's arguments

- (348) According to Alphabet, the Commission overlooks relevant differences between the result units at issue and the allegedly similar third-party services, which according to Alphabet, invalidates the Commission's favouring allegations.¹⁹² To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (201) - (204) of this Decision.

4.3.3.3. The Commission's assessment of Alphabet's arguments

- (349) First, the Commission rejects Alphabet's assertion that it ignored relevant differences between the result units at issue and similar third-party services, as also explained in recital (205) of this Decision.
- (350) Second, the Commission recalls that as set out in recital (206) of this Decision, the concept of "*similar services*" under Article 6(5) of Regulation (EU) 2022/1925 does not coincide with the notion of substitutability used in Union competition law.
- (351) Third, the Commission disagrees with Alphabet's claim that the difference in monetisation between its own result units and similar services offered by third parties is material for the assessment under Article 6(5) of Regulation (EU) 2022/1925 as explained in recital (207) of this Decision.

¹⁹² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 281-282, [Attachment ID].

4.3.4. *More favourable treatment in ranking on the SERP of Alphabet's trains intermediation service*

4.3.4.1. The Commission's position

- (352) When entering a query related to train itinerary, Alphabet's own train intermediation service is given more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.
- (353) First, Alphabet's train intermediation service is embedded and ranked prominently on the SERP in the form of the trains unit in combination with query shortcut chips. It consists of a large, dedicated box displaying transaction-relevant information such as prices of several train itineraries offered by railways. This enables users, in the trains unit itself, to search and compare several different train itineraries offered by railways with a view to initiating a transaction.
- (354) Second, users have the possibility to expand the different train itinerary options displayed in the trains unit and thereby obtain further transaction-relevant information related to the chosen itinerary directly on the SERP.
- (355) Third, users have the possibility to access the extended version of Alphabet's train intermediation service directly from the SERP by clicking on the 'Trains' tab displayed on top of the SERP.
- (356) Fourth, the prominence of Alphabet's train intermediation service is also strengthened by users having the possibility to access it via the 'More results' button at the bottom of the trains unit.
- (357) VSSs intermediating train travel also have opportunities to feature on the SERP. They can appear in the dedicated VSS unit and following a click on the VSS tab and 'More results' button at the bottom of the VSS unit.
- (358) However, third party train travel VSSs feature less prominently on the SERP than Alphabet's train intermediation service for the following reasons.
- (359) First, the possibility of VSSs to feature in the VSS unit does not compensate for the prominence given to Alphabet's train intermediation service in the form of the trains unit. The VSS unit does not allow a given VSSs to have its own box, embedded on the SERP and visible immediately after entering a train travel related query, containing several offers for train rides that users can compare directly on the SERP. Moreover, the VSS unit is not displayed as prominently in terms of the size as the trains unit.
- (360) Second, there is no reserved link to any other train travel VSS on the SERP as is the case for the link to an extended version of the trains unit, which is included at the bottom of the latter. The 'More results' link, which is displayed at the bottom of the VSS unit, presents to the user results of various VSSs and, therefore, does not give individual VSSs same prominence as the prominence given to Alphabet's service via the link reserved for it at the bottom of the trains unit.
- (361) Third, the VSS tab does not compensate for the prominence given to Alphabet's train intermediation service through the 'Trains' tab. There are no tabs for individual third-party VSSs displayed on top of the SERP, which would link to and show only the offers and functionalities from their own inventory as is the case for Alphabet's train

intermediation service via the ‘Trains’ tab. Given that the VSS tab shows the results of various VSSs, it gives less prominence to individual third party VSSs compared to the ‘Trains’ tab, which exclusively shows the results of Alphabet’s own train intermediation service.

- (362) For the reasons stated above, the Commission concludes that Alphabet offers an additional train intermediation service that is given more favourable treatment in ranking on Google Search compared to similar services offered by third parties.

4.3.4.2. Alphabet’s arguments

- (363) According to Alphabet, the Commission’s position that the trains unit is treated more favourably in ranking than similar services offered by third parties on Google Search is based on a flawed reasoning. To support this claim, Alphabet brings forward a number of arguments. Arguments that do apply to train intermediation, but that do not apply to flights intermediation or not in the same way, are included individually in the remainder of this subsection. In all other cases, Alphabet brings forward the same arguments as for the flights unit as set out in recitals (309) - (315) of this Decision.

4.3.4.2.1. Arguments about the March 2024 changes compensating for the prominence of distinct Google services

- (364) First, Alphabet’s arguments about having introduced multiple new designs for train VSSs that created a disproportionate increase and visibility for VSSs are the same, *mutatis mutandis*, as the arguments about new designs for flights VSSs set out in recital (310) of this Decision, with the exception of the argument that it created a counterbalance for the trains unit based on view and click data before and after 7 March 2024, since no such data was provided by Alphabet in the context of trains. Second, Alphabet’s arguments about the Commission’s dismissal of the benefits to VSSs from the March 2024 changes and its arguments regarding the Commission overlooking VSS participation in the airlines unit are the same as for flights queries set out in recitals (311) - (312) of this Decision.

4.3.4.2.2. Arguments about the lack of tangible advantage for distinct Google services

- (365) Alphabet’s arguments are the same as those made in the context of flights queries set out in recital (314) of this Decision.

4.3.4.2.3. Arguments about taking into account stakeholder interests

- (366) Alphabet’s arguments are the same as those made in the context of flights queries set out in recitals (316) - (317) of this Decision.

4.3.4.3. The Commission’s assessment of Alphabet’s arguments

- (367) The Commission did not err in its analysis when establishing that the trains unit is treated more favourably in ranking on Google Search compared to similar services offered by third parties for the same reasons, *mutatis mutandis*, as for products and flights queries, this is the case for the same reasons as set out in recitals (248) - (267) and (316) - (317) of this Decision.

4.3.5. *Conclusion*

- (368) The Commission therefore takes the view that Alphabet offers a trains intermediation service that is distinct from or additional to Google Search and that is more favourably ranked than similar services of third parties.

4.4. **Lodging intermediation**

4.4.1. *The Google SERP*

- (369) For queries related to lodging possibilities such as hotels or vacation rentals, the SERP may display a number of specific units and features as seen in Image 13. All these different results are ranked on Google Search.¹⁹³

¹⁹³ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 176, [Attachment ID].

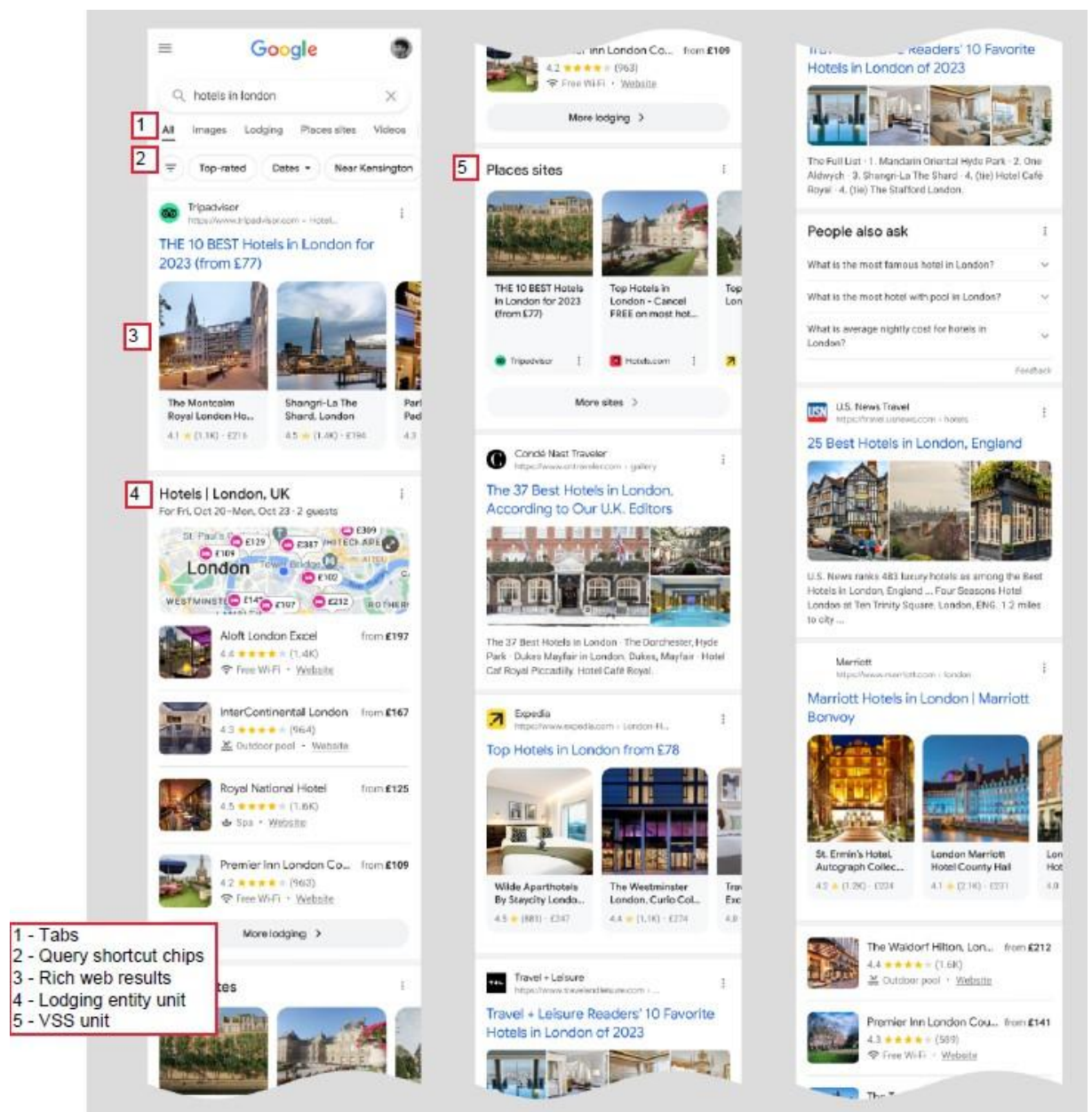


Image 13: SERP following a query relating to lodging (in this case, 'hotels in London').¹⁹⁴

- (370) First, a user who enters a lodging-related query, as shown under number 1 in Image 14, is presented with a 'Comparison sites' tab (later renamed to 'Place Sites') on top of the SERP, which when clicked presents links to various VSSs which intermediate lodging options. VSSs do not need to add any mark-up to their websites, unlike in the case of rich results as is discussed in recital (373) of this Decision, to be eligible to appear in response to a user clicking on the VSSs tab.¹⁹⁵ However, they do have to

¹⁹⁴ Alphabet's response to RFI PO 5 of 9 July 2025, submitted on 18 July 2025, Question 1b, the lodging unit, [Attachment ID].

¹⁹⁵ Alphabet Compliance Report 2024 – Google Search Chapter, paragraph 50, [Attachment ID].

qualify as a VSS and be added to Alphabet’s internal VSS list to be eligible to appear there.¹⁹⁶

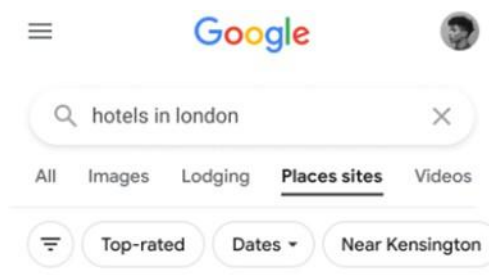


Image 14: New tab for VSSs.¹⁹⁷

- (371) As displayed in Images 13 and 14, a user who has entered a lodging-related query is also shown a ‘Lodging’ tab on top of the SERP, which allows the user to focus results on offers from individual hotels or vacation rentals.
- (372) Second, as shown under number 2 in Image 13, Alphabet displays query shortcut chips below the search box. For queries related to lodging, these chips often contain extendable pickers for the number of guests (providing a drop-down menu when clicked which allows a user to filter lodging offers by choosing up to 6 guests), for dates (where another drop-down menu with a calendar opens, allowing to select check-in and -out dates), ancillary attributes of hotels and other types of accommodations (such as ‘top-rated’, ‘mountain view’, ‘city centre’, among others). An example of lodging query shortcut chips is presented in Image 15.

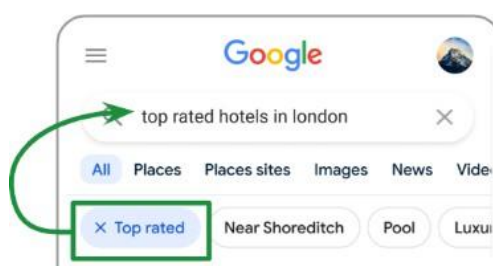


Image 15: Example of lodging query shortcut chips.¹⁹⁸

- (373) Third, users may also be presented with rich web results for providers of lodging services such as hotels and for VSSs intermediating that kind of offer.¹⁹⁹ Examples of rich web results for lodging VSSs are pictured under number 3 in Image 13. To be eligible to participate in this result type, VSSs have to be qualify as a VSS and be added to Alphabet’s relevant internal VSS list.²⁰⁰ Providers of lodging services and

¹⁹⁶ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 49 and 55, [Attachment ID].

¹⁹⁷ Alphabet Compliance Report 2024 – Google Search Chapter, page 17, [Attachment ID].

¹⁹⁸ Alphabet Compliance Report 2024 – Google Search Chapter, page 17, [Attachment ID].

¹⁹⁹ Alphabet Compliance Report 2024 – Google Search Chapter, paragraph 50, [Attachment ID].

²⁰⁰ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 49 and 54, [Attachment ID].

VSSs intermediating them can choose to add structured data mark-up to their websites to allow Alphabet's crawlers to identify rich elements to include in these rich results, based on Alphabet's specifications.²⁰¹

- (374) Fourth, as shown under number 4 in Image 13, the SERP may display a lodging unit (labelled 'Hotels' in that image) after a user has entered a query related to lodging. This unit contains an interactive map which contains pins representing the different lodging establishments matching the user's query, more of which are also included in the 'Lodging' tab discussed in recital (371) of this Decision and which show a price for each lodging offer. Users can extend the map, zoom in and out, drag, view prices and filter the offers that are included in the map by interacting with the query shortcut chips discussed in recital (372) of this Decision. Below the map, the lodging unit contains up to four²⁰² offers from hotels or other accommodations.²⁰³
- (375) The lodging unit displays transaction-related information about each offer contained in it. Prices will be displayed where the hotel in question has decided to share data feeds with Alphabet for this purpose²⁰⁴ or has manually entered this information through their Business Profile.²⁰⁵ Alphabet has explained that data feeds are required to enable a more accurate display of volatile data, in particular, of real-time prices for time- and season-dependent services such as hotel bookings.²⁰⁶ Further information on the offers in the lodging unit include star ratings, amenities, a link to the hotel's website as well as a picture.²⁰⁷ Alphabet relies on a wide range of data sources including crawling, its own observations, licensed data, user-generated content and data provided by hotels²⁰⁸ and VSSs²⁰⁹ to assemble the dataset from which the information shown is obtained and which are ranked using signals that are relevant for comparing lodging establishments.²¹⁰

²⁰¹ For VSSs: <https://developers.google.com/search/docs/appearance/structured-data/carousels-beta#localbusiness>. For providers of lodging establishments (such as hotels, vacation rentals, etc.): <https://developers.google.com/search/docs/appearance/structured-data/local-business> and [LodgingBusiness - Schema.org Type](https://developers.google.com/search/docs/appearance/structured-data/local-business#LodgingBusiness-Schema.org-Type).

²⁰² Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, 13, [Attachment ID].
²⁰³ In its internal documents, Alphabet refers to these as [NAME OF GOOGLE'S INTERNAL DOCUMENT].

²⁰⁴ Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraphs 17-19, [Attachment ID].

²⁰⁵ See https://support.google.com/business/answer/9177958?hl=en&ref_topic=9178355.

²⁰⁶ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 32, [Attachment ID].

²⁰⁷ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 33 et seq., [Attachment ID].

²⁰⁸ Again through the Business Profile, which is required for hotels to be able to appear on Google Search as well as Google Maps, see: https://support.google.com/business/answer/9178356?hl=en&ref_topic=9178355&sjid=6133871576244916869-EU.

²⁰⁹ Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraphs 22 et seq., [Attachment ID].

²¹⁰ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 29-32, 37 and 39, [Attachment ID] and Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 16, [Attachment ID].

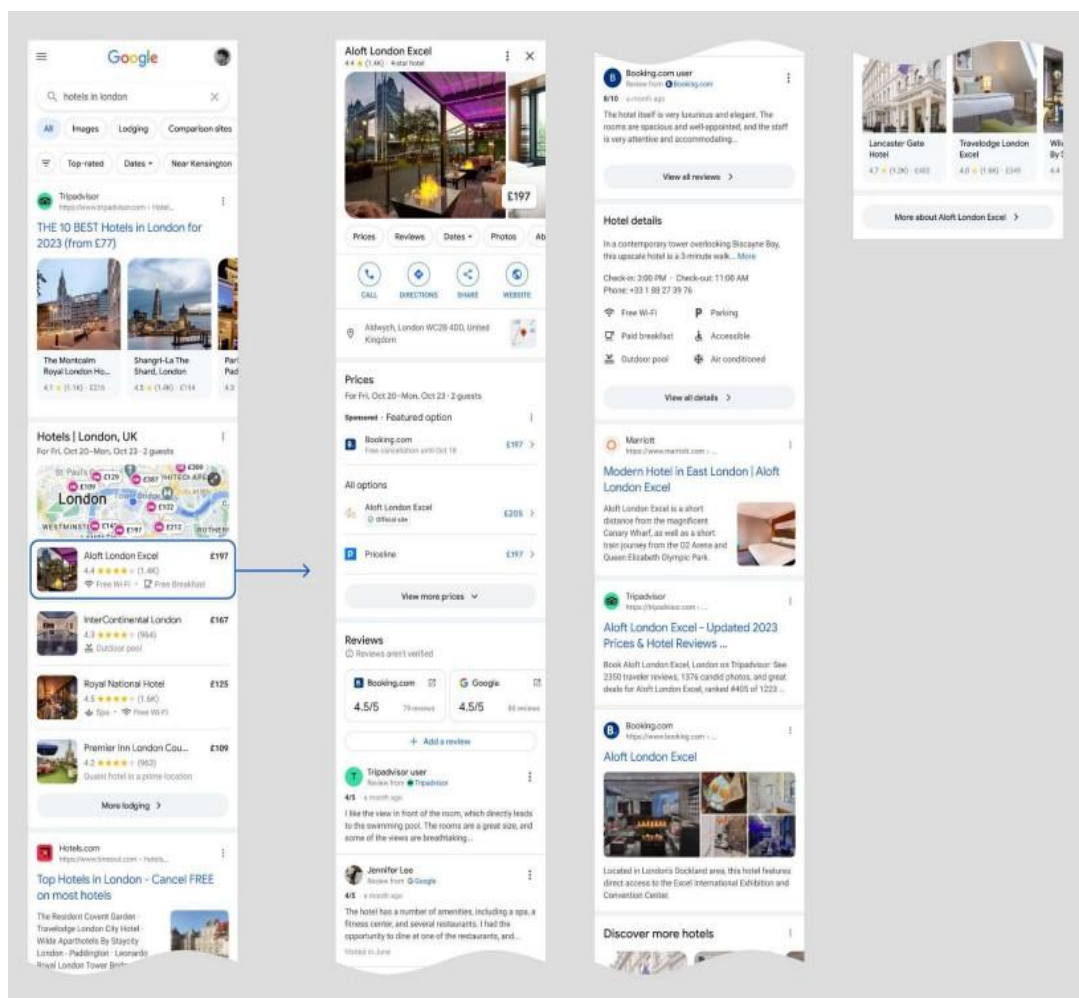


Image 16: Preview page for hotels.²¹¹

- (376) Clicking on one of the lodging offers shown as pins on the map or on any of the offers listed below it expands a preview page which provides users with further, more detailed information about that particular hotel. As shown in Image 16, the preview page contains a list of paid (as indicated by the ‘Sponsored’ heading above that offer) and organic booking offers for that hotel and their respective prices, one from the hotel in question, the others from different VSSs²¹², who are eligible to participate in the offer lists if they have that hotel room in their inventory and have provided Alphabet with data feeds for the purpose of showing prices in these offer lists.²¹³ The preview page also shows reviews and a section titled ‘Hotel details’ where users can find further transaction-relevant information such as check-in and check-out times, the hotel’s phone number and other information. Finally, the location of the selected hotel

²¹¹ Alphabet, Mocks provided to the Commission on 21 February 2024 and used in the DMA 6(5) Hospitality Workshop on 7 December 2023, page 25, [Attachment ID].

²¹² Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 142-143, [Attachment ID].

²¹³ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 129, [Attachment ID].

is displayed on a map and users can once again use query shortcut chips to filter the offer list in the preview page on parameters such as dates or guests.

- (377) Fifth, as pictured under number 5 in Image 13 and Image 17, after having entered a query related to lodging, a user may be presented with a VSS unit²¹⁴ titled ‘Places sites’²¹⁵ containing links to different VSSs that intermediate lodging offers matching the query entered by that user. Clicking ‘more sites’ at the bottom of this unit redirects the user to a page presenting more VSSs and no other types of results. That same page with only VSSs can also be accessed by clicking the ‘Places sites’ tab described in recital (370) of this Decision. The conditions for VSSs that intermediate lodging to be eligible to appear in this unit are therefore also the same as was explained in recital (370) of this Decision.

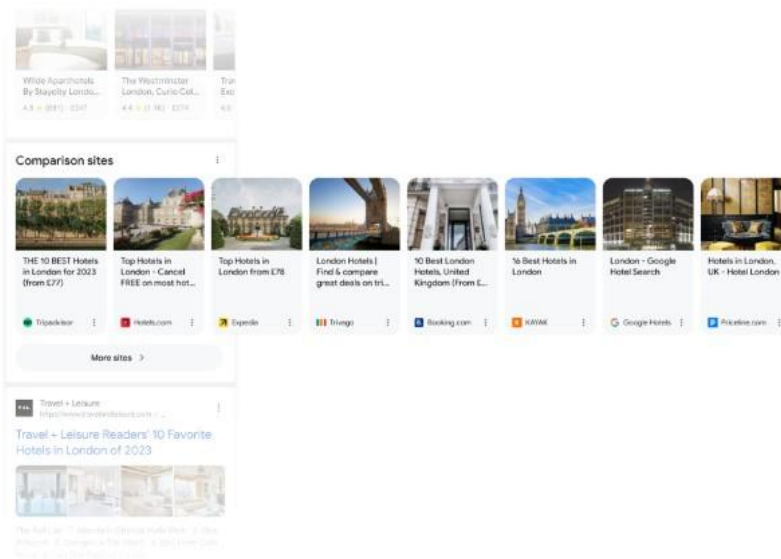


Image 17: VSS unit for lodging intermediaries.²¹⁶

4.4.2. Alphabet’s lodging intermediation service is distinct or additional to Google Search and is ranked on the SERP

4.4.2.1. The Commission’s position

- (378) As described in recitals (374) - (376) of this Decision, in response to a query related to lodging, the Google SERP shows a lodging unit grouping lodging offers relevant for that query (e.g. hotels in Brussels). This unit which is ranked on and embedded in Google Search, provides a distinct or an additional service to an OSE because its purpose goes beyond that of an OSE, namely, it has specific functionalities and performs tasks, which are consistent with the purpose of a VSS.
- (379) In particular, the lodging unit presents a group of results specialised in a certain topic with functionalities that allow users to filter, interact with, and compare competing

²¹⁴ Alphabet Compliance Report 2024 – Google Search Chapter, paragraphs 41 et seq., [Attachment ID].

²¹⁵ ‘Comparison sites’ in Image 15, which as explained in recital (371) was later changed by Alphabet to ‘Places sites’.

²¹⁶ Alphabet Compliance Report 2024 – Google Search Chapter, page 13, [Attachment ID].

offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers.

- (380) More precisely, the lodging unit groups commercial offers of hotels for a given lodging-related query and enables the search for and comparison of lodging offers as displayed in Image 13, the lodging unit shows multiple offers in the hotel category searched by users. These offers are enhanced with detailed commercial information, such as price, dates (e.g. check-in and check-out) , images which can be swiped through, star ratings, a brief description of the accommodation (e.g., ‘Modest hotel with a shared kitchen’), and descriptive tags about the entity such as whether the offers shown have ‘free Wi-Fi’, a ‘mountain view’ or whether the accommodation is situated in the ‘city centre’.²¹⁷ This information is presented in a standardised manner, facilitating the comparison of the different lodging offers intermediated by Alphabet.
- (381) Furthermore, the lodging offers included in the lodging unit are not only displayed in the form of a list, but as explained in recital (374) of this Decision are also displayed on an interactive map. Due to the interactive nature of the map, which can be used as a filter for the location a user might be interested to book a stay in, the local entity unit visualises the physical location of hotels to help users compare among them. Moreover, the display of real-time price information as well as the location of accommodations as displayed on the map in the lodging unit constitute important parameters for users to compare lodging offers.²¹⁸
- (382) This is reinforced by the preview page, which as explained in recital (376) of this Decision expands when a user clicks on one of the lodging offers displayed on the map and/or the list below in the lodging unit or on one of the longer list of offers included in the ‘Lodging’ tab and which shows further details and different distribution channels for that offer. According to Alphabet’s internal documents, these preview pages are referred to as **[NAME OF GOOGLE’S INTERNAL DOCUMENT]**, implying that all necessary information on an entity can be found on the preview page.²¹⁹
- (383) Furthermore, as described in recital (372) of this Decision and shown in Image 15, the SERP provides query shortcut chips that allow users to filter the transaction-relevant information of offers displayed in the lodging unit and select, for example, whether they are searching for accommodations for three guests, on a particular weekend or which are top rated.
- (384) In addition, the lodging unit falls outside the definition of an OSE as it does not perform searches of, in principle, all websites or all websites in a particular language. As explained in recital (375) of this Decision, not all types of websites can appear in the lodging unit; only lodging providers (hotels, vacation rentals) can in principle appear in it.²²⁰ Alphabet relies on a range of data sources to assemble its dataset used

²¹⁷ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 34, [Attachment ID].

²¹⁸ As also recognised by Alphabet, see:
<https://support.google.com/travel/answer/6276008?sjid=575502174471755602-EU>.

²¹⁹ Alphabet, Lodging DMA 6(5), Plan, p. 26, [Attachment ID].

²²⁰ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 26-27, [Attachment ID].

to populate the lodging unit and show users contextual information about the websites eligible to appear in it,²²¹ including data feeds and information optionally provided by hotels and other lodging providers through their Business Profile, as well as from lodging VSSs to show prices in the preview page. The information contained in the lodging unit is therefore not obtained by performing searches of, in principle all websites but is limited to those websites that are lodging establishments and the bespoke dataset of contextual information about those specific establishments selected by Alphabet to populate it.

- (385) Additionally, the page focussing on hotel offers alone described in recital (371) of this Decision, which is displayed following a click on the ‘Lodging’ tab on top of the SERP or the ‘See more’ button at the bottom of the lodging unit, contain more of the lodging offers displaying the same type of commercial information as in the unit, includes and interacts with the same transaction-relevant query shortcut chips as the lodging unit and are based on the same limited pool of websites and other data sources pre-defined and selected by Alphabet.
- (386) In summary, the lodging unit as well as the page displayed following a click on the ‘Lodging’ tab or the ‘See more’ button, constitutes a group of result specialised in a certain topic, which allows users to compare offers, including through the use of filtering options provided in the form of the map and query shortcut chips, and the possibility to further compare different lodging offers for a specific hotel in the preview page, directly on the SERP. Its purpose is therefore to facilitate the initiation of direct transactions, and goes beyond the purpose of an OSE, which is, in essence, to search the Internet and deliver to users results in which information related to the requested content can be found. Moreover, these groups of results, specialised in a certain topic are assembled from a limited pool of websites pre-defined and selected by Alphabet and not by performing searches of, in principle, all websites as required by the definition of an OSE. Accordingly, Alphabet provides a distinct or additional lodging intermediation service, directly ranked on and embedded in the SERP.

4.4.2.2. Alphabet’s arguments

- (387) In response to the Commission’s Preliminary Findings Alphabet brought forward arguments contesting that lodging unit is an additional service on the SERP.

4.4.2.2.1. Arguments about the Commission’s analysis to determine that the lodging unit is a distinct or additional service

- (388) According to Alphabet, the Commission’s position that the lodging unit is distinct or additional service to Google Search is based on a flawed reasoning. To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (130) - (133) and (135) of this Decision.

4.4.2.2.2. Arguments about the features of the lodging unit

- (389) Alphabet argues that none of the features that the Commission lists to support its view establish that the lodging unit is a distinct service.²²² Alphabets argues that all those

²²¹ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 34-37, [Attachment ID].

²²² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 115-116, [Attachment ID].

features noted in recitals (137) – (152) of this Decision in relation to the products and products ads unit, which apply by analogy to the lodging unit, are consistent with the purpose of an OSE.

4.4.2.2.3. Arguments about the lodging unit being a means to show better results

- (390) Alphabet contests that the lodging unit constitutes a distinct or additional service. In Alphabet view, this unit serves the purpose of an OSE by showing relevant results that respond to users' queries and by presenting the results in a format that helps users find what they are looking for.²²³
- (391) First, Alphabet claims that submissions from hotels and their associations confirm that the lodging unit is beneficial to hotels and a proper part of an OSE.²²⁴
- (392) Second, Alphabet argues that the lodging unit does not show hotel offers because it displays only an indicative price. While offers may appear on the preview page, the latter is open to interested VSSs.²²⁵
- (393) Third, Alphabet contends that the information provided in the lodging unit is necessary to identify hotels and provide proper context. Alphabet submits a user survey to confirm that this information is useful, part of what users expect an OSE to show, and not beyond the purpose of general search.²²⁶

4.4.2.3. The Commission's assessment of Alphabet's arguments

4.4.2.3.1. Arguments about the Commission's analysis to determine that the lodging unit is a distinct or additional service

- (394) The Commission did not err in its analysis when establishing that the lodging unit is a distinct or additional service to Google Search for the same reasons as set out in recitals (158) - (163) and (166) - (167) of this Decision in relation to the products and product ads units.

4.4.2.3.2. Arguments about the features of the lodging unit

- (395) The Commission disagrees with Alphabet's assertions referred to in recital (389) of this Decision that the features it identifies, on their own or taken together, do not demonstrate that the lodging unit constitute distinct or additional service. For the same reasons as given for the products and product ads units set out in recitals (168) - (187) of this Decision, the lodging unit is a distinct or additional service to Google Search.

4.4.2.3.3. Arguments about the lodging unit being a means to show better results

- (396) The Commission disagrees with Alphabet's view that the lodging unit serves the purpose of an OSE. As explained in recital (385) of this Decision, the unit offers features and performs tasks that enable not only the search for accommodations but also their comparison to facilitate the initiation of direct transactions.

²²³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 173, [Attachment ID].

²²⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 174, [Attachment ID].

²²⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 175(a), [Attachment ID].

²²⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 175(b), [Attachment ID].

- (397) First, as noted in recital (189) of this Decision, it is not determinant for the application of Article 6(5) of Regulation (EU) 2022/1925 whether Alphabet’s own service is beneficial to one user group or another. In any event, Alphabet is not required to remove the lodging unit altogether.
- (398) Second, the Commission does not follow Alphabet’s distinction between offers and results. As explained in recital (292) of this Decision, the interplay between minimum prices and further information (detailed in recital (380) of this Decision) enables users to compare accommodations in search for the most suitable offer. This applies regardless of whether offers appear before or after opening the preview page and whether it is open to third-party VSSs.
- (399) Third, contextual information such as check-in times, star ratings and descriptive tags (“mountain view”) are not necessary to identify an accommodation. The context provided by this information serves users to compare between different entities. In fact, the submissions of hotels and their associations, which Alphabet quotes to support its claim, confirm that the latter expect traffic shifting to third-party VSSs if the lodging unit was stripped off contextual information.²²⁷ Lastly, as stated in recital (190) of this Decision, a service can be distinct from Google Search regardless of whether users expect to find it there.

4.4.3. *Third parties offer similar services which are ranked on the SERP*

4.4.3.1. The Commission’s position

- (400) Third parties offer services which have similar functionalities to those of Alphabet’s lodging intermediation service that is ranked on and embedded in the SERP in response to queries related to lodging. To the extent that they have a website, these third-party lodging VSSs which intermediate hotels are ranked on the SERP in various ways. This is because OSEs provide results based on search performed on in principle all websites, absent any opt-out. Third-party offers may appear in the offer lists in the preview page for a particular lodging offer if that hotel or other accommodation is listed on those third-party websites as explained in recital (382) of this Decision.
- (401) When a user submits a query on the website of such a third-party lodging VSS, they are presented with a list of different hotels or other lodging offers matching the location, number of guests and/or dates they entered. Typically, hotels and other lodging offers are displayed with a picture, information about its location, price, rating and ancillary information such as on the accommodation type and its amenities.
- (402) Further, on their websites, third-party lodging VSS often do not only present their hotel offers in the form of a list, but also as pins or small symbols, which may include the hotel price, on a map. The map itself typically also displays street names, landmarks, hospitals, and other relevant places in the area. Most maps on lodging VSS websites are displayed together with filters, which narrow down the hotels shown on the map based on the parameters selected. Similarly, a user can filter by location by zooming in or out or dragging such a map.
- (403) Clicking or sometimes hovering over any of the offers presented in the list of hotels or on the corresponding map typically expands a ‘quick view’ card containing some

²²⁷ Data room report, annex, paragraphs 92, 100, 112-113, [Attachment ID].

further ancillary information on that hotel such as a picture, its rating by other users and the most relevant amenities, making it easier for users to find and compare hotel options in specific areas without having to leave the map by being immediately directed to that hotel's page to finalise the booking.

- (404) In addition, users can apply filters based on rating, price, popularity and thereby refine their search on the websites of third-party lodging intermediation services. These filters typically allow users to narrow down the set of hotels or other lodging offers they are shown based on various criteria such as price, star rating or rating in other users' reviews, location, amenities, property type or availability. Some examples of similar third-party services are Trivago, TripAdvisor, HotelsCombined, Booking.com or Expedia.
- (405) As noted in recitals (378) - (386) of this Decision, the lodging unit displayed on the SERP following a lodging-related query and its functionalities are similar to those offered by third-party lodging VSSs.
- (406) As explained in recitals (374) - (376) of this Decision, the lodging unit shows specific information on the hotel and other lodging offers in it in a list as well as on a map. Users can compare products based on the transaction-relevant information provided to them directly on the SERP. The type of information presented in the lodging unit is very similar to the information displayed on the website of third-party lodging VSS websites.
- (407) Further, the preview page described in recital (376) of this Decision that expands when interacting with any of the hotels or other lodging offers displayed as pins on the map or in the list of offers below it in the lodging unit, is similar to the 'quick view' cards often included in the list of hotel offers and the map on third-party lodging intermediation services' websites as described in recital (403) of this Decision.
- (408) For these reasons, the Commission concludes that third parties offer services, which are ranked on Google Search, and which are similar to the additional lodging intermediation service provided by Alphabet on the SERP.

4.4.3.2. Alphabet's arguments

- (409) According to Alphabet, the Commission overlooks relevant differences between the result units at issue and the allegedly similar third-party services, which according to Alphabet, invalidates the Commission's favouring allegations.²²⁸ To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (201) – (204) of this Decision.

4.4.3.3. The Commission's assessment of Alphabet's arguments

- (410) First, the Commission rejects Alphabet's assertion that it ignored relevant differences between the result units at issue and similar third-party services, as also explained in recital (205) of this Decision.

²²⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 281-282, [Attachment ID].

- (411) Second, the Commission recalls that as set out in recital (206) of this Decision, the concept of “*similar services*” under Article 6(5) of Regulation (EU) 2022/1925 does not coincide with the notion of substitutability used in Union competition law.
- (412) Third, the Commission disagrees with Alphabet’s claim that the difference in monetisation between its own result units and similar services offered by third parties is material for the assessment under Article 6(5) of Regulation (EU) 2022/1925 as explained in recital (207) of this Decision.
- 4.4.4. *More favourable treatment in ranking on the SERP of Alphabet’s lodging intermediation service*
- 4.4.4.1. The Commission’s position
- (413) When entering a lodging-related query, Alphabet’s lodging intermediation service is given more favourable treatment in ranking on Google Search, as compared to third-party lodging VSSs.
- (414) Alphabet prominently embeds and ranks its own lodging intermediation service on Google Search.
- (415) First, Alphabet’s lodging unit is embedded on the SERP and can be seen by users immediately after entering a lodging-related query. It consists of a large, dedicated box displaying an interactive map as well as detailed information on short-term accommodation offers by hotels or other lodging providers. This enables users, in the lodging unit itself (i.e., directly on the SERP, immediately after entering a lodging-related query), to search and compare several different lodging offers by hotels with a view to initiating a transaction.
- (416) Additionally, when clicking on any of the lodging offers in the list or on the map included in the lodging unit, it is then presented with a preview page containing further information about the hotel at issue, including, more images, information on e.g., availability, prices, ratings, distance from relevant attractions, and ways to contact the lodging provider. Also, the search results which are displayed following a click on the ‘See more’ button (placed on the bottom of the lodging unit) or on the related ‘Lodging’ tab contain more lodging offers displaying the same type of transaction-relevant information as the lodging unit.
- (417) Third-party lodging VSSs also have opportunities to feature on the SERP. However, they feature less prominently, as compared to Alphabet’s embedded lodging unit.
- (418) First, third-party lodging VSSs may display offers in the lodging unit’s preview page, which is only accessible once a user clicks on a specific hotel included in the lodging unit or on the map of the lodging unit. However, for a third-party VSS this is not the same as having its own box, embedded on the SERP and visible immediately after entering a lodging-related query, containing several hotel offerings that users can compare directly on the SERP, as is the case for Alphabet with its lodging unit.
- (419) Second, a third-party VSS may also appear in free organic results, be it rich web results or ordinary (i.e. non-rich) results.
- (420) It is true that rich web results, which have an enhanced format, containing images as well as information on the hotels at issue, also enable a third-party VSS to present

several hotel offerings in an embedded box. However, overall, the possibility for a VSS to feature in rich web results does not compensate for the prominence given to Alphabet's lodging unit. This is because the prominence of the lodging unit is strengthened by additional features which provide users with more possibilities to compare accommodations with a view to initiate a transaction. In particular, as described above, contrary to rich web results, the lodging unit is presented together with a map, gives users access to a preview page with additional information and includes a 'See more' button directing users to more lodging offers displaying the same type of transaction-relevant information as in the unit, as does the 'Lodging' tab located on top of the SERP.

- (421) Ordinary (i.e., non-rich) results, in turn, do not offer a third-party VSS a degree of prominence comparable to that of Alphabet's embedded lodging unit, as they do not contain images or structured lodging-related information, and do not enable a VSS to present different accommodation offerings that users can compare directly on the SERP.
- (422) Third, the possibility for a third-party VSS to feature in the VSS unit and in the 'Places sites' tab does not give it equal prominence as compared to Alphabet's lodging unit either.
- (423) The VSS unit does not allow a given VSS to have its own box, embedded on the SERP and visible immediately after entering a lodging-related query, containing several accommodation offerings that users can compare directly on the SERP.
- (424) The possibility for a third-party VSS to include a link within the 'Places sites' tab is not the same as it having its own box, embedded on the SERP and visible immediately after entering a lodging-related query, containing several accommodation offerings that users can compare directly on the SERP. Additionally, it is noteworthy that, while there are no tabs for individual third-party lodging VSSs displayed on top of the SERP, which would link to and show only the offers from their respective inventory, the results in the 'Lodging' tab are an extended version of those displayed in Alphabet's lodging unit. Given that the 'Places sites' tab shows the results of various VSSs, it gives less prominence to individual third-party VSSs compared to the 'Lodging' tab, which exclusively shows results of Alphabet's lodging unit.
- (425) Alphabet's internal documents provide an insight into its reasoning for providing said functionalities on the SERP. While designing the solution for lodging results, the aim was **[DIRECT QUOTE DESCRIBING GOOGLE'S INTERNAL DOCUMENTS]**.²²⁹ In particular, according to Alphabet's internal documents, **[DIRECT QUOTE DESCRIBING GOOGLE'S INTERNAL DOCUMENTS]**.²³⁰
- (426) Alphabet's internal documents **[DESCRIPTION OF GOOGLE'S INTERNAL DOCUMENTS]**. Indeed, these internal documents indicate **[DESCRIPTION OF**

²²⁹ **[NAME OF GOOGLE'S INTERNAL DOCUMENT]**, [Attachment ID]. Alphabet uses the term **[DIRECT QUOTE FROM GOOGLE'S INTERNAL DOCUMENT]** to refer to the lodging unit.

²³⁰ **[DIRECT QUOTE FROM GOOGLE'S INTERNAL DOCUMENT]**, [Attachment ID].

GOOGLE’S INTERNAL DOCUMENTS],²³¹ as also evidenced by **[DESCRIPTION OF GOOGLE’S INTERNAL DOCUMENTS]**.²³²

(427) For the reasons stated above, the Commission concludes that Alphabet gives its lodging intermediation service more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.

4.4.4.2. Alphabet’s arguments

(428) According to Alphabet, the Commission’s argumentation that the lodging unit is treated more favourably in ranking than similar services offered by third parties on Google Search is based on a flawed reasoning. To support this claim, Alphabet brings forward a number of arguments. Arguments that do apply to lodging intermediation, but that do not apply to product, flights, and/or trains or not in the same way, are included individually in the remainder of this subsection. In all other cases, Alphabet brings forward the same arguments as for the products, product ads, flights and/or trains units as set out in recitals (224) - (247), (309) - (315), and (363) - (366) of this Decision, respectively.

4.4.4.2.1. Arguments about the March 2024 changes compensating for the prominence of distinct Google services

(429) First, Alphabet’s arguments about having introduced multiple new designs for lodging VSSs that created a disproportionate increase and visibility for VSSs are the same, *mutatis mutandis*, as the arguments about new designs for VSSs set out in recital (310) of this Decision. Furthermore, Alphabet’s claim that it created a counterbalance for the lodging unit based on view and click data before and after 7 March 2024 is the same as the corresponding argument for product queries set out in recital (231) of this Decision, except that in the context of lodging, users see VSS results **[70-80]** % more often and click on those results **[20-30]** % more often than before March 2024.

(430) Second, Alphabet’s arguments about the Commission’s dismissal of the benefits to VSSs from the March 2024 changes and about the Commission overlooking the participation of VSSs in the lodging unit are the same as the corresponding arguments set out in recitals (232) and (234) - (238), respectively of this Decision for product queries.

(431) Arguments about the lack of tangible advantage for distinct Google services Alphabets arguments are the same as those made in the context of product queries set out in recitals (239) - (244) of this Decision.

4.4.4.2.2. Arguments about taking into account stakeholder interests

(432) Alphabets arguments are the same as those made in the context of product queries set out in recitals (245) - (247) of this Decision.

4.4.4.3. The Commission’s assessment of Alphabet’s arguments

(433) The Commission did not err in its analysis when establishing that the lodging unit is treated more favourably in ranking on Google Search compared to similar services offered by third parties for the same reasons, *mutatis mutandis*, as for products, flights

²³¹ **[NAME OF GOOGLE’S INTERNAL DOCUMENT]**, [Attachment ID].

²³² **[NAME OF GOOGLE’S INTERNAL DOCUMENT]**, [Attachment ID].

and trains queries, for the same reasons as set out in recitals (248) - (266), (316) - (317) and (367) of this Decision, respectively.

4.4.5. Conclusion

- (434) The Commission therefore takes the view that Alphabet offers a lodging intermediation service that is distinct from or additional to Google Search and that is more favourably ranked than similar services of third parties.

4.5. Places intermediation

4.5.1. The Google SERP

- (435) For queries related to places,²³³ the SERP displays a number of specific units and features which in large part are similar to what is shown following a lodging query, as was explained in recitals (369) - (374) of this Decision and as seen in Image 18. All these different results are ranked on Google Search.²³⁴

²³³ Places are tangible entities that exist in the real world at a specific location other than lodging providers, such as restaurants, museums, or hairdressers.

²³⁴ Alphabet's response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 176, [Attachment ID].

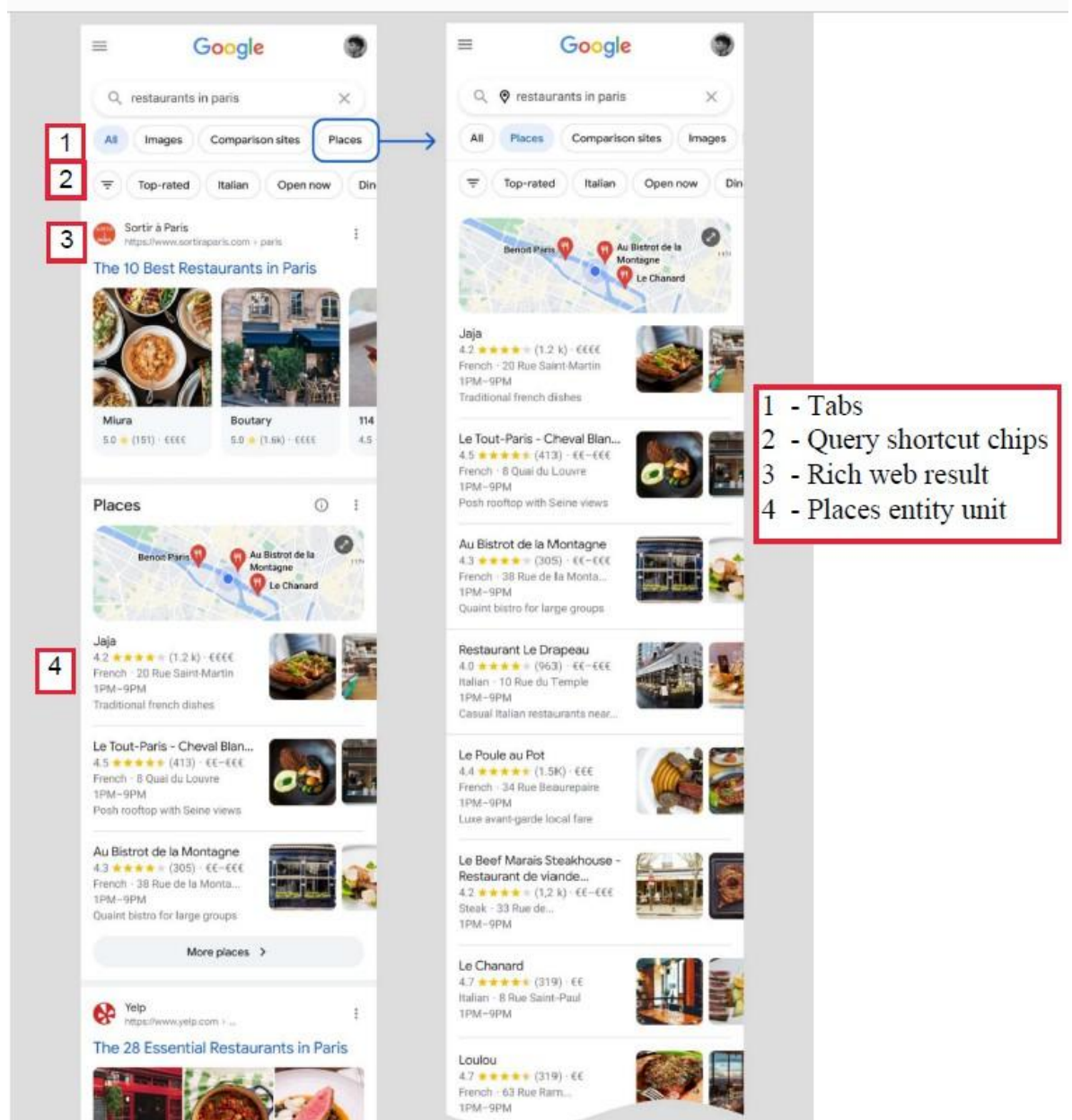


Image 18: The SERP following a restaurant query showing the places unit (left) and the related 'Places' tab (right).²³⁵

- (436) First, a user who enters a query related to a specific type of place such as a supermarket, bar or restaurant is presented with a 'Comparison sites' tab (later renamed to 'Places Sites') on top of the SERP under number 1 in Image 18, which when clicked presents links to various VSSs which intermediate places in that category and which are eligible to appear on this page if they qualify as a VSS and have been added to Alphabet's internal VSS list.²³⁶

²³⁵ Alphabet, Mocks provided to the Commission on 21 February 2024 and used in the DMA 6(5) Hospitality Workshop on 7 December 2023, page 20, [Attachment ID].

²³⁶ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 49 and 55, [Attachment ID].

- (437) As displayed in Image 18, a user who has entered a query related to a local place, will also be shown a ‘Places’ tab on top of the SERP, which allows the user to focus results on offers from individual places of the type they searched for.
- (438) Second, as pictured under number 2 in Image 18, Alphabet displays query shortcut chips below the search box. For queries related to local places, these chips often contain parameters such as the price level, rating, whether the places shown are currently open (‘open now’), as well as ancillary attributes of the places relevant for the user’s query (such as ‘top-rated’, ‘family friendly’, ‘shows sports’ or ‘Michelin star’, among others).
- (439) Third, users may also be presented with rich web results for providers of places such as bars or nail salons and for VSSs intermediating that kind of offer, as shown under number 3 in Image 18.²³⁷ Examples of rich web results for VSSs intermediating restaurants are pictured in Image 19. To be eligible to participate in this result type, VSSs have to qualify as a VSS and be added to Alphabet’s relevant internal VSS list.²³⁸ Providers of local places and the VSSs intermediating them can choose to add structured data mark-up to their websites to allow Alphabet’s crawlers to identify rich elements to include in the rich results, based on Alphabet’s specifications.²³⁹

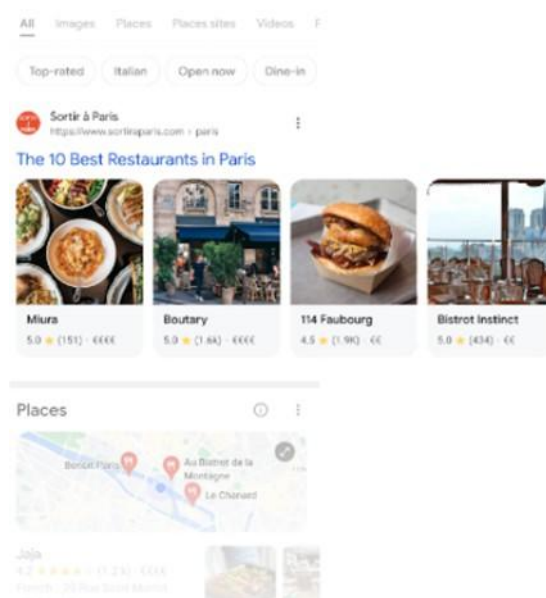


Image 19: Rich web results for a VSSs intermediating restaurants.²⁴⁰

- (440) Fourth, as shown under number 4 in Image 18, the SERP may display a places unit after a user has entered a query related to a specific type of local place. The places unit contains an interactive map which contains pins representing the different offers

²³⁷ Alphabet Compliance Report 2024 – Google Search Chapter, paragraph 50, [Attachment ID].

²³⁸ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraphs 49 and 54, [Attachment ID].

²³⁹ For VSSs: <https://developers.google.com/search/docs/appearance/structured-data/carousels-beta#localbusiness>. For providers of lodging offers (such as hotels, vacation rentals, etc.):

<https://developers.google.com/search/docs/appearance/structured-data/local-business>.

²⁴⁰ Alphabet Compliance Report 2024 – Google Search Chapter, page 13, [Attachment ID].

matching the user's query which are also included in the 'Places' tab discussed in recital (437) of this Decision, without information on prices. Below the map, the places unit contains up to four²⁴¹ offers from places of the type matching the user's query. The places unit displays transaction-related information about each offer. The places unit does not include numerical prices but rather price levels (indicated with a number of euro signs). Further commercially relevant information on the offers in the places unit may include star ratings, the place's location, a link to the local entity's website, opening times and other characteristics, as well as a picture.²⁴² Alphabet relies on a wide range of data sources, including crawling, its own observations, licensed data, user-generated content and data provided by local entities through their Business Profile,²⁴³ to assemble the dataset from which it obtains the information shown, and which are ranked using signals that are relevant for comparing local places.²⁴⁴

(441) Clicking on one of the local entities in the places unit shown as pins on the map or on any of the offers listed below expands a preview page which provides users with further, more detailed information about that particular local entity. Depending on the type of place a user is looking for, the preview page for places typically includes more pictures, reviews, a graph indicating how busy the place is at different times, opening hours, as well as the place's address and contact details in the form of a button leading to their website and/or a call button connecting the user to the place's phone number. The preview page also shows reviews from different sources, and in case of restaurants or bars, the preview page typically also provides the option to see that place's menu. Finally, the location of the selected place is shown on a map.

(442) Fifth, not pictured in Image 18 but analogous to what is displayed for lodging VSSs in Images 13 and 14, after having entered a query related to any type of local place, a user may be presented with a VSS unit²⁴⁵ titled 'Places sites'.²⁴⁶

4.5.2. *Alphabet's places intermediation service is additional to Google Search and is ranked on the SERP*

4.5.2.1. The Commission's position

(443) As described in recitals (440) - (441) of this Decision, in response to a query related to local places, the Google SERP shows a places unit grouping offers relevant for the specific type of place indicated by the query (e.g. bar in Brussels). This unit, which is ranked on and embedded in Google Search, provides a distinct or an additional service to an OSE because its purpose goes beyond that of an OSE, namely, it has specific functionalities and performs tasks, which are consistent with the purpose of a VSS.

²⁴¹ Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 13, [Attachment ID].

²⁴² Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 33 et seq., [Attachment ID].

²⁴³ See https://support.google.com/business/answer/9177958?hl=en&ref_topic=9178355.

²⁴⁴ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 37 and 39, [Attachment ID] and Alphabet's response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 16, [Attachment ID].

²⁴⁵ Alphabet Compliance Report 2024 – Google Search Chapter, paragraphs 41 et seq., [Attachment ID].

²⁴⁶ 'Comparison sites' in Image 15, which as explained in recital (437) was later changed by Alphabet to 'Places sites'.

- (444) In particular, the places unit presents a group of results specialised in a certain topic with functionalities that allow users to filter, interact with, and compare competing offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers.
- (445) More precisely, the places unit groups commercial offers of physical places for a given query and enables the search for and comparison of places offers. As displayed in Image 17, the places unit shows multiple offers in the category of local place searched by users. These offers are enhanced with commercial information such as price levels, star ratings, opening hours, images which can be swiped through, a brief description of the place in question (e.g., ‘Cozy bar with boardgames’), and descriptive tags about the place.²⁴⁷ This information is presented in a standardised manner, facilitating users’ comparison of different places intermediated by Alphabet.
- (446) Furthermore, the places included in the places unit are not only displayed in the form of a list, but as explained in recital (440) of this Decision are also displayed on an interactive map which visualises the physical location of each local place to help users compare among them.
- (447) This is reinforced by the preview page, which as explained in recital (441) of this Decision expands when a user clicks on one of the places displayed on the map and/or in the list below it in the places unit or on one of the longer list of offers included in the ‘Places’ tab and which shows further details.
- (448) Furthermore, as described in recital (438) of this Decision, the SERP provides query shortcut chips that allow users to filter the transaction-relevant information of offers displayed in the places unit and select, for example whether they are searching for places that are ‘open now’. As explained in recital (125) of this Decision for the products unit, these query shortcut chips function as filters enabling comparison of local places offers also when applied to the places unit.
- (449) In addition, the places unit falls outside the definition of an OSE as it does not perform searches of, in principle, all websites or all websites in a particular language. As explained in recital (440) of this Decision, not all types of websites can appear in the places unit;²⁴⁸ only entities that are real world places with a physical location can in principle appear in the places unit.²⁴⁹ Alphabet relies on a range of data sources to assemble its dataset used to populate the places unit and to show users contextual information about the places eligible to appear in it, including information provided by local places through their Business Profile. The information contained in the places unit is therefore not obtained by performing searches of, in principle, all websites but is limited to websites and/or business information only of local places and the bespoke

²⁴⁷ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 34, [Attachment ID].

²⁴⁸ In fact, Alphabet has indicated that many local places that users can find on the SERP do not have a website at all. This means that a search of, in principle, all websites would not be able to return a large share of the local places currently included in the places unit.
Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraph 182, [Attachment ID].

²⁴⁹ Alphabet’s response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 26-27, [Attachment ID].

dataset of contextual information about those places selected by Alphabet to populate it.

- (450) The page focussing on local places offers described in recital (437) of this Decision, which is displayed following a click on the ‘Places’ tab on top of the SERP or the ‘See more’ button at the bottom of the places unit, contains more of the offers displaying the same type of transaction-relevant information as in the places unit, includes and interacts with the same transaction-relevant query shortcut chips as the places unit and is based on the same limited pool of websites and other data sources pre-defined by Alphabet.
- (451) In summary, the places unit as well as the page displayed following a click on the ‘Places’ tab or the ‘See more’ button, constitutes a group of results specialised in a certain topic, which allows users to compare offers, including through the use of filtering options provided in the form of the map and query shortcut chips, directly on the SERP. Its purpose is therefore to facilitate the initiation of direct transactions, in this case, for example, reserving a restaurant or finding a nail salon and goes beyond the purpose of an OSE, which is, in essence, to search the Internet and deliver to users results in which information related to the requested content can be found. Moreover, these groups of results, specialised in a certain topic are assembled from a limited pool of websites pre-defined and selected by Alphabet and not by performing searches of, in principle, all websites as required by the definition of an OSE. Accordingly, Alphabet provides a distinct or an additional places intermediation service, which has functionalities and performs tasks which are consistent with the purpose of a VSS, directly ranked on and embedded in the SERP.

4.5.2.2. Alphabet’s arguments

- (452) In response to the Commission’s Preliminary Findings Alphabet brought forward arguments contesting that the places unit is an additional service on the SERP.

4.5.2.2.1. Arguments about the Commission’s analysis to determine that the places unit is a distinct or additional service

- (453) According to Alphabet, the Commission’s position that the places unit is distinct or additional service to Google Search is based on a flawed reasoning. To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (130) - (133) and (135) of this Decision.

4.5.2.2.2. Arguments about the features of the places unit

- (454) Alphabet argues that none of the features that the Commission lists to support its view establish that the places unit is a distinct service.²⁵⁰ Alphabet argues that all those features noted in recitals (137) – (152) of this Decision are consistent with the purpose of an OSE.

4.5.2.2.3. Arguments about the places unit being a means to show better results

- (455) Alphabet contests that the places unit constitutes a distinct or additional service. In Alphabet view, this unit serves the purpose of an OSE by showing relevant results that

²⁵⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 115-116, [Attachment ID].

respond to users' queries and by presenting the results in a format that helps users find what they are looking for.²⁵¹

- (456) Alphabet argues that the places unit does not show offers but results for places, including non-commercial places like government administrative buildings, schools and hospitals. In addition, the unit does not list any specific products or services offered by a place and does not show any prices.²⁵²

4.5.2.3. The Commission's assessment of Alphabet's arguments

4.5.2.3.1. Arguments about the Commission's analysis to determine that the places unit is a distinct or additional service

- (457) The Commission did not err in its analysis when establishing that the places unit is a distinct or additional service to Google Search for the same reasons as set out in recitals (159) - (163) and (166) - (167) of this Decision in relation to the products and product ads units.

4.5.2.3.2. Arguments about the features of the places unit

- (458) The Commission disagrees with Alphabet's assertions described in recital (454) of this Decision that the features it identifies, on their own or taken together, do not demonstrate that the places unit constitutes distinct or additional service. For the same reasons as for the products unit and product ads unit set out in recitals (168) - (187) of this Decision, the places unit is a distinct or additional service to Google Search.

4.5.2.3.3. Arguments about the places unit being a means to show better results

- (459) The Commission disagrees with Alphabet's view that the places unit serves the purpose of an OSE. As explained in recital (451) of this Decision, the unit offers features and performs tasks that enable not only the search for places but also their comparison in order to facilitate the initiation of direct transactions.
- (460) The Commission does not follow Alphabet's distinction between offers and results. Listing places with price levels, ratings and further characteristics allows comparing places in search for the most suitable one. Unlike Alphabet suggests, users do not need reference to individual products or services to compare places. Given that places such as restaurants offer a variety of different products and services, they can be compared at a higher level. In any event, the places unit for restaurants usually features images of the menu which can be filtered out through a "menu" chip on the preview page. The purpose of the places unit is not altered by the fact that it includes non-commercial places in addition to commercial ones. Besides, also third-party VSSs list commercial along with non-commercial places such as parks, monuments or the House of European History on TripAdvisor.

²⁵¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 177, [Attachment ID].

²⁵² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 177, 178(a), [Attachment ID].

4.5.3. *Third parties offer similar services which are ranked on the SERP*

4.5.3.1. The Commission's position

- (461) Third parties offer services, which have similar functionalities to those of Alphabet's local places intermediation service that is shown on the SERP in response to queries related to local places. These third-party places VSSs are ranked on the SERP in various ways. This is because OSEs provide results based on search performed on principles all websites, absent any opt-out.
- (462) When a user submits a query on the website of such a third-party places VSS, they are presented with a list of different places in the specific category matching their query. For instance, when a user visits a third-party VSS's website and searches for 'Café Brussels', they are presented with a range of information including a photo of the café, customer reviews, indicative pricing, the address, opening hours, phone number, website, and other transactional details.
- (463) Further, on their websites, third-party places VSSs often also present their offers as small pins on a map. The map itself typically also displays street names, landmarks, hospitals, and other relevant places in the area where the user is looking. Most maps on places VSSs' websites are displayed together with filters which narrow down the places shown on the map based on the parameters entered. Similarly, zooming in or out, or dragging such a map, functions as a filter for the locations in which the user wants to look for a particular kind of place.
- (464) Clicking or sometimes hovering over any of the offers presented in the list of places or on the corresponding position on the map may also expand a 'quick view' card containing some further ancillary information on that place such as a picture, its rating by other users and the most relevant attributes such as the menu in case of restaurants.
- (465) In addition, users can apply filters based on rating, price level, cuisine and other parameters relevant for that particular kind of place and thereby refine their search on the websites of third-party places VSSs. Some examples of similar third-party services could be Yelp, TripAdvisor, TheFork, OpenTable or Foursquare city guide.
- (466) As noted in recitals (436) - (442) of this Decision, the places unit displayed on the SERP following a query related to local entities and its different features are similar to the information and functionalities offered by third parties who provide places VSSs.
- (467) Namely, as explained in recital (440) of this Decision, the places unit shows specific information on local places offers in it in a list as well as on a map. Users can compare places based on the transaction-relevant information provided to them directly on the SERP. The type of information presented in the places unit is very similar to the information displayed on the website of third-party places VSSs websites.
- (468) Further, the preview page described in recital (441) of this Decision, that expands when interacting with any of the places displayed as pins on the map or in the list of offers below it in the places unit, is similar to the 'quick view' cards often included in the list of places offers and the map on third-party places VSSs websites.
- (469) For these reasons, the Commission concludes that third parties offer services, which are ranked on Google Search, and which are similar to the additional places intermediation service provided by Alphabet on the SERP.

4.5.3.2. Alphabet's arguments

(470) According to Alphabet, the Commission overlooks relevant differences between the result units at issue and the allegedly similar third-party services, which according to Alphabet, invalidates the Commission's favouring allegations.²⁵³ To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (201) - (204) of this Decision.

4.5.3.3. The Commission's assessment of Alphabet's arguments

(471) First, the Commission rejects Alphabet's assertion that it ignored relevant differences between the result units at issue and similar third-party services, as also explained in recital (205) of this Decision.

(472) Second, the Commission recalls that as set out in recital (206) of this Decision, the concept of "*similar services*" under Article 6(5) of Regulation (EU) 2022/1925 does not coincide with the notion of substitutability used in Union competition law.

(473) Third, the Commission disagrees with Alphabet's claim that the difference in monetisation between its own result units and similar services offered by third parties is material for the assessment under Article 6(5) of Regulation (EU) 2022/1925 as explained in recital (207) of this Decision.

4.5.4. *More favourable treatment in ranking on the SERP of Alphabet's places intermediation service*

4.5.4.1. The Commission's position

(474) When entering a places-related query, Alphabet's places intermediation service is given more favourable treatment on Google Search, as compared to similar services offered by third parties, in particular third-party places VSSs.

(475) Alphabet prominently embeds and ranks its own lodging intermediation service on Google Search.

(476) First, Alphabet's places unit is embedded on the SERP and can be seen by users immediately after entering a places-related query. It consists of a large, dedicated unit displaying an interactive map, as well as detailed information on restaurants, attractions, or other offers related to the user's places query from providers of local places. This enables users, in the places unit itself (i.e., directly on the SERP, immediately after entering a places-related query), to search and compare several different places offers by local providers with a view to initiating a transaction. Additionally, when clicking on any of the offers in the list or on the map included in the places unit, a user is presented with a preview page containing further information about the local entity at issue, including more images, information on e.g., availability, price level, ratings, and ways to contact the local provider. Also, the search results which are displayed following a click on the 'See more' button (placed on the bottom of the places unit) or on the related 'Places' tab contain more places offers displaying the same transaction-relevant information as the places unit.

²⁵³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 281-282, [Attachment ID].

- (477) Third-party places VSSs also have opportunities to feature on the SERP. However, they feature less prominently, as compared to Alphabet's embedded places unit.
- (478) First, third-party places VSSs cannot include their offers of the local places they intermediate in the preview page that expands when a user clicks on that place in the list or on the map of the places unit.²⁵⁴
- (479) Second, third-party places VSSs' may also appear in free organic results, be it rich web results or ordinary (i.e. non-rich) results.
- (480) It is true that rich web results, which have an enhanced format, containing images as well as information on the places at issue, also enable a third-party VSS to present several places offerings in an embedded box. However, overall, the possibility for a VSS to feature in rich web results does not compensate for the prominence given to Alphabet's places unit. This is because the prominence of the places unit is strengthened by additional features which provide users with more possibilities to compare local places with a view to initiate a transaction. In particular, as described above, contrary to rich web results, the places unit is presented together with a map, gives users access to a preview page with additional information and includes a 'See more' button directing users to more places offers displaying the same type of transaction-relevant information as in the unit, as does the 'Places' tab located on top of the SERP.
- (481) Ordinary (i.e., non-rich) results, in turn, do not offer a third-party VSS a degree of prominence comparable to that of Alphabet's embedded places unit, as they do not contain images or structured place-related information, and do not enable a VSS to present different places offerings that users can compare directly on the SERP.
- (482) Third, the possibility for a third-party VSS to feature in the VSS unit and in the 'Places sites' tab does not give it equal prominence as compared to Alphabet's places unit either.
- (483) The VSS unit does not allow a given VSS to have its own box, embedded on the SERP and visible immediately after entering a places-related query, containing several places offerings that users can compare directly on the SERP.
- (484) The possibility for a third-party VSS to include a link within the 'Places sites' tab is not the same as it having its own box, embedded on the SERP and visible immediately after entering a places-related query, containing several local places offerings that users can compare directly on the SERP. Additionally, it is noteworthy that, while there are no tabs for individual third-party places VSSs displayed on top of the SERP, which would link to and show only the offers from their respective inventory, the results in the 'Places' tab are an extended version of those displayed in Alphabet's places unit. Given that the 'Places sites' tab shows the results of various VSSs, it gives less prominence to individual third-party VSSs compared to the 'Places' tab, which exclusively shows results of Alphabet's places unit.

²⁵⁴ Such lists currently only exist for product, lodging, transport (trains and flights) and tours and activities. See: Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 2, submitted on 26 July 2024, paragraph 33 [Attachment ID].

(485) For the reasons stated above, the Commission concludes that Alphabet gives its places intermediation service more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.

4.5.4.2. Alphabet's arguments

(486) According to Alphabet, the Commission's argumentation that the places unit is treated more favourably in ranking than similar services offered by third parties on Google Search is based on a flawed reasoning. To support this claim, Alphabet brings forward a number of arguments, which are the same as for the products, product ads, flights, trains and/or lodging unit as set out in recitals (224) - (247), (309) - (315) and (363) - (366) of this Decision, respectively.

(487) The only difference relates to Alphabet's claim that it created a counterbalance for the lodging unit based on view and click data before and after 7 March 2024. The argument remains the same as the corresponding argument for products, flights and lodging queries set out in recitals (231), (310) and (429) of this Decision, except that in the context of places, users see VSS results [70-80] % more often and click on those results [10-20] % more often than before March 2024.

4.5.4.3. The Commission's assessment of Alphabet's arguments

(488) The Commission did not err in its analysis when establishing that the places unit is treated more favourably in ranking on Google Search compared to similar services offered by third parties for the same reasons, *mutatis mutandis*, as for products, flights, trains and lodging queries, for the same reasons as set out in recitals (248) - (266), (316) - (317), (367) and (433) of this Decision, respectively.

4.5.5. Conclusion

(489) The Commission therefore takes the view that Alphabet offers a places intermediation service that is distinct from or additional to Google Search and that is more favourably ranked than similar services of third parties.

4.6. Google Maps

4.6.1. The Google SERP

(490) As explained in recitals (374) - (376) and (440) - (441) of this Decision, when entering a query related to lodging or local places, a lodging or places unit, respectively, will be displayed on the SERP, with a preview page which expands when clicking on an offer in the list or on the map contained in these units as well as for any of the offers contained in the 'Lodging' and 'Places' tabs that are effectively extensions of those units.

(491) Included in these preview pages, immediately below the name and pictures of the hotel or local place are one or more buttons as displayed in Image 16. The button of this kind with the label 'directions' and the thumbnail next to the address ("address button") direct users from the SERP to Google Maps to show the location of the entity the user clicked on and to offer map services.²⁵⁵

²⁵⁵ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraphs 55-57, [Attachment ID].

(492) In cases where restaurants allow for this possibility, another ‘Reserve a table’ button may be displayed. Following the click, the users are redirected to Google Maps where they are prompted to enter reservation details such as the time slot and the number of guests.

4.6.2. *Google Maps is distinct from Google Search and is ranked on the SERP*

(493) Google Maps is an online-based consumer map service which enables users to search for and navigate to local entities,²⁵⁶ including local businesses and has been designated as an OIS in the Alphabet designation decision, which has not been contested by Alphabet.²⁵⁷ Because Google Maps falls into a different category of CPS than OSE Google Search, and because it has been designated as such, it is distinct from Google Search.

(494) In response to the Commission’s RFI, Alphabet brought forward arguments contesting that it offers distinct services on the SERP, including the linking out to Google Maps in the preview page.

(495) Alphabet argues that the ‘directions’ and ‘address’ buttons are elements of the result for a local entity such as a hotel or place, that provides an alternative to a website link to find and reach the relevant entity. Alphabet also argues that by showing directions or address links as part of a result for a local entity, Google Search is not ranking a separate result. Rather it is interoperating with Google Maps to connect users with local entities in the real world which is not governed by Article 6(5) but by Article 6(7) of Regulation (EU) 2022/1925.²⁵⁸

(496) The Commission considers that Alphabet’s distinction between separate search results and elements of search results is irreconcilable with the wording of Regulation (EU) 2022/1925. Article 2, point (23), of that Regulation defines ‘search results’ broadly as including “any product, service or information offered in connection with the organic results”. By providing links to Google Maps, Google Search offers a distinct service in connection with organic results.

(497) In line with the broad notion of ‘search results’, contrary to Alphabet’s claim, buttons linking to Google Maps are subject to Article 6(5) of Regulation (EU) 2022/1925 if they are ranked on the OSE of the same gatekeeper.

(498) The Commission notes that linking to a distinct service and thereby ranking it on the SERP is not synonymous with ensuring interoperability by means of mutual exchange of information between software as evident from the different definitions in Article 2, points (22) and (29) of Regulation (EU) 2022/1925.

(499) For these reasons, the Commission considers that Alphabet offers Google Maps, a distinct service which is ranked on and embedded in the SERP.

²⁵⁶ Local entities comprise both providers of lodging services and other types of local places.

²⁵⁷ Decision C(2023) 6101 final, recital 1, where the CPSs are listed.

²⁵⁸ Alphabet’s response to RFI PO 1 of 6 May 2024, submitted on 14 June 2024, paragraphs 183 et seq., [Attachment ID].

4.6.3. *Third parties offer similar services which are ranked on the SERP*

4.6.3.1. The Commission's position

- (500) Third-party providers of online map services that enable users to search for and navigate to local entities, including the lodging and places VSSs discussed in recitals (400) - (408) and (461) - (469) of this Decision, are ranked on the SERP in various ways. Since all businesses who have a website can be ranked on the SERP absent any opt-out, they can be included in organic search results. They can also be included in a rich result as explained in recitals (373) and (439) of this Decision or in VSS units for places sites and related tab as explained in recitals (370) and (377) and recitals (436) and (442) of this Decision.
- (501) Similar to Google Maps, these providers of online map services allow users to compare and filter local entities on a map and to obtain information about these entities as explained, for example, in recitals (400) - (408) of this Decision for lodging VSSs and in recitals (465) - (469) of this Decision for other places VSSs. Some examples of third-party mapping services are Apple Maps, Bing Maps or Maps.me.

4.6.3.2. Alphabet's arguments

- (502) According to Alphabet, the Commission overlooks relevant differences between the result units at issue and the allegedly similar third-party services, which according to Alphabet, invalidates the Commission's favouring allegations.²⁵⁹ To support this claim, Alphabet brings forward the same arguments as for the products and product ads unit as set out in recitals (204) – (207) of this Decision.

4.6.3.3. The Commission's assessment of Alphabet's arguments

- (503) First, the Commission rejects Alphabet's assertion that it ignored relevant differences between the result units at issue and similar third-party services, as also explained in recital (205) of this Decision.
- (504) Second, the Commission recalls that as set out in recital (209) of this Decision, the concept of "*similar services*" under Article 6(5) of Regulation (EU) 2022/1925 does not coincide with the notion of substitutability used in Union competition law.
- (505) Third, the Commission disagrees with Alphabet's claim that the difference in monetisation between its own result units and similar services offered by third parties is material for the assessment under Article 6(5) of Regulation (EU) 2022/1925 as explained in recital (210) of this Decision.

4.6.4. *More favourable treatment in ranking on the SERP of Alphabet's maps service*

4.6.4.1. The Commission's position

- (506) While Alphabet claims that it has removed links to Google services in search results on the Google SERP, the preview page of the local entity unit still features 'directions' and 'address' buttons as well as in some cases 'Reserve a table' buttons for restaurants, linking directly to the website of Alphabet's OIS Google Maps.

²⁵⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 281-282, [Attachment ID].

- (507) As explained in recital (491) of this Decision, users who click on the ‘directions’ button for a particular entity in the preview page are directed to Google Maps, whereas businesses that offer similar services, including third-party lodging and places intermediation services, do not have the ability either to show or to link out to their own interactive map or service in this way.
- (508) Similar services are not afforded any similar prominent link to their own intermediation services anywhere on the SERP.
- (509) For the reasons stated above, the Commission concludes that Alphabet offers a distinct service, Google Maps, that is given more favourable treatment in ranking on Google Search compared to similar services offered by third parties.

4.6.4.2. Alphabet’s arguments

- (510) Alphabet argues that the directions button does not favour a distinct or additional Alphabet service as the Commission alleges. In particular, the directions button opens a page showing directions to the physical place, which is the direct equivalent to linking to the place’s website.²⁶⁰
- (511) Furthermore, Alphabet argues that the directions button does not in any case lead to a distinct or additional Alphabet intermediation service; the page users are directed to does not list offers, show prices, or enable users to compare offers, but rather refers users to the place for which the directions button shows.²⁶¹
- (512) Alphabet contends that the page the button links to is highly beneficial for places and helpful for users, as evidenced by the severe adverse reaction following the removal of the links in the maps on Google Search. The quality degradation of search results that is the effect of that change would be exacerbated if the directions button would also have to be removed.²⁶²
- (513) Finally, Alphabet argues that compared to the various new formats for third-party lodging and places VSSs, the directions button is small and is not immediately visible on the SERP, meaning they are less rather than more prominent than third-party services.²⁶³

4.6.4.3. The Commission’s assessment of Alphabet’s arguments

- (514) With regard to Alphabet’s argument in recitals (510) - (511) of this Decision, it should be stressed that the ‘page showing directions to the physical place’ is <https://www.google.com/maps/dir/> followed by the address of the offer in question, that is, it opens the Google Maps domain. Therefore, Alphabet’s argument that the directions button does not favour a distinct or additional Alphabet service, let alone an intermediation service, is clearly false. Namely, Google Maps has been designated as

²⁶⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 275-276, [Attachment ID].

²⁶¹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 277, [Attachment ID].

²⁶² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 278-279, [Attachment ID].

²⁶³ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 280, [Attachment ID].

one of Alphabet's online intermediation services in 2023.²⁶⁴ Alphabet has notified Google Maps as an OIS without providing a rebuttal pursuant to Article 3(5) of Regulation (EU) 2022/1925 and has also not appealed this decision as it relates to Google Maps. Since Google Maps is therefore clearly an OIS, it is also per definition distinct from Google Search. Furthermore, since no similar services can be reached after clicking the directions button, it is also given more prominence in ranking than those services.

- (515) With regard to Alphabet's argument set out in recital (512) of this Decision that linking out to Google Maps is beneficial for various users, as set out in recital (89) of this Decision, whereas stakeholder interests are relevant when assessing measures to comply with Article 6(5) of Regulation (EU) 2022/1925 in light of Alphabet's compliance with other obligations in that Regulation as well as the general principle of proportionality, it is not relevant for assessing whether there is favouring of first- over third party services.
- (516) Finally, Alphabet's argument set out in recital (513) of this Decision compares the prominence of the directions button to the prominence of similar services offered by third parties in web results and in the VSS unit and VSS rich results. However, this comparison has a very narrow perspective since it does not include other ways in which Alphabet's intermediation service gets prominence on the SERP. Namely, as set out in recitals (471) - (473) and (488) of this Decision, Alphabet's intermediation services for local entities such as lodging and places already get more prominence than is offered to third-party VSSs by means of the VSS unit and VSS rich results. Therefore, the favouring of Google Maps in the form of the directions button should be considered in addition to that favouring, rather than by disregarding the other ways in which Alphabet's intermediation services are granted prominence on Google Search.

4.6.5. *Conclusion*

- (517) The Commission therefore takes the view that Alphabet offers a maps service that is distinct from or additional to Google Search and that is more favourably ranked than similar services of third parties.

5. ASSESSMENT OF ALPHABET'S COMPLIANCE WITH ARTICLE 6(5) OF REGULATION (EU) 2022/1925 RELATING TO GOOGLE SEARCH FOR CONTENT QUERIES

- (518) Alphabet treats certain of its own content-related services, specifically its translation services, its sport information services, and its games services, more favourably in ranking compared to similar services offered by third parties on Google Search, in breach of Article 6(5) of Regulation (EU) 2022/1925.

5.1. Translation services

5.1.1. The Google SERP

- (519) When a user inserts a translation-related query, in particular a request to translate a certain word or group of words from one language to another, Alphabet displays a

²⁶⁴ Decision C(2023) 6101 final, recitals 70-87.

translation unit at the top of the SERP, enabling the user to see the translation in question and to perform several translation-related tasks.

- (520) The translation unit includes, in particular: (i) two spaces containing the word or group of words in the two languages at issue (the user may edit/insert text in the space on the left); (ii) two drop-down menus and two arrows, enabling the user to change or switch the languages; (iii) buttons at the bottom of the two spaces, enabling the user to ‘translate by voice’, ‘listen’, ‘copy’, or ‘search on Google’; and (iv) additional translations of the word or group of words, beneath the two spaces. Additionally, in some cases, the translation unit includes a phonetic representation of the word or group of words, as well as photos illustrating them.
- (521) The two images below show the translation unit displayed by Alphabet at the top of the SERP, in response to the query ‘translate stock exchange from English to French’ and to the query ‘translate home from English to Spanish’.

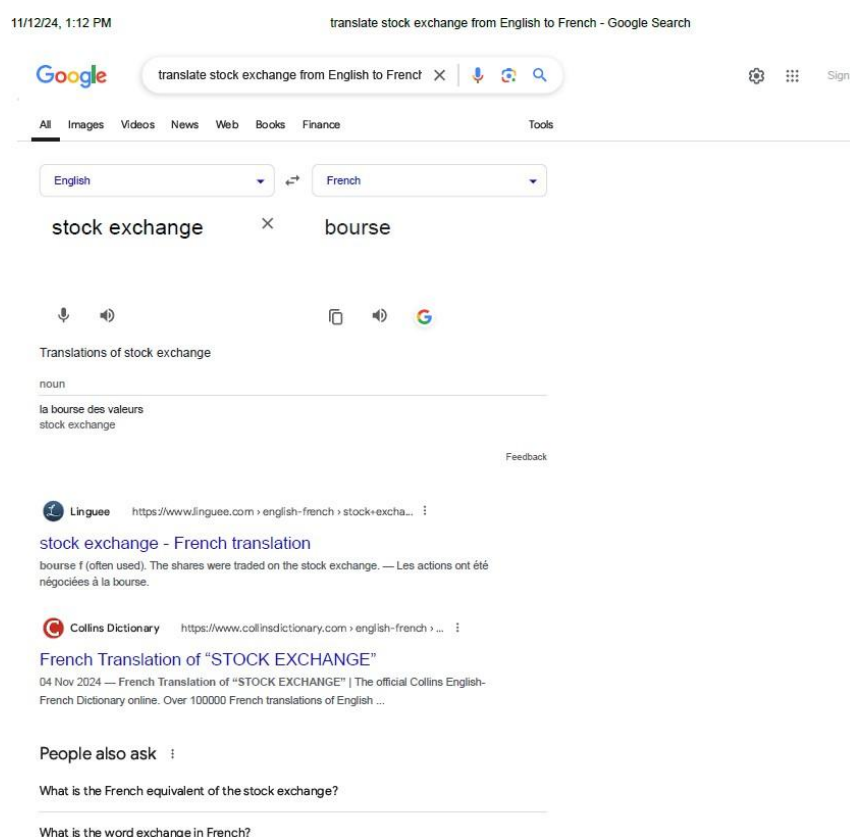


Image 24: SERP displayed in response to the query ‘translate stock exchange from English to French’, retrieved on 12 November 2024²⁶⁵

²⁶⁵ Screenshot of the SERP following a query ‘translate stock exchange from English to French’ retrieved on 12 November 2024, [Attachment ID].

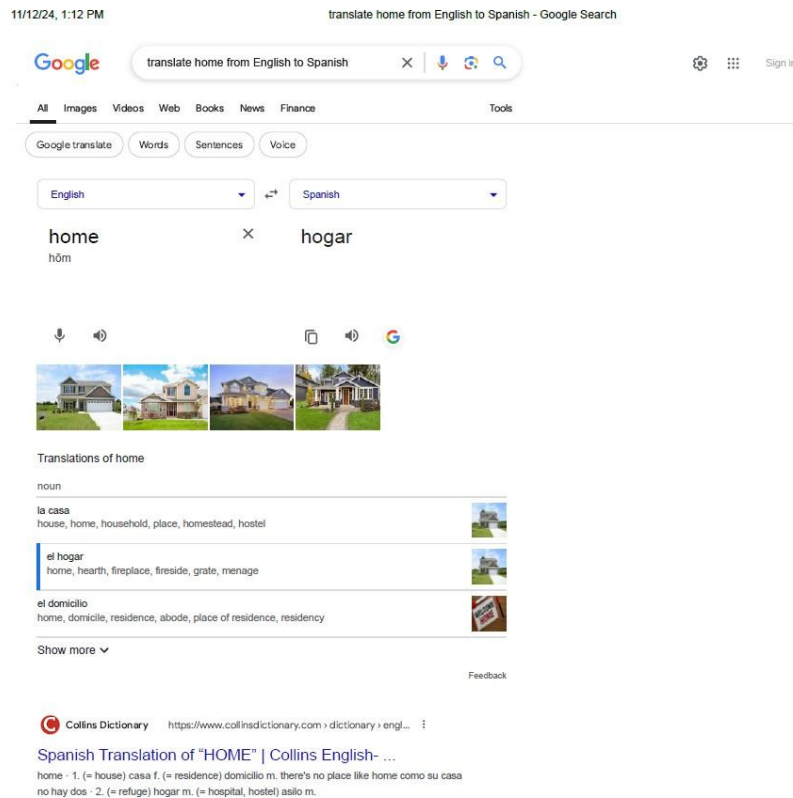


Image 25: SERP displayed in response to the query ‘translate home from English to Spanish’, retrieved on 12 November 2024²⁶⁶

- (522) Image 25 above also shows a ‘Google translate’ query shortcut chip, which, when clicked on, refreshes the SERP. Users can then see, at the top of the SERP, a search result leading to Alphabet’s ‘Google Translate’ service.
- 5.1.2. *Alphabet’s translation services are distinct or additional to Google Search, and are ranked on the SERP*
- (523) The translation unit displayed by Alphabet on the SERP constitutes a content-related service that is distinct or additional to Google Search.
- (524) First, with the translation unit, which is ranked on and embedded in Google Search, Alphabet provides a distinct or additional translation service to the user on the SERP. The service provided in the translation unit has a purpose that is different from or goes beyond that of an OSE, in terms of the functionalities or tasks that it performs.
- (525) In particular, the translation unit presents a series of functionalities and performs tasks that allow users to perform, directly on the SERP, actions that go beyond searching the Internet and obtaining results in which information related to the requested content can be found. Indeed, it enables a user not only to see the results of a translation-related search query that it has previously submitted, but also to conduct further simultaneous translations of words and groups of words, in real time, in the translation unit presented on the SERP, between a number of languages, by typing in

²⁶⁶ Screenshot of the SERP following a query ‘translate home from English to Spanish’ retrieved on 12 November 2024, [Attachment ID].

an ad hoc space designed for these purposes. Furthermore, the translation unit provides a series of additional translation-related functionalities, through the buttons provided at the bottom of such a space, including among others the possibility of translating by voice and of listening to the pronunciation of specific words or groups of words. Ultimately, the translation unit more closely resembles an online translation service or dictionary than an OSE.

- (526) Second, the information displayed by Alphabet in the translation unit is based on a number of data sources, including not only information crawled from websites but also licensed dictionary data and insights derived from Alphabet's own technologies.²⁶⁷ This provides additional evidence that such a unit constitutes a service that is distinct or additional to Google Search.
- (527) Finally, as explained above, in response to a translation-related query, Alphabet shows a query shortcut chip that refreshes the SERP to display Alphabet's 'Google Translate' service, which is also a service that is distinct or additional to Google Search, as the top organic result. As explained by Alphabet itself, "*Google Translate is a fully featured translation service with a range of advanced capabilities*".²⁶⁸
- (528) Thus, the Commission considers that the translation unit displayed by Alphabet on the SERP constitutes a service that is distinct or additional to Google Search. Alphabet's 'Google Translate' service is also a service that is distinct or additional to Google Search and is ranked in the SERP.

5.1.3. *Third parties offer similar services, which are ranked on the SERP*

- (529) A wide range of third-party websites offer translation services that are similar to those offered by Alphabet in the translation unit and in 'Google Translate'. Indeed, there are a number of third-party websites that enable users to translate a word or group of words from one language to another, e.g., the Linguee, WordReference, Cambridge Dictionary, Reverso Context or DeepL Translator websites. Virtually all these third-party websites are, or are likely to be, indexed by Google Search and consequently ranked on the SERP, in response to certain queries.

5.1.4. *More favourable treatment in ranking on the SERP of Alphabet's translation services*

- (530) When entering a translation-related query, Alphabet's own translation services, in particular its translation unit and 'Google Translate', are given more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.
- (531) First, Alphabet's translation unit is ranked prominently on Google Search. Indeed, following a translation-related query, the translation unit is displayed at the top and across the entire width of the SERP. The translation unit is displayed before all other search results. The prominence of the translation unit is strengthened by its particular graphic features and figurative elements, which include notably two fairly large spaces containing the word or group of words that are being translated, as well as, on some occasions, coloured photos illustrating such words.

²⁶⁷ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 76, [Attachment ID].

²⁶⁸ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 60, [Attachment ID].

- (532) Additionally, as stated above, the ‘Google translate’ query shortcut chip contributes to the visibility of ‘Google Translate’, by directing users towards this service.
- (533) Second, it is clear that third-party providers of translation services are ranked less prominently on Google Search, as compared to Alphabet’s translation unit and ‘Google Translate’. Indeed, no other third-party providers are able to offer translation services directly on the SERP, and any search results directing to their websites appear further down in the SERP, and/or in a smaller size, and/or with less prominent graphic features. Additionally, no other third-party providers benefit from query shortcut chips directing users towards their services.

5.1.5. *Alphabet’s arguments*

- (534) First, Alphabet argues, in essence, that the translation unit cannot be qualified as a separate service that is distinct or additional to Google Search.²⁶⁹
- (535) In the first place, the translation unit merely provides relevant and useful direct answers to translation-related queries, which is fully consistent with the purpose of an OSE.²⁷⁰
- (536) In the second place, the translation unit does not embed Google Translate and is not comparable thereto.²⁷¹
- (537) In the third place, the fact that the translation unit has an input mechanism enabling users to issue new translation queries is consistent with the purpose of an OSE, and obtaining data via means other than crawling is not indicative of a separate service.²⁷²
- (538) In the fourth place, Google does not display a shortcut to Google Translate or refer users to this service but rather displays a ‘Google translate’ query shortcut chip, based on the same mechanism as for all other query shortcut chips.²⁷³
- (539) Second, Alphabet maintains, in essence, that the translation unit is not comparable to third-party translation services, as these provide advanced translation capabilities that are not available in the translation unit.²⁷⁴
- (540) Third, Alphabet contends, in essence, that the Preliminary Findings do not explain how its translation services are advantaged compared to third-party services. In particular, according to Alphabet, the Preliminary Findings do not explain why it would be more advantageous for third-party translation services to provide their

²⁶⁹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 225-232, [Attachment ID].

²⁷⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 225, [Attachment ID].

²⁷¹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 226, [Attachment ID].

²⁷² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 228-230, [Attachment ID].

²⁷³ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 231, [Attachment ID].

²⁷⁴ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 226, [Attachment ID].

services directly on the SERP, or why Google's display of results that link to their services is not in fact more advantageous.²⁷⁵

5.1.6. *The Commission's assessment of Alphabet's arguments*

- (541) First, Alphabet has not put forward any convincing arguments calling into question the Commission's conclusion that the translation unit displayed by Alphabet on the SERP constitutes a service that is distinct or additional to Google Search.
- (542) In the first place, while it is true that the translation unit provides direct answers to translation-related queries, the fact remains that, for the reasons set out in recitals (523) - (528) of this Decision, it has a purpose that is different from or goes beyond that of an OSE and it is a distinct or additional service to Google Search. Moreover, if Alphabet's argument were to be followed, it would not be possible for any service to be distinct or additional to an OSE, as long as it was triggered by a query in an OSE.
- (543) In the second place, as regards Alphabet's argument that the translation unit does not embed Google Translate and is not comparable thereto, suffice it to note that, even if that were to be the case, this would not call into question the assessment carried out in recitals (523) - (528) of this Decision. Indeed, the qualification of the translation unit as a service that is distinct or additional to an OSE is not dependent upon any association with, or resemblance to, Google Translate. In any event, Alphabet does acknowledge that **[DESCRIPTION OF GOOGLE'S INTERNAL PROCESSES]**.²⁷⁶
- (544) In the third place, the possibility to conduct translations in the translation unit in real time, the fact that such unit has a number of ad hoc translation-related functionalities, and the fact that the translation unit takes into account information that has not been sourced from websites, including in particular insights derived from Alphabet's own technologies, together and in combination with one another, show that the translation unit is a distinct or additional service to Google Search. Indeed, the translation unit more closely resembles an online translation service or dictionary than an OSE.
- (545) In the fourth place, Alphabet acknowledges that, following a translation-related query, Google may show a query shortcut chip for the term 'Google translate', and that clicking on that chip adds the term to the user's query and issues a new and modified query. Indeed, Google shows a 'Google translate' query shortcut chip which, when clicked on, adds the term to the user's query and refreshes the SERP. Once the SERP has been refreshed, users can see a search result leading to Alphabet's Google Translate service. If users then click on that search result, they are led to Google Translate.
- (546) Although Alphabet maintains that this query shortcut chip is based on the same mechanism as other query shortcut chips, it does not contest the Commission's finding that no other third-party providers benefit from query shortcut chips that, in

²⁷⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 273-274, [Attachment ID].

²⁷⁶ Alphabet's response to RFI PO 3 of 26 June 2024, Tranche 1, submitted on 15 July 2024, paragraph 87, [Attachment ID].

the way described in recital (545) of this Decision, lead users towards their translation services.

- (547) Second, Alphabet has not put forward any convincing arguments calling into question the Commission's conclusion that third-party websites offer translation services that are similar to those offered by Alphabet and that are ranked on the SERP.
- (548) In the first place, while it is true that some third-party services may offer translation capabilities that are more advanced than those available in the translation unit, Alphabet has not provided any examples of such services and, more importantly, has not demonstrated that this is the case for all third-party translation services, including in particular those mentioned in recital (529) of this Decision.
- (549) In the second place, and in any event, the fact that some third-party services offer translation capabilities that are more advanced than those available in the translation unit does not mean that such services are not similar to the translation unit. Indeed, similarity between services in this context should be assessed by reference to the purpose of such services. Both the translation unit as well as third-party translation services perform tasks and offer functionalities that, in essence, assist users to translate words or groups of words from one language to another, regardless of the fact that the level of advancement of the capabilities offered by each service may vary to a certain extent.
- (550) Third, Alphabet has not put forward any convincing arguments calling into question the Commission's conclusion that Alphabet's own translation services, in particular its translation unit and 'Google Translate', are given more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties. Indeed, Alphabet does not contest the Commission's findings, set out in recitals (530) - (533) of this Decision, that Alphabet's translation services have more prominence on the SERP compared to similar third-party services.
- (551) Rather, Alphabet criticizes the Commission for not having examined whether the fact that Alphabet's own translation services have more prominence on the SERP, compared to third-party services, has resulted in an advantage for the former and a disadvantage for the latter. However, the Commission is under no duty to investigate the possible impact, effect, or harm deriving from non-compliance with Article 6(5) of Regulation (EU) 2022/1925. Indeed, it is apparent from recital 11 of that Regulation that the assessment to be carried out by the Commission is independent *"from the actual, potential or presumed effects of the conduct of a given gatekeeper covered by this Regulation on competition on a given market"*.

5.1.7. Conclusion

- (552) For the reasons stated above, the Commission concludes that Alphabet gives its own translation services, in particular its translation unit and 'Google Translate', more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.

5.2. Sport information services

5.2.1. The Google SERP

- (553) When a user inserts a query concerning sports results or other sports information, such as match scores, player statistics, or league standings, the SERP may include a sports unit or pane containing graphics on such information.²⁷⁷
- (554) For example, when a user searches for ‘*Athletic Club Bilbao*’ on Google, the SERP often includes an information pane or unit. This pane typically displays the latest sports information about the team, such as recent match results, upcoming fixtures, and current league standings.

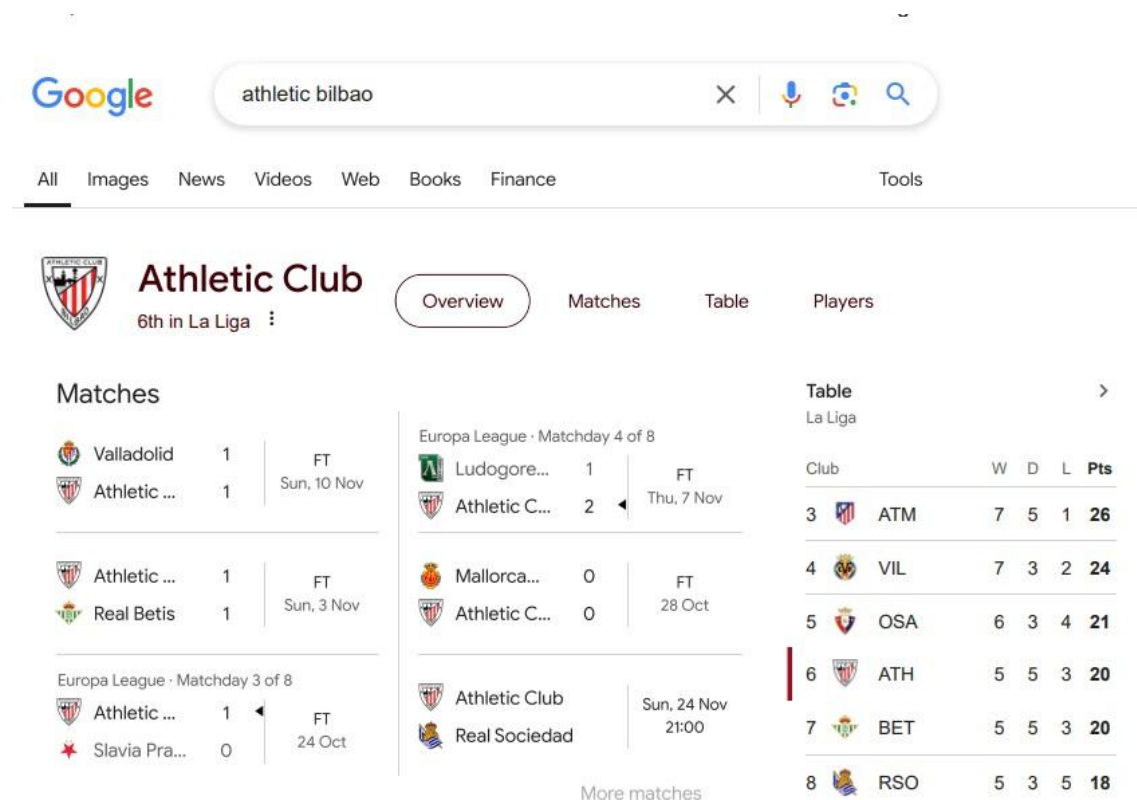


Image 26: SERP displayed in response to a query of Athletic Bilbao²⁷⁸

- (555) When a user then clicks on one of the specific matches mentioned in the unit, the user is directed to a preview page that typically expands to show detailed information about the match on the SERP. See below if the user clicks on ‘*Valladolid – Athletic Club*.’

²⁷⁷ This information may also include live scores and updates such as key moments, live commentary, lineups, match statistics or play-by-play updates, schedules and fixtures, historical sports data, league tables and tournament tableaus, player statistics and profiles summaries that include age, height, weight, current team, position, and career or season statistics.

²⁷⁸ Screenshot of the SERP following a query concerning Athletic Bilbao retrieved on 13 November 2024, [Attachment ID].

La Liga - Sun, 10 Nov

Valladolid 1 - 1 Athletic Club

Full-time

Raul Moro 79'

Gorka Guruzeta 90+4'

Match recap

Match recap

TIMELINE	LINEUPS	STATS	NEWS
6 3 34% 287 71% 12 4 0 2 5	TEAM STATS Shots Shots on target Possession Passes Pass accuracy Fouls Yellow cards Red cards Offsides Corners	17 1 66% 543 86% 12 4 0 3 5	

Image 27: SERP displayed in response to a query of Athletic Club Bilbao once a user clicks on a match²⁷⁹

- (556) When the user clicks on the tab 'More matches', on the bottom part of the pane as shown in Image 26 above, the user is redirected to a preview page on the SERP, in which the user can see in more detail the results of matches of the team at hand and future matches. The preview also offers the possibility of clicking on the videos displayed. If the user clicks on the videos it is redirected to a YouTube page with sports videos.

Athletic Club matches

Barcelona 1 Athletic Club 0 22 Oct 23 FT	Athletic Club 2 Valencia 2 29 Oct 23 FT
Copa del Rey - First round Rubi 1 Athletic Club 2 1 Nov 23 FT	Villarreal 2 Athletic Club 3 5 Nov 23 FT
Athletic Club 4 Celta Vigo 3 10 Nov 23 FT	Girona 1 Athletic Club 1 27 Nov 23 FT
Athletic Club 4 Rayo Vallecano 0 2 Dec 23 FT	Copa del Rey - Second round Cayón 0 Athletic Club 3 7 Dec 23 FT
Granada 1 Athletic Club 1 11 Dec 23 FT	Athletic Club 2 Atlético Madrid 0 16 Dec 23 FT

Image 28: SERP displayed in response to a query of Athletic Club Bilbao once a user clicks on the tab 'More matches'²⁸⁰

- (557) The user would have a similar experience when searching for other sport terms, for example, 'Champions League'. Google Search in return provides a rich overview such as current play-off matches, tables with match results and standings, and stat

²⁷⁹ Screenshot of the SERP following a query concerning Athletic Club Bilbao once a user clicks on a match retrieved on 13 November 2024, [Attachment ID].

²⁸⁰ Screenshot of the SERP following a query concerning Athletic Club Bilbao once a user clicks on the tab 'More matches' retrieved on 13 November 2024, [Attachment ID].

leaders. Users then have the option to click on the different chips, such as ‘matches’, ‘leaderboard’, ‘statistics’, and ‘players’, which then provide further detailed information about the chosen topic on the SERP. Furthermore, if users click on one of the displayed links, player or club names, extended or related content will be displayed on the SERP or on a separate Google page.

5.2.2. *Alphabet’s sport information services are distinct or additional to Google Search, and are ranked on the SERP*

(558) When returning results related to sports queries, Alphabet is providing a service which is distinct or additional to an OSE.

(559) Indeed, Alphabet uses, predominantly, data licensed from a specific group of third parties to present the responses on the SERP to a sports-related query.²⁸¹ Therefore, when providing the displayed information at the top of the SERP in response to a sports-related query, Alphabet is using, predominantly, information which has not been obtained by searching in principle all websites, but rather through licencing agreements with specific third parties. Thus, in doing so, Alphabet does not, predominantly, perform searches of, in principle, all websites, or all websites in a particular language, as required by the definition of an OSE.

(560) In view of the above, the Commission considers that Alphabet is providing a distinct or additional service to Google Search.

5.2.3. *Third parties offer similar services, which are ranked on the SERP*

(561) A wide range of third-party websites offer sports information services like those offered by Alphabet in the sports pane and preview, for example Kicker.de, lequipe.fr, or flashscore.es. All these third-party websites are, or are likely to be, indexed by Google Search and consequently ranked on the SERP, in response to certain queries.

5.2.4. *More favourable treatment in ranking on the SERP of Alphabet’s sport information services*

(562) Alphabet’s own generated sport content (knowledge panels, detailed responses, and features) appears prominently on the SERP, usually at the top of the SERP and before the other search results, while those of third parties do not.

(563) As shown above, no other third party can provide results in the SERP in the same way as Alphabet does. Such third parties are not able to present information on the SERP with functionalities comparable to those offered by Alphabet’s own sports information service, as described above.

5.2.5. *Alphabet’s arguments*

(564) Alphabet contests the Commission’s findings that Alphabet is preferencing its own sport information service over similar services offered by third parties on the SERP. Alphabet claims that the Commission did not show that the sports unit is a distinct service from Google Search, which can be subject of self-preferencing.

²⁸¹ Alphabet’s response to RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 72, [Attachment ID]; and Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 200, [Attachment ID].

5.2.5.1. Alphabet considers that the sports unit is not an additional or distinct service

(565) Alphabet claims that the Preliminary Findings fail to show that the sports unit is a separate service. According to Alphabet, the sports unit is a legitimate part of an OSE providing users with direct answers to a user query.

5.2.5.1.1. The sports unit shows a response to a user query

(566) First, Alphabet considers that the sports unit is a response to a user query. The sports unit “*shows basic, objective metrics for a particular sport event or entity*” relevant to the user’s query and it may be accompanied by links that direct the user to the websites of sports associations, leagues and Alphabet’s broadcasting partners. Therefore, the sports unit provides for a direct and relevant answer to the user’s query which connects users with the site of official stakeholders.²⁸²

(567) Second, Alphabet argues that the sports unit does not provide information which goes beyond what the user query requests as an OSE would do but responds to users’ queries.²⁸³ According to Alphabet:

(a) An OSE needs to be able to interpret a user’s query and provide answers even when such a query is an ambiguous one.²⁸⁴

(b) The sports unit shows **[DESCRIPTION OF GOOGLE’S INTERNAL PROCESSES]**.²⁸⁵

(c) Alphabet supports this argument by providing “*empirical data from users*” which would confirm that the sports unit is responsive to users’ queries.²⁸⁶

(d) Alphabet also offers data showing that the sports unit benefits stakeholders, such as broadcasters, sport associations, or leagues. This data would confirm how the sports unit contributes to connecting users with relevant websites.²⁸⁷

5.2.5.1.2. Alphabet claims that the features identified by the Commission do not result in the sports unit being a separate service

(568) Alphabet considers that the Commission is wrong in qualifying the sports unit as a separate service based on specific features. In particular, Alphabet argues that OSEs must obtain information from various sources other than through crawling, as this is important to provide relevant information for the sports unit. According to Alphabet, this cannot be an indication of a different service.²⁸⁸

²⁸² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 186-187, [Attachment ID].

²⁸³ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 188 and 193, [Attachment ID].

²⁸⁴ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 190 and 191, [Attachment ID].

²⁸⁵ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 192, [Attachment ID].

²⁸⁶ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 194-195, [Attachment ID].

²⁸⁷ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 196-197, [Attachment ID].

²⁸⁸ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 205, [Attachment ID].

5.2.5.2. Alphabet claims that the sports unit is not similar to other sport information provider services

(569) Alphabet states that the Commission errs in equating the sports unit to other information-providing services.²⁸⁹

5.2.5.3. Alphabet claims that it does not favour its own services on the SERP

(570) Alphabet claims that the Commission did not identify what advantage the sports unit creates for its own separate service. Additionally, it considers that the Commission should have explained what the specific gains of a prominent display are for third-party information services.²⁹⁰ Alphabet also claims that there is no specific gain in terms of traffic, revenue, or business partners²⁹¹ and states that having links displayed below, leading to third-party services, is more advantageous than having the metrics displayed prominently with its results.²⁹²

5.2.6. *The Commission's assessment of Alphabet's arguments*

5.2.6.1. The sports unit is a distinct or additional service to Google Search

(571) The Commission considers the sports unit to be a distinct or additional service to an OSE, for the reasons set out in recitals (558) - (560) of this Decision. None of Alphabet's arguments call this finding into question.

(572) Indeed, the Commission, in Section 5.2.2 of this Decision, sets out why the sports unit is a distinct or additional service to Google Search.

(573) While it may be true that the sports unit provides relevant answers in response to user queries, the fact remains that, to render the sports unit, Alphabet uses, predominantly, data licensed from a specific group of third parties. Thus, in doing so, Alphabet does not, predominantly, perform searches of, in principle, all websites, or all websites in a particular language, as required by the definition of an OSE in Article 2, point (5), of Regulation (EU) 2019/1150, which is referred to in Article 2, point (6), of Regulation (EU) 2022/1925. Consequently, the sports unit must be considered a distinct or additional service to Google Search.²⁹³

5.2.6.2. The Commission showed that there are third parties offering similar services

(574) Alphabet claims that the Commission erred in equating the sports unit with other sport information services, but it does not explain why this is the case. The Commission showed, by mentioning specific examples, that there are third parties which offer similar services as the one provided by Alphabet in the sports unit.

²⁸⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 201, [Attachment ID].

²⁹⁰ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 268-270, [Attachment ID].

²⁹¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 270, [Attachment ID].

²⁹² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 270, [Attachment ID].

²⁹³ See Article 2, point (6), of Regulation (EU) 2022/1925 defines OSEs by reference to Article 2, point (5), of Regulation (EU) 2019/1150.

5.2.6.3. Alphabet preferences the sports unit in ranking on the SERP

- (575) Alphabet claims that the Commission should have identified in its Preliminary Findings the advantage the sports unit creates for Alphabet, identifying specific gains of a prominent display. However, Alphabet does not challenge the Commission's findings that the sports unit is given more favorable treatment in ranking on Google Search, as compared to similar services offered by third parties.
- (576) Article 6(5) Regulation (EU) 2022/1925 does not require the Commission to show the effect, impact or harm that could derive from Alphabet's non-compliance with said provision. Recital 11 of that Regulation establishes that the assessment to be carried out by the Commission is independent "*from the actual, potential or presumed effects of the conduct of a given gatekeeper covered by this Regulation on competition on a given market*".
- (577) In any event, Alphabet's arguments appear to call into question the rationale of this provision. It is not for the Commission to prove that third parties would benefit from a more prominent display but for Alphabet to show that there is no prominent display of its services over those of third parties, as mandated by Article 6(5) Regulation (EU) 2022/1925. This is a self-executing provision with which the designated gatekeeper must show compliance.²⁹⁴

5.2.7. Conclusion

- (578) For the reasons stated above, the Commission concludes that Alphabet gives its own sport information services, in particular its sports unit, more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.

5.3. Games services

5.3.1. The Google SERP

- (579) When a user inserts a games-related query, in particular a request to play a basic game, such as 'Solitaire' or 'Snake', Alphabet displays a games unit at the top of the SERP, enabling the user to play the game in question.
- (580) The games unit includes, in particular: (i) a rectangle box which, once the user clicks on the 'Play' button, pops-up and enables the user to play the game; and (ii) an arrow pointing down which, when clicked on, enables the user to access other 'Games & Toys' and 'Tools'.
- (581) The two images below show the games unit displayed by Alphabet at the top of the SERP, in response to the query 'play solitaire', as well as the 'Games & Toys' menu that becomes visible when the user clicks on the arrow pointing down.

²⁹⁴ Article 8(1) Regulation 2022/1925: "*The gatekeeper shall ensure and demonstrate compliance with the obligations laid down in Articles 5, 6 and 7 of this Regulation. The measures implemented by the gatekeeper to ensure compliance with those Articles shall be effective in achieving the objectives of this Regulation and of the relevant obligation*".

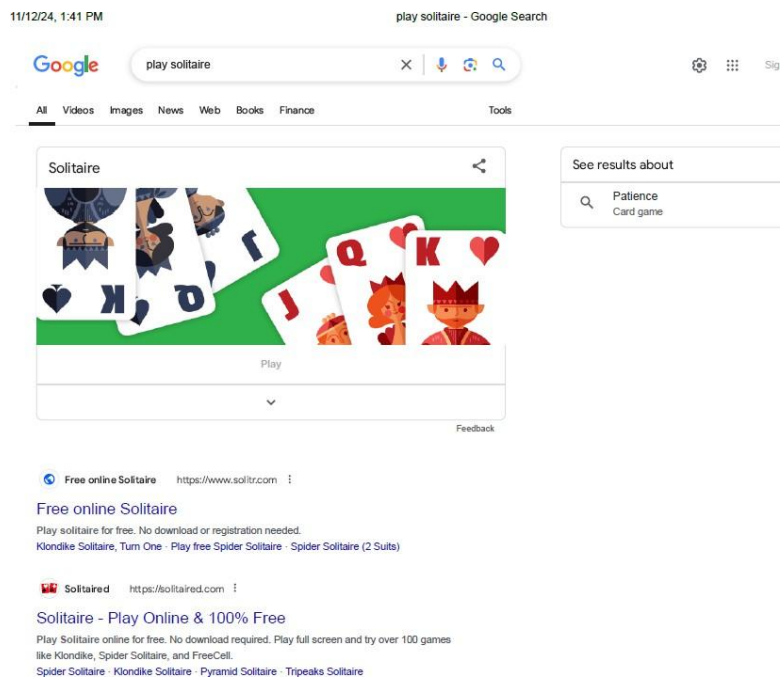
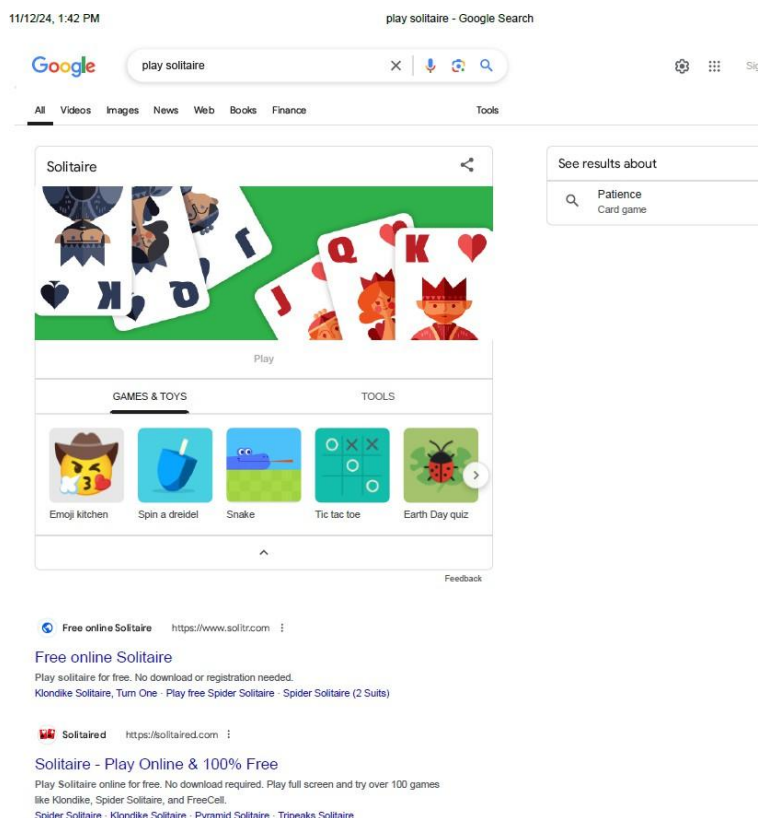


Image 29: SERP displayed in response to the query ‘play solitaire’, retrieved on 12 November 2024²⁹⁵



²⁹⁵ Screenshot of the SERP following a query ‘play solitaire’ retrieved on 12 November 2024, [Attachment ID].

Image 30: SERP displayed in response to the query 'play solitaire' when the user clicks on the arrow pointing down, retrieved on 12 November 2024²⁹⁶

5.3.2. Alphabet's games services are distinct or additional to Google Search, and are ranked on the SERP

- (582) The games unit displayed by Alphabet on the SERP constitutes a content-related service that is distinct or additional to Google Search.
- (583) First, with the games unit, which is ranked on and embedded in Google Search, Alphabet provides a distinct or additional games service to the user on the SERP. The service provided in the games unit has a purpose that is different from or goes beyond that of an OSE, in terms of the functionalities or tasks that it performs.
- (584) In particular, the games unit presents a series of functionalities that allow users to perform, directly on the SERP, actions that are unrelated to searching the Internet and obtaining results in which information related to the requested content can be found. Indeed, it enables a user not only to see the results of a games-related search query that it has previously submitted, but also to play such a game directly on the SERP, in an ad hoc interactive rectangle box that has been specifically designed for these purposes.
- (585) Second, Alphabet does not offer the games displayed in the games unit by sourcing data from any websites (whether, for instance, by crawling or through data-feeds), but rather by coding such games itself.²⁹⁷ Thus, the games unit is not displayed on the basis of a search of, in principle, all websites, or all websites in a particular language, as required under the definition of an OSE provided in Article 2, point (6), of Regulation (EU) 2022/1925 by reference to Article 2, point (5), of Regulation (EU) 2019/1150. This provides additional evidence that such a unit constitutes a service that is distinct or additional to Google Search.
- (586) Thus, the Commission considers that the games unit displayed by Alphabet on the SERP constitutes a service that is distinct or additional to Google Search.

5.3.3. Third parties offer similar services, which are ranked on the SERP

- (587) A wide range of third-party websites offer games services that are similar to those offered by Alphabet in the games unit. Indeed, there are a number of third-party websites that enable users to play games such as 'Solitaire' or 'Snake', e.g., solitaired.com, play-solitaire.com, worldofsolitaire.com, playsnake.org, or crazygames.com. Virtually all these third-party websites are, or are likely to be, indexed by Google Search and consequently ranked on the SERP, in response to certain queries.

5.3.4. More favourable treatment in ranking on the SERP of Alphabet's games services

- (588) When entering a games-related query, Alphabet's own games services, in particular its games unit, are given more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.

²⁹⁶ Screenshot of the SERP following a query 'play solitaire' when the user clicks on the arrow pointing down retrieved on 12 November 2024, [Attachment ID].

²⁹⁷ RFI PO 4 of 2 August 2024, submitted on 9 September 2024, paragraph 71, [Attachment ID].

- (589) First, Alphabet's games unit is ranked prominently on Google Search. Indeed, following a games-related query, the games unit is displayed at the top and across the entire width of the SERP. The games unit is displayed before all other search results. The prominence of the games unit is strengthened by its particular graphic features and figurative elements, which include notably a very large rectangle box that contains colourful game-related pictures. Such prominence is also strengthened by the fact that, when a user clicks on the arrow pointing down, located at the bottom of the games rectangle, such a user is provided with links to other Alphabet-provided games.
- (590) Second, it is clear that third-party providers of games services are ranked less prominently on Google Search, as compared to Alphabet's games unit. Indeed, no other third-party providers are able to offer games services directly on the SERP, and any search results directing to their websites appear further down in the SERP, and/or in a smaller size, and/or with less prominent graphic features.

5.3.5. *Alphabet's arguments*

- (591) First, Alphabet argues, in essence, that the games unit cannot be qualified as a separate service that is distinct or additional to Google Search.²⁹⁸
- (592) In the first place, the games unit provides some basic and simple games as an ancillary feature for fun and amusement, which does not overstep the legal boundaries of an OSE.²⁹⁹
- (593) In the second place, a variety of different products and services, such as mobiles phones, cars, or even the Commission's own website, include the same type of games, and this does not mean that they operate a separate games service.³⁰⁰
- (594) In the third place, only a small percentage of queries issued in the EEA result in the display of a games unit.³⁰¹
- (595) Second, Alphabet maintains, in essence, that the Preliminary Findings do not explain how its games services are advantaged compared to third-party services. In particular, according to Alphabet, the Commission does not explain why it would be more advantageous for third-party games services to provide their services directly on the SERP, or why Google's display of results that link to their services is not in fact more advantageous.³⁰²

²⁹⁸ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 233-235, [Attachment ID].

²⁹⁹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 233, [Attachment ID].

³⁰⁰ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 234, [Attachment ID].

³⁰¹ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 235, [Attachment ID].

³⁰² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 273-274, [Attachment ID].

5.3.6. *The Commission's assessment of Alphabet's arguments*

- (596) First, Alphabet has not put forward any convincing arguments calling into question the Commission's conclusion that the games unit displayed by Alphabet on the SERP constitutes a service that is distinct or additional to Google Search.
- (597) In the first place, whether the games unit may be characterized as an 'ancillary' feature is not decisive. Indeed, the question whether the games unit constitutes a service that is distinct or additional to Google Search depends, in particular, on whether it has a different purpose from that of an OSE, and not on its possible 'ancillary' or 'non-ancillary' nature. And the fact remains that the purpose of the games unit is different from or goes beyond that of an OSE, as, rather than searching the Internet and delivering to users results in which information related to the requested content can be found, it enables users to play games directly on the SERP.
- (598) In the second place, while it may be true that other products or services may include the same type of games as those displayed in the games unit, Alphabet has not argued, let alone demonstrated, that the entities providing such products or services have been designated as gatekeepers under Regulation (EU) 2022/1925, that such products or services constitute core platform services listed in a designation decision pursuant to Article 3(9) of that Regulation, or that such products or services engage in 'ranking', which is a necessary precondition for the application of Article 6(5) of Regulation (EU) 2022/1925. Additionally, Alphabet has not explained whether or to what extent such games fall within the purpose of those products or services, or, if that were to be the case, why that would mean that they also fall within the purpose of an OSE.
- (599) In the third place, the fact that only a small percentage of queries issued in the EEA result in the display of a games unit, supposing it were established, would not call into question the Commission's findings set out in recitals (582) - (586) of this Decision. Indeed, what is important to determine whether there is a distinct or additional service is, in particular, the purpose of such service, not the frequency with which it is displayed.
- (600) Second, Alphabet has not put forward any convincing arguments calling into question the Commission's conclusion that Alphabet's own games services, in particular its games unit, are given more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties, *mutatis mutandis*, for the reasons set out in recitals (550) and (551) of this Decision.

5.3.7. *Conclusion*

- (601) For the reasons stated above, the Commission concludes that Alphabet gives its own games services, in particular its games unit, more favourable treatment in ranking on Google Search, as compared to similar services offered by third parties.

6. ALPHABET'S ALLEGATIONS REGARDING PROCEDURAL DEFICIENCIES ARE UNFOUNDED

- (602) Alphabet alleges that the Commission's investigation suffers from procedural errors. Alphabet raises three main arguments:

- The scope of the investigation is larger than what was set out in the Opening Decision.
 - The investigation was in breach of the principle of sound administration.
 - Alphabet’s rights of defence were breached because it did not have proper access to file.
- (603) Alphabet’s claims are unfounded. The Commission’s investigation was fully in scope of the Opening Decision, conducted in line with the principle of sound administration and in full respect of Alphabet’s rights of defence.

6.1. Scope of the Commission’s investigation

6.1.1. Alphabet’s arguments about large portions of the Preliminary Findings being outside the scope of the Commission’s investigation

- (604) Alphabet claims that the Commission’s investigation is broader than the scope of the Opening Decision, in breach of Article 5 of Commission Implementing Regulation (EU) 2023/814, according to which the Preliminary Findings can only be adopted based on the Opening Decision.³⁰³
- (605) First, as regards transactional queries, Alphabet claims that the Commission’s investigation should be limited to the assessment of the compliance with Article 6(5) Regulation (EU) 2022/1925 of the elements listed in paragraph 8 of the Opening Decision.³⁰⁴ Therefore, according to Alphabet, the free units for suppliers should be excluded of such assessment given that only the preview pages, query shortcut chips and tabs are in scope of the present case. Additionally Alphabet claims that trains and airlines units do not include a preview page and the tabs for trains, airlines and products are the only ones in scope.³⁰⁵
- (606) Second, as regards the units displayed in response to a content query, such as sports, Alphabet considers them to be “*entirely unrelated to the matters identified in the opening decision*”.³⁰⁶

6.1.2. The Commission’s assessment of Alphabet’s arguments

- (607) First, the Commission fully complied with its procedural obligations under Regulation (EU) 2022/1925 and Commission Implementing Regulation (EU) 2023/814.
- (608) Pursuant to Article 20 of Regulation (EU) 2022/1925 the Commission adopted an opening decision on 25 March 2024 with a view to the possible adoption of a decision pursuant to Article 29 of that Regulation. Article 20 Regulation (EU) 2022/1925 does not specify the content of such an opening decision. Article 29(3) of that Regulation requires the Commission to communicate preliminary findings to the

³⁰³ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 292, 296, [Attachment ID].

³⁰⁴ Opening Decision of 25 March 2024 Commission decision opening a proceeding pursuant to Article 20(1) of Regulation (EU) 2022/1925, C(2024) 2053 final.

³⁰⁵ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 292-294, [Attachment ID].

³⁰⁶ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 295, [Attachment ID].

gatekeeper concerned before adopting a non-compliance decision. Nowhere does the text of Regulation (EU) 2022/1925 stipulate that the opening decision limits the scope of the preliminary findings.

- (609) The Opening Decision therefore does not limit the Commission’s ability to determine the scope of its objections in the Preliminary Findings. An opening decision is a procedural step which serves to inform the parties that the Commission will further investigate a specific conduct. Pursuant to Article 34 Regulation (EU) 2022/1925 the Commission shall base its decision on its preliminary findings, and not the opening decision. Additionally, an opening decision serves to inform the national competition authorities and national courts of Members States that the Commission is conducting an investigation on the matter.
- (610) Thus, Alphabets errs in stating that the Commission could not include additional facts and legal arguments after the Opening Decision.
- (611) Second, in any event, the Opening Decision had a broad scope which referred not only to the specific measures described by Alphabet in its Compliance Report 2024 but more broadly to Alphabet’s services compliance with Article 6(5) Regulation (EU) 2022/1925 on Google Search.
- (612) Recital 8 of the Opening Decision outlined the measures that Alphabet took to comply with Article 6(5) Regulation (EU) 2022/1925.³⁰⁷ recital 9 of that Decision explains that the Commission would focus the investigation on:³⁰⁸
- The compliance of those measures with Alphabet’s obligation to not self-preference its own services, particularly Google’s vertical search services, on the SERP; and
 - whether those measures undermined effective compliance as they did not fully address self-preferencing in ranking on Google’s SERP of Google’s services.
- (613) Recital 10 of that Decision concludes that the investigation will focus on “*the obligation on Alphabet not to rank its own services, in particular Google’s vertical search services more favourably, on the SERP of its Google Search CPS [...]*”.
- (614) Therefore, contrary to what Alphabet claims, the Commission included a broad scope in its Opening Decision that captures in particular any vertical search service provided by Alphabet.
- (615) *Third*, Alphabet’s claims according to which the content units “*were not discussed in any substantive manner*” during the proceedings are unfounded. Alphabet had been informed of the fact that the Commission was investigating these services in the context of this specific case. In March 2024, the Commission specifically asked

³⁰⁷ See recital 8 of the Opening Decision in which the Commission lists the measures Alphabet took in its compliance report pursuant to Article 11 of Regulation (EU) 2022/1925.

³⁰⁸ See recital 9 of the Opening Decision which states that the Commission’s investigation would focus on: “*whether those measures comply with the obligation on Alphabet not to rank its own services, in particular Google’s vertical search services, on its SERP more favourably as compared to similar services of third parties*” and “*the Commission will also examine whether some of those measures can undermine effective compliance with the obligations of Article 6(5) of Regulation (EU) 2022/1925 within the meaning of Article 13(4) or (6) of that Regulation insofar as they do not fully address possible favourable treatment in ranking of Google’s services on the SERP of its Google Search CPS*”.

Alphabet about proposed measures across “*other verticals*”.³⁰⁹ Furthermore, the Commission sent two requests for information to Alphabet including several questions on these specific matters.³¹⁰ Eventually, these units were subject of meetings that took place on 27 November 2024 and 22 July 2025. For the sake of completeness, it must be noted that despite the early Commission’s requests about Alphabet’s compliance plans for services in response to a content query, the first Alphabet proposal received by the Commission dates from 17 July 2025.³¹¹ Therefore, the claims that these services were not discussed during the investigation are unfounded.

6.2. The Commission carried out an extensive, impartial and genuine investigation

6.2.1. *Alphabet’s arguments about the alleged breach of the principle of sound administration*

- (616) Alphabet claims that the Commission’s investigation is vitiated by four separate breaches of the principle of sound administration, as enshrined in Article 41 of the Charter of Fundamental Rights.³¹²
- (617) First, Alphabet claims that the Commission adopted a prejudicial position and asked third parties to support its position in breach of the principle of sound administration.³¹³ To support these arguments Alphabet refers to six minutes of meetings between the Commission and third parties as included in the annex to its data room report of 8 April 2025,³¹⁴ an email³¹⁵ and two submissions by a CSS.³¹⁶

³⁰⁹ Commission’s email of 13 March 2024, [Attachment ID].

³¹⁰ See RFI PO 3 of 26 June 2024, [Attachment ID], where the Commission enquired about (i) Google Finance, (ii) Google Maps, (iii) Google Translate, (iv) any games provided by Alphabet on the SERP, (v) football or other sports results shown on the SERP, and (vi) lyrics in Question 4. In addition, in RFI PO 4 of 2 August 2024, [Attachment ID], the Commission asked for clarifications on the definition, features and other information for services such as games or translation services.

³¹¹ Alphabet, Direct answer units and the games unit, submitted on 17 July 2025, [Attachment ID].

³¹² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 298 and 299, [Attachment ID].

³¹³ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 300 and 303.

³¹⁴ Data room report, annex, [Attachment ID]: In paragraphs 5-6, Alphabet refers to minutes of a meeting with a CSS in which the Commission allegedly “*stated to a complainant that it is aiming for changes to the search results page in a particular format that would apply generally to both CSSs and other types of business users*”. In paragraph 7, Alphabet refers to minutes of a meeting between the Commission and several CSS, in which, according to Alphabet, “*the Commission indicated that Google Search elements represent separate services that cannot be favourably ranked if they exhibit features that resemble features of VSSs*”; In paragraph 12, Alphabet refers to minutes of a meeting with representatives of the hotel industry in which the Commission allegedly stated that “*the solution that Google was proposing to implement (and did implement in March 2024) did not comply with Art. 6(5) DMA*”. In paragraphs 14-15, Alphabet refers to minutes of a meeting with a hotel supplier in Q4 of 2023, in which the Commission allegedly contemplated changes to Google Search’s result and asked leading questions. In paragraph 16, Alphabet refers to minutes of a meeting with a VSS in which, according to Alphabet, “*the Commission asked for the VSS’s views on the removal of previews from result units*”. In paragraph 18, Alphabet refers to minutes of a meeting between the Commission and a travel VSS association in Q1 of 2024, in which, according to Alphabet, “*Google must not have functionality that is also characteristic of an online intermediation service, like refinement chip*”.

³¹⁵ Data room report, annex, paragraph 10, [Attachment ID]: An email from a travel VSS association “*that it is encouraged by the Commission’s assessment that certain elements on Google’s search results pages would not comply with Art. 6(5)*”.

³¹⁶ Data room report, annex, paragraph 145, [Attachment ID].

- (618) Second, Alphabet claims that the Commission did not conduct a genuine investigation. Specifically, Alphabet considers that the Commission did not investigate (i) how the results units are distinct services; (ii) how third-party services operate and compare to Google Search and (iii) the proportionality. According to Alphabet, the Commission did not issue RFIs or seek to verify and validate information from complainants. Moreover, Alphabet claims that the Commission did not seek to obtain input from suppliers and non-complainant intermediaries and it did not attempt to obtain insights about users.³¹⁷
- (619) Third, the Commission allegedly disregarded evidence from third parties when “*it did not fit*” the Commission’s position.³¹⁸ Alphabet claims that the Commission did not engage with the evidence failing to “*examine [it] carefully and impartially*”.³¹⁹ Alphabet includes evidence from various parties to support its claims that:³²⁰
- The result units are not distinct or additional services.
 - Far-reaching changes beyond March 2024 would harm suppliers, smaller VSSs and users.
 - The investigation is biased in favour of complainant VSSs.
 - Information important for consumers “*should be retained as part of a search engine*”.
- (620) Fourth, Alphabet considers that the Commission violated the principle of sound administration by limiting itself to reproduce arguments of a few complainants without investigating and verifying them.³²¹
- 6.2.2. *The Commission carried out an extensive, impartial and genuine investigation*
- (621) The right to a sound administration is enshrined in Article 41 of the Charter of Fundamental rights of the EU which states that “*every person has the right to have his or her affairs handled impartially, fairly and within a reasonable time by the institutions and bodies of the Union*”. The Commission carried out an extensive and long investigation investigating impartially the case at hand and discharged its burden of proof.

³¹⁷ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 302 to 303, [Attachment ID].

³¹⁸ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 304 and 305, [Attachment ID].

³¹⁹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 306 and 307, [Attachment ID].

³²⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 305, [Attachment ID].

³²¹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 308 and 309, [Attachment ID].

- (622) First, Alphabet's claims that the Commission took a prejudicial position since the beginning of the investigation are unfounded. Alphabet misquotes the evidence included in the file to support its view.³²² The evidence quoted only shows that the Commission engaged with various stakeholders from various sectors and with opposing interests to understand their concerns regarding Alphabet's compliance.
- (623) Second, the Commission carried out an extensive, impartial and genuine investigation which dealt with all aspects of Alphabet's compliance solution.
- (624) In the first place, contrary to Alphabet's assertion, the Commission sought to obtain input from suppliers and intermediaries as well as consumers. The Commission held more than 100 meetings with third parties since 2022,³²³ more than 20 meetings with Alphabet, attended two of the workshops organised by Alphabet with third parties as an observer and organised itself six different workshops (three of which Alphabet attended). Importantly BEUC, the consumer association representing 45 independent consumer organisations attended each of the six Commission workshops and a meeting with the Commission.³²⁴

³²² See for instance data room report, annex, paragraph 5, [Attachment ID], as quoted in footnote 99 of Alphabet's response to the Preliminary Findings, which quotes minutes of a meeting between the Commission and a CSS. A close look at the minutes shows that, while Alphabet quotes it to explain that the Commission took a prejudicial position against it, the minutes show that simply the Commission took note of the CSS concern explaining that any solution must be useful across sectors, far from what Alphabet suggests. Data room report, annex, paragraph 7, as quoted in footnote 99 of Alphabet's response to the Preliminary Findings, refers to minutes of the meeting between various CSSs and the Commission. Although Alphabet considers these minutes as evidence of the Commission taking a position that certain elements of Google Search constituted distinct service that could not be treated more favourably, the minutes show that the Commission recalled that it was for a constructive engagement to find a compliant solution between third parties and Alphabet before 7 March 2024. The Commission explained as well its interpretation of the elements required for an assessment of an infringement of Article 6(5) of Regulation 2022/1925. Data room report, annex, paragraph 12 as quoted in footnote 99 of Alphabet's response to the Preliminary Findings, which quotes minutes of meeting of {Q4 2023} between Commission and {hotel supplier, hotel supplier, and hotels association. In the meeting the Commission explained that it is investigating what appears to be a not compliant solution but it was in dialogue with Alphabet. Data room report, annex, paragraph 14 as quoted in footnote 99 of Alphabet's response to the Preliminary Findings, which quotes minutes of a meeting between the Commission and a hotel supplier in which the Commission was enquiring about the hotel supplier preferences for certain elements of a compliant solution. Far from showing any bias the minutes show that the Commission was gathering input on the specific Alphabet solution in view of the compliance deadline of 7 March 2024. Data room report, annex, paragraph 16 as quoted in footnote 99 of Alphabet's response to the Preliminary Findings, which quotes minutes of meeting {Q4 2023} between Commission and {a places VSS} rather than showing that the Commission was "*asking leading questions*" as Alphabet claims, a close look at the minutes show that the Commission was asking the view of the stakeholder on certain elements of Alphabet's compliance solution. Finally, data room report, annex, paragraph 18 as quoted in footnote 99 of Alphabet's response to the Preliminary Findings, which quotes minutes of meeting {Q1 2024} between Commission and {a travel VSS association} show that the Commission shared what in its view were minimal criteria for assessing compliance of any solution).

³²³ It is important to note that the Commission, as early as in 2022, already started discussions revolving around the delineation of Google Search and distinct or additional services embedded in Google's search result pager. These conversations took place in the context of the possible designation of Alphabet as gatekeeper for Google Search.

³²⁴ Minutes of meeting with BEUC, 13 November 2023, [Attachment ID].

- (625) The Commission’s extensive engagement with Alphabet and various types of stakeholders took place in various formats:
- (1) Bilateral meetings with Alphabet: The Commission held more than 20 meetings with Alphabet discussing about the scope of the investigation and ensuring a continuous regulatory dialogue.
 - (2) Meetings with third parties: The Commission held a substantial amount of meetings with third parties which cover various types of sectors including those related to products, lodging, places, transport, places and sports information.³²⁵ In particular, the Commission held more than 100 meetings, where more than 80 were meetings with VSSs/CSSs or their associations and at least 20 were meetings with direct suppliers or their associations. The Commission also held meetings and calls with BEUC.
 - (3) Third-party submissions: The Commission received and assessed over 200 submissions where more than 100 submissions came from VSSs/CSSs or their associations and more than 50 submissions from direct suppliers or their associations. These submissions cover various types of sectors including those related to products, lodging, transport, places and sports information.³²⁶
 - (4) Workshops carried out: Beside the annual gatekeepers’ compliance workshops, the Commission allocated the time and resources to organise six workshops in order to hear all views of the various stakeholder groups. A plethora of different types of stakeholders, including direct suppliers, VSSs, CSSs and BEUC, participated and actively engaged.³²⁷ Alphabet was also present at three of these workshops.³²⁸ In addition, the Commission participated in two workshops that Alphabet organised.³²⁹
- (626) In the second place, and in addition to the above, requests for information are just one of the tools that the Commission has at its disposal to conduct investigations under Regulation (EU) 2022/1925. It is evident from the use of the word “may” in Article 21 of Regulation (EU) 2022/1925, and contrary to what Alphabet seems to claim, that the Commission “may” issue requests, for information to investigate a specific conduct. However, the Commission may use other tools to gather information for its investigation.³³⁰ The fact that the Commission did not issue requests for information to third parties is, therefore, not a proof that the Commission’s investigation is not genuine.

³²⁵ Data room index, [Attachment ID], and data room report, annex, paragraphs 5-6, [Attachment ID].

³²⁶ Data room index, [Attachment ID], and data room report, annex, paragraphs 5-6, [Attachment ID].

³²⁷ Commission’s workshops took place on 7 December 2023, 15-16 January 2024 and 9-11 September 2024.

³²⁸ Namely, on those that took place on 7 December 2023 and 15-16 January 2024.

³²⁹ Alphabet’s workshops took place on 16-17 May 2023, 29 June 2023, 26 September 2023 and 19 October 2023.

³³⁰ See Chapter V of Regulation (EU) 2022/1925 which provides for investigative, enforcement and monitoring powers of the Commission. In particular, Article 22 Regulation (EU) 2022/1925 states that *“In order to carry out its duties under this Regulation, the Commission may interview any natural or legal person which consents to being interviewed, for the purpose of collecting information, relating to the subject-matter of an investigation. [...]”*.

- (627) In the third place, and in any event, Alphabet’s claims that the Commission did not investigate properly (i) how the results units are distinct services; (ii) how third-party services operate and compare to Google Search and (iii) the proportionality are in contradiction with the evidence that Alphabet itself quotes. The file shows that the Commission gathered evidence from various stakeholders with different interests to prove these points exactly.
- (628) Third, Alphabet’s allegations that the Commission disregarded third party evidence whenever it did not fit its position is unfounded. The Commission has substantiated its findings diligently, assessing all the evidence gathered throughout the investigation from Alphabet as well as third parties. The extensive engagement that took place with various stakeholders with opposing interests from various sectors has been taken carefully into consideration to inform this Decision.
- (629) Fourth, Alphabet’s claims that the Commission reproduces arguments of a few complainants, without investigating and verifying it, are wrong. It has already been established that the Commission carried out an extensive investigation, which served as basis for its findings. The minutes of the meeting that Alphabet uses to support its allegations only show that the Commission did actually look into third parties’ views and feedback.
- (630) In light of the above, the Commission carried out a genuine investigation in full respect of the principle of sound administration.

6.3. Alphabet had full access to the Commission’s file

6.3.1. Alphabet’s arguments about the Commission allegedly improperly denying Google access to the file

- (631) According to Alphabet, only its specified external advisers were granted access to the case file, not Alphabet itself, and only in a data room for a limited period of time. Alphabet claims that the Commission therefore improperly denied Alphabet access to the file in violation of Alphabet’s rights of defence.³³¹
- (632) Alphabet also claims that according to Article 34 of Regulation (EU) 2022/1925 the gatekeeper is “*entitled to have access to the Commission’s file*”, not merely to documents cited in the Preliminary Findings. The Commission cannot override the right of access to the file via its Implementing Regulation. Alphabet refers to the *Aalborg Portland* and *Bulgaria Energy Holding* antitrust judgments on access to the file.³³²

6.3.2. The Commission’s assessment of Alphabet’s arguments

- (633) The Commission considers that Alphabet’s claim alleging a breach of its right of access to the file under Article 34 of Regulation (EU) 2022/1925 is unfounded. The Commission followed strictly the procedure set out in the law in full respect of Alphabet’s rights of defence.

³³¹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 310, [Attachment ID].

³³² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 311, [Attachment ID].

- (634) First, Regulation (EU) 2022/1925 establishes a distinct procedural framework from that applicable to antitrust cases. The Commission Implementing Regulation (EU) 2023/814 on detailed arrangements for the conduct of certain proceedings by the Commission pursuant to Regulation (EU) 2022/1925 establishes a specific procedural framework for gatekeepers' access to file, tailored to the nature of the Regulation (EU) 2022/1925. This framework balances the need for efficient and timely investigations with the preservation of the gatekeeper's rights of defence. The General Court confirmed in its *ByteDance* judgment that Regulation (EU) 2022/1925 is characterised by a regulatory structure that differs from traditional competition law proceedings.³³³
- (635) Second, according to Article 8(2) of Commission Implementing Regulation (EU) 2023/814, when providing access to file and upon request, the Commission shall provide the addressee of the Preliminary Findings with all documents mentioned in the Preliminary Findings subject to the redaction of confidential information. Following Alphabet's requests, the Commission provided Alphabet with access to the non-confidential versions of the documents mentioned in the Preliminary Findings on 21 March 2025.
- (636) Third, Article 8(3) Regulation (EU) 2023/814 provides for access to the full file — including confidential and non-cited documents — to a limited number of specified external advisers, under strict terms of disclosure which are established in a Commission decision. This procedure ensures confidentiality while offering the undertaking under investigation access to the full file through its specified external advisers.
- (637) Fourth, as explained in recital (14) of this Decision, the Commission adopted the Terms of Disclosure Decision, which specified the modalities for access in a data room setting, in accordance with Article 8(3)(e) of Commission Implementing Regulation (EU) 2023/814. Pursuant to the Terms of Disclosure Decision, Alphabet's specified external advisers were granted, at the Commission's premises, access to unredacted versions of all documents in the case file with the exception of correspondence with the CMA and the DOJ. The specified external advisers were entitled to prepare a data room report summarising their findings and were also authorised to include an annex setting out their interpretation of the file, a non-confidential version of which was subsequently shared with Alphabet.³³⁴
- (638) Therefore, access to the file procedure under Regulation (EU) 2022/1925 provided for a maximum disclosure of information for the purpose of exercising of Alphabet's right to be heard. Indeed, the specified external advisers examined the entire Commission file, including unredacted and confidential versions of documents.

³³³ Judgment of the General Court of 17 July 2024, *ByteDance Ltd v European Commission*, Case T-1077/23.

³³⁴ Data room report, [Attachment ID], and annex, [Attachment ID].

- (639) Lastly, Alphabet has not substantiated, let alone demonstrated, that any alleged limitation on access to file prevented it from effectively exercising its right to be heard or affected the outcome of the procedure.
- (640) In light of the above, the Commission concludes that it complied fully with the procedural requirements of Regulation (EU) 2022/1925 and Commission Implementing Regulation (EU) 2023/814, and that Alphabet was afforded an effective opportunity to exercise its right to be heard. The claim of a violation of Article 34 of Regulation (EU) 2022/1925 is therefore without merit.

7. DURATION OF ALPHABET’S NON-COMPLIANCE

- (641) The Commission finds that Alphabet’s non-compliance with Article 6(5) of Regulation (EU) 2022/1925 commenced on the date when that provision became applicable to it, that is on 7 March 2024, which is six months after the online search engine Google Search was listed in the Alphabet designation decision. This non-compliance is still ongoing at the date of adoption of this Decision.

8. ADDRESSEES

- (642) The Commission concludes that the infringement of Article 6(5) of Regulation (EU) 2022/1925 should be imputed to Alphabet Inc., since it was (i) the addressee of the decision designating Alphabet as a gatekeeper pursuant to Article 3 of Regulation (EU) 2022/1925; (ii) the legal entity which – for the entire period of the infringement – formulated and rolled out features and functionalities on the Google SERP which are the subject of this Decision; (iii) the legal entity which (directly or indirectly) wholly owned and continues to fully own Google Ireland Ltd., which is the legal entity that operates the Alphabet’s OSE CPS Google Search and further services concerned by this Decision in the Union.³³⁵

9. FINES

9.1. Principles

- (643) Under Article 30(1)(a) of Regulation (EU) 2022/1925, the Commission may by decision impose fines on gatekeepers where it finds that the gatekeeper, intentionally or negligently, fails to comply with any of the obligations laid down in Articles 5, 6, and 7 of that Regulation. Fines under Regulation (EU) 2022/1925 are aimed at ensuring effective compliance by the gatekeepers with their obligations under applicable laws and prevention of non-compliant conduct that could undermine the objectives of applicable law (i.e., in the present case Regulation (EU) 2022/1925).

³³⁵ Decision C(2023) 6101 final, recitals (2) – (7), in which Alphabet Inc. is listed as the notifying undertaking, in which Google Ireland Ltd. is listed as the operator of Google Search, and in which Alphabet Inc. is listed as the ultimate parent company of Google Ireland Ltd.

- (644) According to Article 30(4) of Regulation (EU) 2022/1925, in fixing the amount of a fine, the Commission shall take into account the gravity, duration, and recurrence of the non-compliance. In general, fines shall be effective, proportionate, and dissuasive.³³⁶ The Commission must ensure that any aggravating or mitigating circumstances are also reflected in the fines imposed.
- (645) Any fine imposed by the Commission shall not exceed 10 % of the gatekeeper's total worldwide turnover in the preceding financial year. Additionally, the Commission must ensure that its fines are compatible with the principles of equal treatment and proportionality,³³⁷ while having, at the same time, the necessary deterrent effect.³³⁸

9.2. Intent or negligence

- (646) As mentioned in recital (643) of this Decision, a fine may be imposed on gatekeepers that 'intentionally or negligently' fail to comply with any of the obligations laid down in Articles 5, 6, and 7 of Regulation (EU) 2022/1925.

9.2.1. The Commission's position

- (647) The Commission finds that Alphabet acted at the very least negligently, as it could not have been unaware³³⁹ that the conduct described in Sections 4 and 5 of this Decision did not comply with Article 6(5) of Regulation (EU) 2022/1925.
- (648) First, Alphabet could not have been unaware that such conduct could lead to a breach of Article 6(5) of Regulation (EU) 2022/1925 given the clear language of Article 6(5) and recitals 51 and 52 of that Regulation, as well as the stated objectives thereof. In particular, the conditions to ensure compliance with Article 6(5) of Regulation (EU) 2022/1925 are clearly set out in that provision, according to which the gatekeeper shall not treat more favourably, in ranking and related indexing and crawling, services and products offered by the gatekeeper itself than similar services or products of a third party.
- (649) Additionally, recital 51 of Regulation (EU) 2022/1925 clarifies, in essence, that non-compliance with Article 6(5) of that Regulation can occur, for instance, in relation to products or services, including other core platform services, which are ranked in the results communicated by online search engines, or which are partly or entirely embedded in online search engines results, groups of results specialised in a certain topic, displayed along with the results of an online search engine, which are considered or used by certain users as a service distinct or additional to the online search engine.

³³⁶ See, for instance and by analogy, Judgment of 8 July 2020, Case T-203/18, *VQ v ECB*, EU:T:2020:313, in particular paragraphs 13, 61 to 68, and 85, Judgment of 8 July 2020, Case T-578/18, *CA Consumer Finance v ECB*, EU:T:2020:306, in particular paragraphs 13, 122, and 138, and Judgment of 8 July 2020, Case T-576/18, *Crédit Agricole v ECB*, EU:T:2020:304, in particular paragraphs 14, 135, and 153.

³³⁷ See, for instance and by analogy, Judgment of 9 September 2015, Case T-92/13, *Philips v Commission*, EU:T:2015:605, paragraph 194 and the case-law cited therein.

³³⁸ See, for instance and by analogy, Judgment of 13 July 2011, Case T-59/07, *Polimeri Europa v Commission*, EU:T:2011:361, paragraph 243 and the case-law cited therein.

³³⁹ See, for instance and by analogy, Judgment of 5 December 2023, Case C-807/21, *Deutsche Wohnen*, EU:C:2023:950, paragraph 76 and the case-law cited therein.

- (650) Second, the Commission discussed Alphabet’s compliance with Article 6(5) of Regulation (EU) 2022/1925 with Alphabet on many occasions, both before and after the 7 March 2024 compliance deadline. Throughout these communications, for example during the meetings between the Commission and Alphabet of 19 April 2024, 20 June 2024, 19 September 2024, 31 October 2024, 27 November 2024, 1 and 24 April 2025, 6 June 2025, 22 July 2025, and 25 July 2025, the Commission, in essence, explained to Alphabet the reasons why the measures that it put in place in March 2024, as described in the Alphabet Compliance Report 2024, were not sufficient to comply with Article 6(5) of Regulation (EU) 2022/1925, and discussed with Alphabet possible ways of bringing such non-compliance to an end.
- (651) Additionally, in the Preliminary Findings, the Commission set out a series of measures that Alphabet should adopt to effectively address such Preliminary Findings and to cease its non-compliance with Article 6(5) of Regulation (EU) 2022/1925. These included, in essence, either removing from the SERP any functionalities and features which go beyond those of an OSE, or extending the same benefits in terms of prominence regarding presentation that Alphabet gives to its own services to similar third-party services ranked on Google Search. Despite these communications and the Preliminary Findings, Alphabet did not make any further changes to the measures that it put in place in March 2024, as confirmed in the Alphabet Compliance Report 2025 and in the Alphabet Compliance Report 2026.³⁴⁰
- (652) Third, following the 7 March 2024 compliance deadline, Alphabet made a number of submissions and proposed different possible compliance solutions. These proposals sought to address the more favourable treatment in ranking of Alphabet’s own distinct or additional services on Google Search compared to similar services of third parties.
- (653) It is noteworthy, for instance, that when proposing a possible compliance solution in June 2024 Alphabet noted that concerns under Article 6(5) of Regulation (EU) 2022/1925 could be addressed, notably, by subtracting or removing from the SERP designs perceived to give benefit to a separate Alphabet service.³⁴¹ Thus, Alphabet was already aware, early on, not only of the need to adopt certain changes to comply with Article 6(5) of Regulation (EU) 2022/1925, but also of what type of steps it could take in order to do so.

9.2.2. *Alphabet’s arguments*

- (654) Alphabet argues, in essence, that even if the Commission were to establish that Alphabet had breached Article 6(5) of Regulation (EU) 2022/1925, a fine would not be warranted because such non-compliance would not be intentional or negligent, as required under Article 30(1) of that Regulation.³⁴²

³⁴⁰ Alphabet Compliance Report 2025 – Google Search Chapter, paragraph 54, [Attachment ID] and Alphabet Compliance Report 2026 – Google Search Chapter, paragraph 54, [Attachment ID].

³⁴¹ Alphabet submission of 20 June 2024 entitled “A principle-focused DMA approach for Search”, slide 4, [Attachment ID].

³⁴² Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 313-323, [Attachment ID].

- (655) First, Alphabet contends that the present case is novel, as it represents the first time in which the Commission is applying Article 6(5) of Regulation (EU) 2022/1925. Alphabet adds that, in competition law cases, the Commission refrains from imposing fines in novel cases.³⁴³
- (656) Second, Alphabet claims that Article 6(5) of Regulation (EU) 2022/1925 lacks clarity and specificity, as demonstrated by the fact that the legislator itself has classified the obligation contained therein as being susceptible to specification, by including such obligation in Article 6, rather than Article 5, of that Regulation.³⁴⁴
- (657) Third, Alphabet alleges that rendering its search results design compliant with Regulation (EU) 2022/1925 raises complex and difficult issues and requires a difficult balancing of the interests of different stakeholders.³⁴⁵
- (658) Fourth, Alphabet maintains that it has made an active and good-faith effort to comply with Article 6(5) of Regulation (EU) 2022/1925. Alphabet notes, in particular, that it reached out to the Commission well in advance of the compliance deadline and committed substantial time and resources to working on compliance measures, that it implemented a series of measures in March 2024 and indicated its readiness to develop further changes to Google Search following the opening of the present proceedings, and that it constructively engaged with the Commission and third parties over an extended period including through numerous meetings and workshops.³⁴⁶

9.2.3. *The Commission's assessment of Alphabet's arguments*

- (659) First, while it is true that Regulation (EU) 2022/1925 constitutes a relatively new legal instrument and that the present proceedings represent the first case in which the Commission is applying Article 6(5) thereof, this does not call into question the conclusion that Alphabet acted at the very least negligently, for the reasons set out in recitals (647) - (653) of this Decision.
- (660) Additionally, these circumstances do not, by any means, prevent the Commission from imposing a fine on Alphabet. Indeed, Regulation (EU) 2022/1925 expressly provides for the possibility to impose fines for non-compliance with Article 6 thereof and does not condition the imposition of a fine on the existence of established precedents. In this regard, the Court has confirmed that the fact that “*the Commission and the EU Courts have not yet had the opportunity to rule specifically on particular conduct does not preclude, in itself, the possibility that an undertaking may have to expect its conduct to be declared incompatible*” with Union law.³⁴⁷ According to the

³⁴³ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 314, [Attachment ID].

³⁴⁴ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 315, [Attachment ID].

³⁴⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 316, [Attachment ID].

³⁴⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 317-322, [Attachment ID].

³⁴⁷ See, for instance and by analogy, Judgment of 9 November 2023, Case C-746/21 P, *Altice Group Lux v Commission*, EU:C:2023:836, paragraph 197 and the case-law cited therein.

Court, “[t]hat fact is therefore not such as to exempt the undertaking concerned from its liability”.³⁴⁸ In the present case, Alphabet simply refers to the novelty of the case under Regulation (EU) 2022/1925, without however explaining to what extent the alleged novelty, if any, justifies no fine for established non-compliance with Regulation (EU) 2022/1925.

- (661) Furthermore, Alphabet’s references to the *Compagnie Générale Maritime*³⁴⁹ judgment and to the Commission decisions in *Clearstream*,³⁵⁰ *Motorola*,³⁵¹ and *Organic Peroxides*³⁵² do not support its claim that no fine is warranted in the present case due to its novel nature. Indeed, these cases relate to different conducts, different sets of rules, and different industries. Alphabet has not explained why, in spite of these differences, those cases would be transposable to the situation at stake.³⁵³
- (662) In any event, contrary to what Alphabet suggests, in *Compagnie Générale Maritime*, the General Court found that the infringement had been committed either intentionally or negligently, as the object of the contested agreement was to restrict competition.³⁵⁴ Despite that, the General Court decided not to impose a fine on the applicants, in the exercise of its unlimited jurisdiction, taking into account, in particular, the complex interplay between different sets of rules, as well as the fact that a Commission declaration had led the applicants to believe that the contested agreement was not unlawful.³⁵⁵ These circumstances are absent in the present case.
- (663) As regards the Commission decisions in *Clearstream* and *Motorola*, suffice it to note that novelty was only one of several criteria that led the Commission not to impose fines. In *Clearstream*, the Commission additionally relied on the fact that the infringement had terminated (at least already at the time of the statement of objections) and

³⁴⁸ See, for instance and by analogy, Judgment of 9 November 2023, Case C-746/21 P, *Altice Group Lux v Commission*, EU:C:2023:836, paragraph 197 and the case-law cited therein.

³⁴⁹ Judgment of 28 February 2002, Case T-86/95, *Compagnie Générale Maritime and Others v Commission*, EU:T:2002:50, paragraph 488.

³⁵⁰ Commission Decision of 2 June 2004, Case COMP/38.096, *Clearstream (Clearing and Settlement)*, paragraphs 342, 344.

³⁵¹ Commission Decision of 29 April 2014, Case AT.39985, *Motorola - Enforcement of GPRS standard essential patents*, paragraph 561.

³⁵² Commission Decision of 10 December 2003, Case COMP/E-2/37.857, *Organic Peroxides*, paragraph 454.

³⁵³ The judgment of the General Court in *Bytedance*, regarding Regulation (EU) 2022/1925 specifically, is relevant in this regard since the General Court ruled that: “[t]hat conclusion [that the applicant’s arguments are inadmissible] is not called into question by the applicant’s argument that, by referring to certain judgments concerning competition law and State aid, such arguments and evidence are admissible, even if they are submitted for the first time before the Court. [...] However, that case-law concerns legal frameworks and fields of law which are different from those covered by the DMA, the latter being characterised, [...] by strict requirements governing the rebuttal of the presumptions laid down in Article 3(2) of the DMA, in terms of procedural requirements as well as burden and standard of proof. That case-law is therefore not applicable in the present case”. See in this regard judgment of 17 July 2024, Case T-1077/23, *Bytedance v Commission*, EU:T:2024:478, paragraphs 236 and 237.

³⁵⁴ Judgment of 28 February 2002, Case T-86/95, *Compagnie Générale Maritime and Others v Commission*, EU:T:2002:50, paragraph 479.

³⁵⁵ Judgment of 28 February 2002, Case T-86/95, *Compagnie Générale Maritime and Others v Commission*, EU:T:2002:50, paragraph 484, 485, 488.

the fact that cross-border clearing and settlement in the Union were at a crossroads.³⁵⁶ In *Motorola*, the Commission also took into account that national courts had reached diverging conclusions on the contentious legal questions.³⁵⁷ In its decision in *Organic Peroxides*, the Commission imposed a low fine on AC Treuhand because it acted as a mere organiser or facilitator of the cartel.³⁵⁸ This lies in stark contrast with Alphabet's role in the non-compliance at issue in the present case.

- (664) Second, the fact that the obligation contained in Article 6(5) of Regulation (EU) 2022/1925 has been classified, by the legislator itself, as being susceptible to specification, does not mean that this obligation lacks the clarity and specificity required for the Commission to be able to impose a fine on Alphabet. If that were to be the case, that would mean that the Commission would be prevented altogether from imposing fines for non-compliance with the obligations of Article 6 of Regulation (EU) 2022/1925. However, Article 30(1)(a) of Regulation (EU) 2022/1925 expressly provides that the Commission may impose fines on gatekeepers for non-compliance with any of the obligations laid down in Articles 5, 6, and 7 of that Regulation. Moreover, pursuant to Article 8(3) of Regulation (EU) 2022/1925, the Commission may or may not adopt a specification decision, which means that specification decisions are not necessary in order for the obligations in Article 6 to apply.
- (665) Third, contrary to what Alphabet maintains, rendering its search results design compliant with Article 6(5) of Regulation (EU) 2022/1925 is not particularly complex or difficult. Indeed, as explained in recitals (650) - (653) of this Decision, the Commission discussed with Alphabet possible ways of bringing its non-compliance with that provision to an end on numerous occasions, and Alphabet was aware, early on, of what type of steps it could take in order to do so. Additionally, in the Preliminary Findings, the Commission described the measures that Alphabet could adopt to cease its non-compliance with Article 6(5) of Regulation (EU) 2022/1925. Despite all this, Alphabet has remained non-compliant with this provision to date.
- (666) Fourth, while it is true that Alphabet has engaged with the Commission and third parties, both before and after the 7 March 2024 compliance deadline, and has committed substantial time and resources to working on compliance measures, this does not call into question the conclusion that it acted at the very least negligently. On the contrary, during their repeated exchanges, the Commission explained to Alphabet the reasons why its March 2024 measures were in breach of Article 6(5) of Regulation (EU) 2022/1925, and they discussed possible ways of bringing such non-compliance to an end. Thus, Alphabet could not have been unaware that the conduct described in Sections 4 and 5 of this Decision did not comply with Article 6(5) of Regulation (EU) 2022/1925.

³⁵⁶ Commission Decision of 2 June 2004, Case COMP/38.096, *Clearstream (Clearing and Settlement)*, paragraphs 342, 344.

³⁵⁷ Commission Decision of 29 April 2014, Case AT.39985, *Motorola - Enforcement of GPRS standard essential patents*, paragraph 561.

³⁵⁸ Commission Decision of 10 December 2003, Case COMP/E-2/37.857, *Organic Peroxides*, paragraph 454.

- (667) Additionally, although Alphabet maintains that it made an active and good-faith effort to comply with Article 6(5) of Regulation (EU) 2022/1925, and that it was ready to develop further changes to Google Search following the opening of the present proceedings, the fact remains that it did not make any further changes to its March 2024 measures and has remained non-compliant with this provision to date.
- (668) It follows from the above that Alphabet has not put forward any convincing arguments calling into question the Commission's conclusion that it could not have been unaware that the conduct described in Sections 4 and 5 of this Decision did not comply with Article 6(5) of Regulation (EU) 2022/1925.

9.3. Calculation of the fine

9.3.1. Gravity

9.3.1.1. The Commission's position

- (669) Regulation (EU) 2022/1925 lists the gravity of the non-compliance as one of the key criteria to determine the level of the fine for non-compliance. In the present case, the Commission concludes that several factors are relevant to assess the gravity of Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925 in relation to Google Search.
- (670) First, Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925 concerns users in all Member States and thus covers the whole of the Union.
- (671) Second, Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925 affects a large number of users established or located in the Union. Indeed, as established in the Alphabet designation decision, according to data provided by Alphabet itself, the Google Search CPS had a large number of monthly active end users established or located in the Union in 2022 (**[300-400 million]** signed-in accounts and **[400-500 million]** signed-out cookie counts).³⁵⁹ Relevant third-party offers and content are presented to these users with less prominence as a result of Alphabet's non-compliant conduct.
- (672) Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925 also affects a large number of businesses established in the Union, in particular VSSs and direct suppliers. Indeed, as established in the Alphabet designation decision, according to data provided by Alphabet itself, the Google Search CPS had approximately **[5-10 billion]** yearly active business users established in the Union in 2022.³⁶⁰ Offers and content provided by a number of businesses are ranked less prominently on the SERP as compared to Alphabet's own services.
- (673) Third, the Commission considers that Alphabet has violated Article 6(5) of Regulation (EU) 2022/1925 through a number of conducts, described in Sections 4 and 5 of this Decision. Indeed, Alphabet has treated a significant number of its own services more favourably in ranking as compared to similar third-party services, including both services related to transactional queries (in particular, products, flights trains, lodging and places intermediation services, as well as Google Maps), and

³⁵⁹ Decision C(2023) 6101 final, recitals (99) – (100). See also Alphabet Form GD, paragraph 303.

³⁶⁰ Decision C(2023) 6101 final, recitals (99) – (100).

services related to content queries (in particular, sport information, translation, and games services).

- (674) Fourth, when assessing the gravity of Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925, the Commission must ensure that fines have a sufficiently deterrent effect in relation to Alphabet, but also in relation to other designated gatekeepers to avoid future breaches of Regulation (EU) 2022/1925. In that regard, the link between, on the one hand, the undertaking's size and global resources and, on the other, the need to ensure that a fine has a deterrent effect cannot be denied. Accordingly, when the Commission calculates the amount of the fine it may take into consideration, *inter alia*, the size and the economic power of the undertaking concerned.³⁶¹
- (675) Alphabet is one of the largest technology companies in the world by turnover. Alphabet's total worldwide turnover in the business year ending 31 December 2025 was USD 402 836 000 000 (approximately EUR 356 509 860 000).³⁶² Alphabet had an estimated market capitalisation of approximately USD 3 672 000 000 000 on 20 February 2026 (approximately EUR 3 124 137 600 000),³⁶³ making it the third most valuable company in the world in terms of market capitalisation on that date.³⁶⁴ As a result, Alphabet can be regarded as a very large company with significant economic power and resources, including legal resources.
- (676) In light of the above, the gravity of Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925 should be considered as serious.

9.3.1.2. Alphabet's arguments

- (677) Alphabet argues that its alleged non-compliance with Article 6(5) of Regulation (EU) 2022/1925 cannot be classified as serious.³⁶⁵
- (678) First, Alphabet contends that the Commission provided no evidence that its conduct gave rise to any harm or adverse effects for VSSs, suppliers, or users.³⁶⁶

³⁶¹ See, for instance and by analogy, Judgment of 12 December 2012, Case T-332/09, *Electrabel v Commission*, EU:T:2012:672, paragraph 282 and the case-law cited therein.

³⁶² Alphabet's Form 10-K Annual Report Pursuant To Section 13 or 15(D) of the Securities Exchange Act of 1934 for the fiscal year ended 31 December 2025, pages 32, 33, 49, 60, 67 and 87, accessible at <https://d18rn0p25nwr6d.cloudfront.net/CIK-0001652044/8873e505-7403-4c46-b377-81d814482cbb.pdf> (last accessed on 20 February 2026) (see [Attachment ID]). The ECB exchange rate for 2025 was on average USD 1 = EUR 0.8850 (see [Attachment ID]).

³⁶³ Companies Market Cap, Alphabet (Google), accessible at <https://companiesmarketcap.com/alphabet-google/marketcap/> (last accessed on 20 February 2026) (see [Attachment ID]). The ECB exchange rate on 19 February 2026 was USD 1 = EUR 0.8508 (see [Attachment ID]).

³⁶⁴ Companies Market Cap, Largest Companies by Marketcap, accessible at <https://companiesmarketcap.com/> (last accessed on 20 February 2026) (see [Attachment ID]).

³⁶⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 327-329, [Attachment ID].

³⁶⁶ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 327, 329, [Attachment ID].

(679) Second, Alphabet claims that the measures it put in place in March 2024 represented a good faith attempt to balance and reconcile the interests of the relevant stakeholders.³⁶⁷

9.3.1.3. The Commission's assessment of Alphabet's arguments

(680) First, the Commission is under no duty to investigate the possible impact, effect, or harm deriving from non-compliance when determining its gravity under Regulation (EU) 2022/1925. Indeed, Article 30(4) of Regulation (EU) 2022/1925 only lists gravity, duration, and recurrence as relevant criteria, not the impact, effect, or harm deriving from the non-compliance. It is apparent from recital 11 of that Regulation that the assessment to be carried out by the Commission is independent "*from the actual, potential or presumed effects of the conduct of a given gatekeeper covered by this Regulation on competition on a given market*".

(681) In any event, as demonstrated in this Decision, the conduct described in Sections 4 and 5 of this Decision, put in place by Alphabet in March 2024, provided more prominence on Google Search to Alphabet's own services compared to similar third-party services. This may, in itself, be considered to adversely affect, in particular, any third parties whose services would have benefited from more prominence in terms of presentation had Alphabet complied with Article 6(5) of Regulation (EU) 2022/1925.

(682) Second, whether or not Alphabet's March 2024 measures represented a good faith attempt to balance different stakeholder interests, the fact remains that Alphabet's conduct was not compliant with Article 6(5) of Regulation (EU) 2022/1925, and that such non-compliance impacted a significant number of businesses and users throughout the entire Union, across a wide range of services related to transactional and content-related queries (see recitals (670) - (673) of this Decision).

(683) It follows from the above that Alphabet has not put forward arguments capable of calling into question the serious gravity of the non-compliance.

9.3.2. Duration

(684) The Commission finds that Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925 in relation to Google Search, as established by this Decision, commenced on 7 March 2024, when the obligations of that Regulation, including those pursuant to Article 6(5) thereof, began to apply to Alphabet. Alphabet's non-compliance is still ongoing at the date of this Decision. Therefore, the duration of Alphabet's non-compliance, as established in this Decision, is approximately 28 months.

(685) Therefore, the Commission considers that Alphabet's non-compliance is of medium duration.

(686) This conclusion is not called into question by Alphabet's argument according to which it was ready to introduce a new solution that however got "derailed" by the

³⁶⁷ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraph 328, [Attachment ID].

adoption of the Preliminary Findings.³⁶⁸ Indeed, whether or not Alphabet was ready or intended to introduce a new solution, the fact remains that it did not, and that its non-compliance is still ongoing at the date of adoption of this Decision. Additionally, Alphabet does not explain, let alone demonstrate, in what way, in its view, the adoption of the Preliminary Findings “derailed” the implementation of a solution compliant with Article 6(5) of Regulation (EU) 2022/1925.

9.3.3. *Recurrence*

(687) The recurrence factor is not relevant in the present case, since this is the first decision addressed to Alphabet under Article 29 and Article 30 of Regulation (EU) 2022/1925.

9.3.4. *Other relevant factors for the amount of the fine*

9.3.4.1. Aggravating circumstances

(688) The Commission considers that there are no aggravating circumstances in this case.

9.3.4.2. Mitigating circumstances

9.3.4.2.1. The Commission’s position

(689) The Commission concludes that there is a mitigating circumstance in this case. Regulation (EU) 2022/1925 has established a new framework governing the designation of gatekeepers and the obligations applicable to them.³⁶⁹ This Decision is also among the very first non-compliance decisions under Regulation (EU) 2022/1925, and specifically Article 6(5) thereof. The Commission considers that this should be taken into account when assessing Alphabet’s non-compliance with Article 6(5) of Regulation (EU) 2022/1925 at this point in time. The Commission therefore takes this factor into account when fixing the level of the fine.

9.3.4.2.2. Alphabet’s arguments

(690) Alphabet argues that the Commission should take into account four mitigating circumstances when determining whether to impose a fine or, in the alternative, the size of the fine.³⁷⁰

(691) First, Alphabet contends that it has engaged with the Commission in good faith, and continues to do so, to comply with Regulation (EU) 2022/1925. In this regard, it claims that it has always been open and constructive with the Commission.

(692) Second, Alphabet alleges that the Commission has not identified any tangible evidence of consumer harm.

(693) Third, Alphabet maintains that the state of the law is unclear and that the problems presented by the new regulatory regime established in Regulation (EU) 2022/1925 are complex.

³⁶⁸ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 330, [Attachment ID].

³⁶⁹ Judgment of 17 July 2024, Case T-1077/23, *Bytedance v Commission*, EU:T:2024:478, paragraph 233.

³⁷⁰ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 333, [Attachment ID].

9.3.4.2.3. The Commission's assessment of Alphabet's arguments

- (694) First, as regards Alphabet's assertion that it has openly and constructively engaged with the Commission in good faith to comply with Regulation (EU) 2022/1925, the Commission does not consider that Alphabet's interactions with the Commission amount to a mitigating factor in the present case that should lead to further reduction of the fine. While Alphabet may have interacted in good faith with the Commission, this did not go beyond its obligation stemming from the duty to cooperate in a non-compliance investigation. Additionally, the Commission notes that, despite such interactions, Alphabet's non-compliance with Article 6(5) Regulation (EU) 2022/1925 remains ongoing.
- (695) This conclusion is not called into question by Alphabet's reference, by analogy, to paragraph 29, fourth bullet, of the Commission's Guidelines on the method of setting fines imposed pursuant to Article 23(2)(a) of Regulation No 1/2003, which recognizes, as a mitigating circumstance, the fact that an undertaking has effectively cooperated with the Commission outside the scope of the Leniency Notice and beyond its legal obligation to do so. Indeed, these guidelines refer to competition law infringements, not to non-compliance with Regulation (EU) 2022/1925, and Alphabet has not explained why they are relevant in the present context. Even if they were, Alphabet has not explained why, in its view, it has cooperated with the Commission beyond its legal obligation to do so, within the meaning of those guidelines. Additionally, and in any event, according to the case-law of the EU Courts, this mitigating circumstance can only be accepted exceptionally, in particular when an undertaking's cooperation facilitates the Commission's task of finding and bringing competition law infringements to an end.³⁷¹ No such exceptional circumstances exist in the present case.
- (696) Second, as explained in recital (680) of this Decision, the Commission is under no duty to investigate the possible impact, effect, or harm deriving from non-compliance with Regulation (EU) 2022/1925. In these circumstances, even if the Commission had not identified any tangible evidence of consumer harm, this would not, in itself, warrant a reduction of the fine. Additionally, while Alphabet argues that it has sought to maintain a good user experience on Google Search, the fact remains that, in doing so, it has presented relevant offers and content to users with less prominence in terms of presentation than it should have pursuant to Article 6(5) Regulation (EU) 2022/1925.
- (697) Third, Alphabet's argument that the state of the law is unclear and that the problems presented by the new regulatory regime established in Regulation (EU) 2022/1925 are complex must be rejected for the reasons set out in recitals (648), (649) and (665) of this Decision.
- (698) It follows from the above that Alphabet has not put forward any convincing arguments showing that, in determining whether to impose a fine or the amount thereof, the Commission should have taken into account mitigating circumstances beyond those described in recital (689) of this Decision.

³⁷¹ Judgment of 8 July 2024, Case T-44/00, *Mannesmannröhren-Werke v Commission*, EU:T:2004:218, paragraph 308.

9.3.5. *Conclusion*

- (699) In view of the above, the Commission considers that Alphabet has, at the very least negligently, not complied with Article 6(5) of Regulation (EU) 2022/1925. Alphabet's non-compliance with that provision is serious as it covered the entirety of the Union, affected a large number of businesses and users in the Union, and involved a number of different non-compliant conducts. Furthermore, Alphabet is a large undertaking, with substantial resources, including legal resources. Alphabet's non-compliance is of medium duration. Finally, the Commission has taken into account the mitigating circumstance that this Decision is among the very first non-compliance decisions adopted under Regulation (EU) 2022/1925, and specifically Article 6(5) thereof.

9.4. **Amount of the fine**

- (700) In view of the criteria described in recitals (646) - (699) of this Decision, the Commission considers it appropriate to impose a fine under Article 30(1)(a) of Regulation (EU) 2022/1925 representing EUR 460 000 000.
- (701) As explained in recital (675) of this Decision, Alphabet's total worldwide turnover in the business year ending 31 December 2025 was USD 402 836 000 000 (approximately EUR 356 509 860 000). The final amount of the fine set is thus below 10 % of that figure, which is the maximum fine that could be imposed pursuant to Article 30(1) of Regulation (EU) 2022/1925.
- (702) This amount is proportionate, as it represents a relatively small proportion of Alphabet's annual worldwide turnover (approximately 0.13 %) and in any event significantly less than the maximum fine cap of 10 % referred to in recital (701) of this Decision.

9.5. **Right to be heard and principle of sound administration with respect to the fine**

- (703) Alphabet argues, in essence, that imposing a fine on it in the present case would breach its right to be heard, its rights of defence, and the principle of sound administration because the Commission's Preliminary Findings merely referred to the fining criteria established in Article 30(4) of Regulation (EU) 2022/1925, without however providing any information on how the Commission would apply such criteria and calculate the fine.³⁷²
- (704) In this regard, first, contrary to what Alphabet maintains, the Preliminary Findings did not limit themselves to stating that the fine would consider the gravity, duration, and recurrence of the non-compliance. Indeed, in recitals (345) - (351) of the Preliminary Findings, the Commission explained the different elements that it would take into account in assessing each of these three criteria, such as, for the assessment of gravity, notably the geographic scope and the number of users affected by the non-compliance. The Commission added, in particular, that it would consider any aggravating or mitigating circumstances, as well as the need to ensure sufficient deterrence bearing in mind Alphabet's size and financial capacity.

³⁷² Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 324-325, [Attachment ID].

- (705) Second, the Commission’s approach in the Preliminary Findings corresponds to well-established case law of the EU Courts. For instance, in competition law cases, the Court has established that, in order to fulfil its obligation to respect the right of undertakings to be heard, the Commission is required to indicate expressly in the statement of objections that it will consider whether it is appropriate to impose fines on the undertakings concerned, and to set out the principal elements of fact and of law that may give rise to a fine, such as the gravity and the duration of the alleged infringement and whether it has been committed intentionally or negligently. According to the Court, the Commission is not, however, required, once it has indicated the main factual and legal criteria on which it will base its calculation of the amount of the fines, to specify the way in which it will use each of those elements in order to determine their level.³⁷³ In the present case, the Commission set out the main factual and legal criteria on which it would base its calculation of the amount of the fine in the Preliminary Findings, as explained in recital (704) of this Decision.
- (706) Third, Alphabet’s references to different cases of the EU Courts and of the ECtHR do not call into question the conclusions set out in recitals (704) and (705) of this Decision, as they concern, in essence, general statements of law that are not incompatible with these findings.³⁷⁴

10. CEASE AND DESIST

- (707) Pursuant to Article 29(5) of Regulation (EU) 2022/1925, “[i]n the non-compliance decision, the Commission shall order the gatekeeper to cease and desist with the non-compliance within an appropriate deadline and to provide explanations on how it plans to comply with that decision”.
- (708) On that basis, and since the Commission has found that Alphabet’s non-compliance with Article 6(5) of Regulation (EU) 2022/1925 is ongoing, it is necessary to order Alphabet to bring the non-compliance described in Sections 4 and 5 of this Decision effectively to an end within 60 calendar days from the date of notification of this Decision (the ‘Cease and Desist Order’).
- (709) In addition, it is necessary to ensure that Alphabet shall refrain from repeating any conduct constituting non-compliance with Article 6(5) of Regulation (EU) 2022/1925, as well as from any conduct having the same or equivalent object or effect.

³⁷³ See Judgment of 6 July 2017, Case C-180/16 P, *Toshiba v Commission*, EU:C:2017:520, paragraph 21 and the case-law cited therein.

³⁷⁴ See Judgment of 8 February 2007, Case C-3/06 P, *Groupe Danone v Commission*, EU:C:2007:88, paragraphs 68 and 87 to 89; Opinion of Advocate General Rantos of 5 September 2024, Case C-367/22 P, *Air Canada v Commission*, EU:C:2024:702, paragraph 173; Judgment of 10 August 2017, Case C-271/17 PPU, *Zdziaszek*, EU:C:2017:629, paragraphs 87 to 94; Judgment of 6 April 1995, Case T-148/89, *Treflunion v Commission*, EU:T:1995:68, paragraph 142; Judgment of 14 July 1994, Case T-77/92, *Parker Pen v Commission*, EU:T:1994:85, paragraph 94; and Judgment of the European Court of Human Rights of 5 July 2001, Application 41087/98, *Case of Phillips v. The United Kingdom*, paragraphs 38 and 39.

- (710) To comply with the Cease and Desist Order, and in line with the objectives of Regulation (EU) 2022/1925 to ensure contestable and fair markets in the digital sector, as expressed in Article 1(1) of that Regulation, and more specifically with those of Article 6(5) of Regulation (EU) 2022/1925 to prevent gatekeepers from ranking their own services more favourably than similar third-party services, Alphabet must, in line with this Decision cease to give its own distinct or additional services more favourable treatment in ranking on Google Search as compared to similar services offered by third parties.
- (711) To do so, Alphabet should, in particular, ensure equal treatment between, on the one hand, its own distinct or additional services ranked on Google Search, and on the other, similar services offered by third parties that are also ranked on Google Search, in terms of their relative prominence on the Google SERP.
- (712) As described in Sections 4 and 5 of this Decision, Alphabet currently gives more prominence to its own distinct or additional services than to similar services in a number of ways. Specifically, it gives prominence to its own distinct or additional services referred to in those Sections by:
- (a) Displaying in free or paid search results on the Google SERP, following transactional queries, services that are distinct from or additional to an OSE, with more prominence than similar services offered by third parties, as explained in recitals (93) - (489) of this Decision. First, this is due to the fact that these services have a purpose that is different to or goes beyond the purpose of an OSE in terms of the functionalities they have and the tasks that they perform. In particular, Alphabet displays groups of results or dedicated units specialised in a certain topic, with features and functionalities that are specific to intermediating a certain type of transaction, and that, individually or in combination, allow users to filter, interact with, and compare competing offers, based on relevant commercial parameters, directly on the SERP, with a view to facilitating the initiation of transactions between businesses and consumers. Second, these results are not assembled by searching, in principle, all websites as required by the definition of an OSE, but by searching only eligible websites of a specific type that have been pre-defined and selected by Alphabet;
 - (b) Displaying on the Google SERP, following content-related queries, services that are distinct from or additional to an OSE, with more prominence than similar services offered by third parties, as explained in recitals (519) - (601) of this Decision. First, this is due to the fact that certain services have a purpose that is different to or goes beyond the purpose of an OSE in terms of the functionalities that they have and the tasks that they perform. In particular, Alphabet displays groups of results or dedicated units, specialised in a certain topic, with specific functionalities that, individually or in combination, allow users to perform actions directly on the SERP that are unrelated to or otherwise go beyond searching the Internet and obtaining results in which information related to the requested content can be found. Second, this is due to the fact that

certain services are not assembled by performing searches of, in principle, all websites;

- (c) Displaying interactive pointers to its own distinct or additional services on the Google SERP, such as in tabs or in links to these services when a user clicks on a reservations, directions or any other button on the Google SERP with more prominence than similar services offered by third parties, as set out in recitals (490) - (517) of this Decision.

(713) It is for Alphabet to identify and implement the measures to ensure compliance with Article 6(5) of Regulation (EU) 2022/1925. One end of the range of possibilities to do so, in particular, is that Alphabet can extend the prominence it gives to its own distinct or additional services as set out in recital (712) of this Decision equally to similar services offered by third parties. On the other end, Alphabet may remove all prominence it affords its own distinct or additional services as set out in recital (712) of this Decision.

(714) In addition to terminating the non-compliance identified in Sections 4 and 5 of this Decision, Alphabet should implement measures that prevent the recurrence of non-compliance. When submitting its proposed measures, Alphabet should ensure that its proposal is sufficiently reasoned and detailed to enable the Commission to assess whether the proposed measures will ensure that the non-compliance has been terminated and the recurrence of the non-compliance is avoided and thus that it will be effectively brought to an end.

11. PERIODIC PENALTY PAYMENTS

11.1. The Commission's position

(715) In view of the seriousness of Alphabet's non-compliance with Article 6(5) of Regulation (EU) 2022/1925, as established in this Decision, and considering that the non-compliance has been found to be ongoing, the Commission concludes that it is necessary to impose periodic penalty payments pursuant to Article 31(1), point (h), of Regulation (EU) 2022/1925, in case Alphabet were to fail to implement measures that bring the non-compliance effectively to an end within 60 calendar days from the date of notification of this Decision.

(716) Any periodic penalty payments that may be definitively set should be sufficient to ensure compliance by Alphabet with this Decision and may take account of Alphabet's significant financial resources (see recitals (674) and (675) of this Decision).

11.2. Alphabet's arguments

(717) Alphabet argues, in essence, that imposing periodic penalty payments in the present case is unwarranted, let alone imposing the maximum amount thereof.³⁷⁵

³⁷⁵ Alphabet's response to the Preliminary Findings, submitted on 16 May 2025, paragraphs 334-336, [Attachment ID].

- (718) First, Alphabet contends that, in the Preliminary Findings, the Commission did not provide any reasoning for imposing the maximum amount of periodic penalty payments.³⁷⁶
- (719) Second, Alphabet claims that imposing the maximum amount of periodic penalty payments would be contrary to Commission precedent.³⁷⁷
- (720) Third, Alphabet alleges that imposing the maximum amount of periodic penalty payments is only appropriate in ‘the most egregious cases’, when a gatekeeper refuses to comply in any way whatsoever with an obligation.³⁷⁸
- (721) Fourth, Alphabet maintains that when imposing periodic penalty payments in the present case, the Commission should take into account the mitigating factors set out in recitals (691) - (693) of this Decision.³⁷⁹

11.3. The Commission’s assessment of Alphabet’s arguments

- (722) First, contrary to what Alphabet maintains, the Commission did provide sufficient reasoning on the imposition of periodic penalty payments in the Preliminary Findings. Indeed, in recital (353) of the Preliminary Findings, the Commission justified the imposition of periodic penalty payments, as well as the level thereof, in view of the seriousness of Alphabet’s non-compliance and referred to the recitals of the Preliminary Findings regarding the gravity of Alphabet’s non-compliance.
- (723) Second, as regards the three Commission precedents mentioned by Alphabet, namely the Commission decisions in *Microsoft*,³⁸⁰ *Apple (Art. 5(4))*,³⁸¹ and *Meta (Art. 5(2))*,³⁸² it must be noted that, according to the case-law of the EU Courts, the Commission is required to carry out an individual appraisal of the circumstances of each case, without being bound by previous decisions concerning other undertakings or other CPSs.³⁸³ Additionally, Alphabet has not demonstrated that the circumstances in those cases were comparable to those in the present case. In any event, the Commission’s approach in the present case, with regard to periodic penalty payments, is, in essence, the same as that followed in the *Apple (Art. 5(4))* and *Meta (Art. 5(2))* cases.
- (724) Third, Alphabet’s argument that imposing the maximum amount of periodic penalty payments is only appropriate when a gatekeeper refuses to comply in any way whatsoever with an obligation must be rejected. Indeed, according to the case-law of the EU Courts, a number of factors may be taken into account when imposing and

³⁷⁶ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 335, [Attachment ID].

³⁷⁷ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 335, [Attachment ID].

³⁷⁸ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 335, [Attachment ID].

³⁷⁹ Alphabet’s response to the Preliminary Findings, submitted on 16 May 2025, paragraph 336, [Attachment ID].

³⁸⁰ Commission Decision of 10 November 2005, Case COMP/C-3/37.792, *Microsoft*.

³⁸¹ Commission Decision of 23 April 2025, Case DMA.100109, *Apple – Online Intermediation Services – app stores – AppStore – Art. 5(4)*.

³⁸² Commission Decision of 23 April 2025, Case DMA.100055, *Meta - Article 5(2)*.

³⁸³ Judgment of 17 July 2024, Case T-1077/23, *Bytedance v Commission*, EU:T:2024:478, paragraph 68 and the case-law cited therein.

fixing the definitive amount of periodic penalty payments, including amongst others the relevant undertaking's size in terms of turnover and the need to ensure deterrence.³⁸⁴

- (725) In the present case, while it is true that Alphabet's March 2024 measures were implemented in connection with Alphabet's efforts to comply with Regulation (EU) 2022/1925, the fact remains that, despite clear indications from the Commission that such measures did not comply with Article 6(5) of that Regulation, Alphabet did not make any further changes to such measures and its non-compliance is still ongoing at the date of this Decision. Additionally, as established in recitals (669) - (676) of this Decision, the gravity of Alphabet's non-compliance in the present case must be considered as serious, and it is important to ensure deterrence, bearing in mind that Alphabet is one of the largest technology companies in the world.
- (726) Fourth, Alphabet's argument that the Commission should take into account the mitigating circumstances set out in recitals (691) - (693) of this Decision must be rejected for the reasons set out in recitals (694) - (698) of this Decision.
- (727) It follows from the above that Alphabet has not put forward any convincing arguments against the imposition of periodic penalty payments by the Commission.

HAS ADOPTED THIS DECISION:

Article 1

Alphabet Inc. has not complied with Article 6(5) of Regulation (EU) 2022/1925 from 7 March 2024 and such non-compliance is ongoing.

Article 2

For the non-compliance referred to in Article 1, a fine of EUR 460 000 000 is imposed on Alphabet Inc.

The fine shall be credited, in euros, within three months of the date of notification of this Decision, to the following bank account held in the name of the European Commission:

BANQUE CENTRALE DU LUXEMBOURG
2, Boulevard Royal
L-2983 Luxembourg

IBAN: LU27 9990 0001 1400 100E
BIC: BCLXLULL
Ref.: EC/BUFI/DMA.100193

After the expiry of the period referred to in the second paragraph, interest shall automatically be payable at the interest rate applied by the European Central Bank to its main refinancing operations on the first day of the month in which this Decision is adopted, plus 3.5 percentage points.

³⁸⁴ See, for instance and by analogy, Judgment of 27 June 2012, Case T-167/08, *Microsoft v Commission*, EU:T:2012:323, paragraph 220.

Where an action pursuant to Article 263 of the Treaty on the Functioning of the European Union is brought before the Court of Justice of the European Union against this Decision, the fine shall be covered by its due date, either by providing an acceptable financial guarantee or by making a provisional payment of the fine in accordance with Article 108 of Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council.³⁸⁵

Article 3

Alphabet Inc. shall within 60 calendar days of notification of this Decision, bring effectively to an end the non-compliance with Article 6(5) of Regulation (EU) 2022/1925 referred to in Article 1.

Alphabet Inc. shall provide the Commission with explanations on how it plans to comply with this Decision within 60 calendar days from the date of notification of this Decision.

Alphabet Inc. shall refrain from repeating any conduct described in Article 1, and from any conduct having the same or equivalent object or effect.

Article 4

If the addressee of this Decision fails to comply with Article 3 within 60 calendar days from the date of notification of this Decision, it shall incur periodic penalty payments not exceeding the limit stipulated in Article 31(1) of Regulation (EU) 2022/1925, from the date on which it is required to bring the non-compliance effectively to an end pursuant to Article 3, until the date on which it complies with the Decision.

Article 5

This Decision is addressed to Alphabet Inc., 251 Little Falls Drive, Wilmington, DE, 19808, United States.

³⁸⁵ Regulation (EU, Euratom) 2024/2509 of the European Parliament and of the Council of 23 September 2024 on the financial rules applicable to the general budget of the Union (OJ L, 2024/2509, 26.9.2024, ELI: <http://data.europa.eu/eli/reg/2024/2509/oj>).

This Decision shall be enforceable pursuant to Article 299 of the Treaty on the Functioning of the European Union.

Done at Brussels, 23.7.2026

For the Commission

(Signed)

*Henna VIRKKUNEN
Executive Vice-President*